

Table of Contents

Student Handbook 25-26

Table of Contents

Introduction and Welcome

Mission:

Woodbury University transforms students into innovative professionals who will contribute responsibly to the global community. We achieve academic excellence by focusing on purposeful student engagement, establishing external partnerships and ensuring that all our processes, services and environment enrich the student experience.

Values:

Excellence: Driven by standards of excellence in teaching, services, student well-being, community safety and sustainable practice.

Ethics: Setting the highest standards of academic and professional behavior to encourage social responsibility.

Aspiration: Pursuing ever higher levels of competitiveness, distinctiveness and service learning.

Community: Building a culture that values diversity, open communication, collaboration and engagement.

Welcome Letter from the Associate Dean of Students

Evetth Gonzalez, Associate Dean of Students

Welcome to a new year at Woodbury University. Whether you are just beginning your journey with us or returning for another chapter, I want to say how glad we are that you are here.

You are an important part of this community. Your presence matters. As a Woodbury student, you carry both the rights and responsibilities that come with being a member of a university grounded in shared values. The choices you make here impact not only your own experience but also the wellbeing and success of those around you.

This Student Handbook was created to guide and support you. We have done our best to include the most relevant policies, expectations, and resources to help you navigate your time at Woodbury. Every student is expected to read the handbook in its entirety and to be familiar with the information inside, from academic expectations and housing policies to wellness, safety, and student conduct. If you come across anything you are unsure about or need help understanding, please do not hesitate to reach out. We are here to help.

In addition to the resources available here at Woodbury, you also have access to a wide range of services and offices through the University of Redlands. We are proud to offer this extended network of support and hope you take full advantage of it.

This year, I hope you find meaning, momentum, and community in everything you do. I hope you explore, learn, connect, and know that you are not doing it alone. We are here to support you every step of the way. I hope to meet you if I have not already. Please feel free to stop by the Student Affairs Office or email us at any time. We are always glad to connect.

Sincerely,

Eveth Gonzalez

Associate Dean of Students

student.affairs@woodbury.edu

Important Dates and Deadlines

WOODBURY UNIVERSITY 2025-2026

6-week or 8-week Intensive classes may be in session during these periods.

Please see the academic calendar webpage for any updates.

Fall Semester 2025

September 2	Classes Begin
September 2-12	Late Registration
September 2-12	Course Add/Drop Period
October 13-12	Enrichments Days (no classes)*
October 24	Last Day to Withdraw
November 26-28	Thanksgiving (campus closed)
December 8	Last Day of Classes
December 10-12	Final Examinations
December 15-19	Studio Final Reviews
December 20	End of Term

Spring Semester 2026

January 6	Classes Begin
January 5-16	Late Registration
January 5-16	Course Add/Drop Period
January 19	Martin Luther King Jr Day (no classes)
February 23-27	Spring Break (no classes)*
February 28	Last Day to Withdraw
March 27	Cesar Chavez Day observed (no classes)
April 15	Last Day of Classes (Monday classes meet)
April 16-18	Final Examinations
April 20-24	Studio Final Reviews
April 24	End of Term

Summer Session 2026

May 4	Classes Begin
May 25	Memorial Day (no classes)
June 19	Juneteenth (no classes)
July 3	Independence Day observed (no classes)

***Classes are canceled these days, but Woodbury University offices will remain open**

Academic Support Services

Academic Advisors

The professional academic advisors of the Student Success & Retention team at Woodbury University look forward to accompanying you on your journey to graduation.

Services:

- Understanding graduation requirements and degree progress with Academic Worksheet and Academic Plan (Self-Service)
- Determining course options and registration guidance each semester
- Changing class schedule, Add/Drop, Course Withdrawal and Concurrent Enrollment
- Exploring majors or minors
- Providing academic counseling and problem-solving assistance
-

Making referrals to campus resources as needed

- Assisting with course management software

Registrar's Office

The Registrar's Office provides a variety of academic services to students, faculty, and alumni. Our primary responsibilities include assisting students to register for classes, verifying student enrollment, and certifying students for graduation. We are also responsible for certifying enrollment for students receiving Veterans' benefits.

If you have questions about course offerings, major requirements, academic calendar dates, or other academic issues, please feel free to stop by and talk with us. In most cases, appointments are not necessary. Simply come to the office while on campus or call us at (818) 252- 5270. Most forms are available online at: <https://woodburyedu.sharepoint.com/SitePages/Forms.aspx>. Transcripts can be ordered from the National Student Clearinghouse: <http://getmytranscript.org/>

Tutoring Services

Tutoring Services are located in Whitten Student Center. Both in-person and virtual TEAMS appointments are available Monday through Friday. TEAMS appointments are also available on Saturdays. Students can learn how to make an appointment and find brief bios of our tutors on our websites below.

The Math, Science, & Subject Tutoring Center

Our peer-tutors provide free tutoring help in many subjects, including math, science, architecture, computer science, and more. They also offer assistance in programs such as Rhino, Revit, InDesign, Photoshop, and Illustrator. No referrals are necessary. When making an appointment, students should use the "Display Options" menu on our schedule to choose the appropriate course and tutor.

The Writing Center

Our Writing Center tutors can help students at any phase of the writing process: understanding assignments, brainstorming, organizing, formulating a thesis, developing paragraphs, research, revision, using correct citation styles, and polishing a final draft. Tutors can help with many types of writing, including research papers, essays, creative writing, personal writing, resumes, cover letters, and presentations. We also have a “written feedback” option that enables students to submit a Word or PowerPoint document and receive written comments within 24 hours.

For more information, contact
laurel.digangi@woodbury.edu

Student Conduct at Woodbury University

Core Values of Student Conduct at Woodbury University

Integrity: Woodbury University students exemplify honesty, honor, and a respect for the truth in all of their dealings.

Community: Woodbury University students build and enhance their community.

Social Justice: Woodbury University students are just and equitable in their treatment of all members of the community and act to discourage and/or intervene to prevent unjust and inequitable behaviors.

Respect: Woodbury University students show positive regard for each other, for property, and for the community.

Responsibility: Woodbury University students are given and accept a high level of responsibility to self, to others, and to the community.

Woodbury University students are responsible for knowing the information, policies and procedures outlined in this document. The University reserves the right to make changes to this code as necessary, and once those changes are posted online, they are in effect. Students are encouraged to check online for the updated versions of all policies and procedures. Email is the University's primary means of communication with students. Students are responsible for all communication delivered to their University email address.

SECTION 1: Philosophy Statement (p. 11)

SECTION 2: Jurisdiction (p. 12)

SECTION 3: Violations of the Law (p. 12)

SECTION 4: Policies, Core Values, and Behavioral Expectations (p. 13)

SECTION 5: Overview of the Conduct Process (p. 16)

SECTION 6: Student Conduct Authority (p. 19)

SECTION 7: Formal Conduct Procedures (p. 20)

Section 1: Philosophy Statement

The Woodbury University community is committed to fostering a campus environment that is conducive to academic inquiry, a productive campus life and thoughtful study and discourse. The student conduct program within the Office of Student Conduct is committed to an educational and developmental process that balances the interests of individual students with the interests of the University community.

A community exists based on shared values and principles. At Woodbury University, student members of the community are expected to uphold and abide by certain standards of conduct that form the basis of the Student Code of Conduct. These standards are embodied within a set of core values that include integrity, social justice, respect, community, and responsibility.

Each member of the University community bears responsibility for their conduct and to assume reasonable responsibility for the behavior of others. When members of the community fail to exemplify these five values by engaging in violation of the rules below, campus conduct proceedings are used to assert and uphold the Student Code of Conduct.

The student conduct process at the University is not intended to punish students; rather, it exists to protect the interests of the community and to challenge those whose behavior is not in accordance with our policies. Sanctions are intended to challenge students' moral and ethical decision-making and to help them bring their behavior into accord with our community expectations. When a student is unable to conform their behavior to community expectations, the student conduct process may determine that the student should no longer share in the privilege of participating in this community.

Students should be aware that the student conduct process is quite different from criminal and civil court proceedings. Procedures and rights in student conduct procedures are conducted with fairness to all, but do not include the same protections of due process afforded by the courts. Due process, as defined within these procedures, assures written notice and a hearing before an objective decision-maker. No student will be found in violation of University policy without information showing that it is more likely than not that a policy violation occurred and any sanctions will be

proportionate to the severity of the violation and to the cumulative conduct history of the student.

Section 2: Jurisdiction

Woodbury University students are provided a copy of the Student Code of Conduct annually in the form of a link on the University portal. Hard copies are available upon request from the Office of Student Conduct. Students are responsible for having read and abiding by the provisions of the Student Code of Conduct.

The Student Code of Conduct and the student conduct process apply to the conduct of individual students, both undergraduate and graduate, including all University affiliated student organizations. For the purposes of student conduct, the University considers an individual to be a student when an offer of admission has been extended and thereafter as long as the student has a continuing educational interest in the University.

The University retains conduct jurisdiction over students who choose to take a leave of absence, withdraw, or have graduated for any misconduct that occurred prior to the leave, withdrawal, or graduation. If sanctioned, a hold may be placed on the student's ability to re-enroll and/or graduate and all sanctions must be satisfied prior to re-enrollment eligibility. In the event of serious misconduct committed while still enrolled but reported after the accused student has graduated, the University may invoke these procedures and, should the former student be found responsible, the University may revoke that student's degree.

The Student Code of Conduct applies to behaviors that take place on campus, at University sponsored events, and may also apply off-campus when the Associate Dean of Students or designee determines that the off-campus conduct affects a substantial University interest. A substantial University interest is defined to include:

- Any situation where it appears that the student's conduct may present a danger or threat to the health or safety of themselves or others.
- Any situation that significantly impinges upon the rights, property, or achievements of self or others or significantly breaches the peace and/or causes social disorder.
- Any situation that is detrimental to the educational mission and/or interests of the University.

The Student Code of Conduct may be applied to behavior

conducted online, via email, or other electronic medium. Students should also be aware that online postings, such as blogs, web postings, chats, and social networking sites, are in the public sphere and are not private. These postings can subject a student to allegations of conduct violations if evidence of policy violations is posted online.

The University does not regularly search for this information but may take action if and when such information is brought to the attention of University officials. However, most online speech by students not involving University networks or technology will be protected as free expression and not subject to this Code, with two notable exceptions:

- A true threat, defined as "a threat a reasonable person would interpret as a serious expression of intent to inflict bodily harm upon specific individuals."
- Speech posted online about the University or its community members that causes a significant on-campus disruption.

The Student Code of Conduct applies to guests of community members whose hosts may be held accountable for the misconduct of their guests. Visitors to and guests of the University may seek resolution for violations of the Student Code of Conduct committed against them by members of the University community.

There is no time limit on reporting violations of the Student Code of Conduct; however, the longer someone waits to report an offense, the harder it becomes for University officials to obtain information and witness statements and to make determinations regarding alleged violations.

A responding student facing an alleged violation of the Student Code of Conduct is not permitted to withdraw from the University until all allegations are resolved.

Section 3: Violations of the Law

Alleged violations of federal, state, and local laws may be investigated and addressed under the Student Code of Conduct. When an offense occurs over which the University has jurisdiction, the University conduct process will usually go forward notwithstanding any criminal complaint that may arise from the same incident.

The University reserves the right to exercise its authority of interim suspension upon notification that a student is facing criminal investigation and/or complaint (additional

grounds for interim suspension are outlined below). Interim suspensions are imposed until a hearing can be held, typically within two weeks. This hearing may resolve the allegation, or may be held to determine if the interim suspension should be continued. The interim suspension may be continued if a danger to the community is posed and the University may be delayed or prevented from conducting its own investigation and resolving the allegation by the pendency of the criminal process. In such cases, the University will only delay its hearing until such time as it can conduct an internal investigation or obtain sufficient information independently or from law enforcement upon which to proceed. This delay will be no longer than two weeks from notice of the incident unless a longer delay is requested in writing by the complaining victim to allow the criminal investigation to proceed before the University process.

Students accused of crimes may request to take a leave from the University until the criminal charges are resolved. In such situations, the University procedure for voluntary leaves of absence is subject to the following conditions:

- The responding student must comply with all campus investigative efforts that will not prejudice their defense in the criminal trial.
- The responding student must comply with all interim actions and/or restrictions imposed during the leave of absence.
- The responding student must agree that, in order to be reinstated to active student status, they must first be subject to and fully cooperate with the campus conduct process and must comply with all sanctions that are imposed.

Section 4: Policies, Core Values, and Behavioral Expectations

The University considers the behavior described in the following sub sections as inappropriate for the University community and in opposition to the core values set forth in this document. These expectations and rules apply to all students, whether undergraduate or graduate. The University encourages community members to report to University officials all incidents that involve the following actions. Any student found to have committed or to have attempted to commit the following misconduct is subject to the sanctions outlined in Section 7: Conduct Procedures.

INTEGRITY: Woodbury University

students exemplify honesty, honor, and a respect for the truth in all of their dealings.

Behavior that violates this value includes, but is not limited to:

1. Falsification. Knowingly furnishing or possessing false, falsified, or forged materials, documents, accounts, records, identification, or financial instruments;
2. Academic Dishonesty. Acts of academic dishonesty as outlined in the Code of Academic Integrity;
3. Unauthorized Access. Unauthorized access to any University building (i.e., keys, cards, etc.) or unauthorized possession, duplication, or use of means of access to any University building or failing to timely report a lost University identification card or key;
4. Collusion. Action or inaction with another or others to violate the Student Code of Conduct;
5. Trust. Violations of positions of trust within the community;
6. Election Tampering. Tampering with the election of any University-recognized student organization;
7. Taking of Property. Intentional and unauthorized taking of University property or the personal property of another, including goods, services, and other valuables;
8. Stolen Property. Knowingly taking or maintaining possession of stolen property;

COMMUNITY: Woodbury University students build and enhance their community.

Behavior that violates this value includes, but is not limited to:

1. Disruptive Behavior. Substantial disruption of University operations, including obstruction of teaching, research, administration, other University activities, and/or other authorized non-University activities that occur on campus;
2. Unauthorized Entry. Misuse of access privileges to

University premises or unauthorized entry to or use of buildings, including trespassing, propping, or unauthorized use of alarmed doors for entry into or exit from a University building;

3. Trademark. Unauthorized use (including misuse) of University or organizational names and images;
4. Damage and Destruction. Intentional, reckless, and/or unauthorized damage to or destruction of University property or the personal property of another;
5. IT and Acceptable Use. Violating the University Acceptable Use and Computing Policy.
6. Weapons. Possession, use, or distribution of explosives (including fireworks and ammunition), guns (including air, BB, paintball, facsimile weapons and pellet guns), or other weapons or dangerous objects such as arrows, axes, machetes, nun chucks, throwing stars, or knives with a blade of longer than 2 ½ inches (without a valid educational purpose), including the storage of any item that falls within the category of a weapon in a vehicle parked on University property;
7. Smoking. Smoking is prohibited on campus, including but not limited to: any building owned, leased, or rented by the University, whether on or off campus, campus grounds, at events on or off campus that are Woodbury affiliated. The smoking policy is inclusive of e-cigarette, vapes, or other smoking devices. Sale of smoking materials is prohibited on any University properties.
8. Fire Safety. Violation of local, state, federal, or campus fire policies including, but not limited to: Intentionally or recklessly causing a fire which damages University or personal property, or that causes injury; failure to evacuate a University-controlled building during a fire alarm; improper use of University fire safety equipment; or tampering with or improperly engaging a fire alarm or fire detection/control equipment while on University property. Such action may result in a local fine in addition to University sanctions;
9. Animals. Animals, with the exception of animals that provide assistance (i.e., seeing-eye dogs), and pets as outlined in the Residence Life Handbook, are not permitted on campus except as permitted by law.
10. Wheeled Devices. Skateboards, roller blades, roller skates, bicycles, and similar wheeled devices are not permitted inside University buildings, or

residence halls. Additionally, skateboards and other wheeled items may not be ridden on railings, curbs, benches, or any such fixtures that may be damaged by these activities, and individuals may be liable for damage to University property caused by these activities.

SOCIAL JUSTICE: Students recognize that respecting the dignity of every person is essential for creating and sustaining a flourishing university community. They understand and appreciate how their decisions and actions impact others and are just and equitable in their treatment of all members of the community. They act to discourage and challenge those whose actions may be harmful to and/or diminish the worth of others.

Conduct that violates this value includes, but is not limited to:

1. Discrimination. Any act or failure to act that is based upon an individual or group's actual or perceived status (sex, gender, race, color, age, creed, national or ethnic origin, physical or mental ability, veteran status, pregnancy status, religion, or sexual orientation, or other protected status) that is sufficiently severe that it limits or denies the ability to participate in or benefit from the University's educational program or activities.
2. Harassment. Any unwelcome conduct based on actual or perceived status including: sex, gender, race, color, age, creed, national or ethnic origin, physical or mental disability, veteran status, pregnancy status, religion, sexual orientation, or other protected status. Any unwelcome conduct should be reported to campus officials, who will act to remedy and resolve reported incidents on behalf of the impacted party and community.
3. Hostile Environment. Sanctions can and will be imposed for the creation of a hostile environment

only when harassment is sufficiently severe, pervasive (or persistent), and objectively offensive that it unreasonably interferes with, limits, or denies the ability to participate in or benefit from the University's educational or employment program or activities.

4. Retaliatory Discrimination or Harassment. Any intentional, adverse action taken by a responding individual or allied third party, absent legitimate nondiscriminatory purposes, against a participant [or supporter of a participant] in a civil rights grievance proceeding or other protected activity under this Code.
5. Bystanding.
 - a. Complicity with or failure of any student to appropriately address known or obvious violations of the Student Code of Conduct or law;
 - b. Complicity with or failure of any organized group to appropriately address known or obvious violations of the Student Code of Conduct or law by its members.
6. Abuse of Conduct Process. Abuse or interference with or failure to comply in University processes including conduct and academic integrity hearings including, but not limited to:
 - a. Falsification, distortion, or misrepresentation of information
 - b. Failure to provide, destroying, or concealing information during an investigation of an alleged policy violation
 - c. Attempting to discourage an individual's proper participation in, or use of, the campus conduct system
 - d. Harassment (verbal or physical) and/or intimidation of a member of a campus conduct body prior to, during, and/or following a campus conduct proceeding
 - e. Failure to comply with the sanction(s) imposed by the campus conduct system
 - f. Influencing or attempting to influence another person to commit an abuse of the campus conduct system

RESPECT: Woodbury University students show positive regard for each other and for the community.

Behavior that violates this value includes, but is not limited to:

1. Harm to Persons. Intentionally or recklessly causing physical harm or endangering the health or safety of any person.
2. Threatening Behaviors:
 - a. Threat. Written or verbal conduct that causes a reasonable expectation of injury to the health or safety of any person or damage to any property.
 - b. Intimidation. Intimidation defined as implied threats or acts that cause a reasonable fear of harm in another.
3. Bullying and Cyberbullying. Bullying and cyberbullying are repeated and/or severe aggressive behaviors that intimidate or intentionally harm or control another person physically or emotionally and are not protected by freedom of expression.
4. Hazing. Defined as an act that endangers the mental or physical health or safety of a student, or that destroys or removes public or private property, for the purpose of initiation, admission into, affiliation with, or as a condition for continued membership in a group or organization. Participation or cooperation by the person(s) being hazed does not excuse the violation. Failing to intervene to prevent (and/or), failing to discourage (and/or), failing to report those acts may also violate this policy;
5. Sexual Misconduct. Includes, but is not limited to, sexual harassment, non-consensual sexual contact, non-consensual sexual intercourse, and/or sexual exploitation (See Sexual Misconduct Policy for further information);
6. Public Exposure. Includes deliberately and publicly exposing one's intimate body parts, public urination, defecation, and public sex acts.

RESPONSIBILITY: Woodbury University students are given and accept a high level of responsibility

to self, to others, and to the community.

Behavior that violates this value includes, but is not limited to:

1. Alcohol. Use, possession, or distribution of alcoholic beverages or paraphernalia except as expressly permitted by law and the University's Alcohol Policy;
2. Drugs & Controlled Substances:
 - a. Possession, cultivation, usage, sale, purchase, transportation, importation, distribution, or manufacturing of illegal drugs and other controlled substances on University property or University-sponsored programs/events are prohibited.
 - b. Use and possession of marijuana on University property or University-sponsored programs/events, regardless of medical permit/doctor's note, is prohibited.
 - c. Possession, usage, or distribution of paraphernalia related to illegal drugs and/or other controlled substances are prohibited.
 - d. Abuse, misuse, sale, and/or distribution of prescription medication, over-the-counter medications, cleaning products & other chemicals/fumes for other than their intended/prescribed uses are prohibited.
 - e. Violation of other University policies while under the influence of drugs or controlled substances is prohibited.
 - f. Inability to exercise care for one's own safety and/or the safety of others while under the influence of drugs or controlled substances is prohibited.
3. Prescription Medications. Abuse, misuse, sale, or distribution of prescription or over-the-counter medications;
4. Failure to Comply. Failure to comply with the reasonable directives of University officials or law enforcement officers during the performance of their duties and/or failure to identify oneself to these persons when requested to do so;
5. Financial Responsibilities. Failure to promptly meet

financial responsibilities to the institution, including, but not limited to; knowingly passing a worthless check or money order in payment to the institution or to an official of the institution acting in an official capacity.

6. Arrest. Failure of any student to accurately report any off-campus arrest by any law enforcement agency for any crime (including non-custodial or field arrests) to the Office of Student Conduct within 72 hours of release.
7. Other Policies. Violating other published University policies or rules, including all residence hall policies;
8. Health and Safety. Creation of health and/or safety hazards (dangerous pranks, hanging out of or climbing from/on/in windows, balconies, roofs, etc.).
9. Violations of Law. Evidence of violation of local, state, or federal laws when substantiated through the University's conduct process.

Section 5: Overview of the Conduct Process

This overview gives a general idea of how the University's campus conduct proceedings work, but it should be noted that not all situations are of the same severity or complexity. Thus, these procedures are flexible and are not exactly the same in every situation, though consistency in similar situations is a priority. The campus conduct process and all applicable timelines commence with notice to an administrator of a potential violation of University rules. The Office of Student Conduct may record hearings, inquiries, and/or conferences as deemed appropriate by the hearing officer. Students will be given notice before any recordings commence. Deliberations will not be recorded. The record will be the property of the University and maintained according to the University's record retention policy.

PROCEDURES

The below procedures provide a general overview of student conduct proceedings; however, these procedures are flexible based on the severity of the situation.

Any member of the University community may file a report against a student or student organization for violations of the Student Code of Conduct. All allegations should be in writing. The student conduct officer may act on notice of a potential violation whether a formal report is

made.

Students should be aware the criminal (police) and student conduct (University) processes are separate but may occur concurrently.

INFORMAL RESOLUTION

Step 1. Investigation

Upon receipt of the incident report, a student conduct officer will begin an investigation that will include interviews of the respondent, the complainant, and/or others as necessary. Additionally, all documentation and physical evidence will be obtained and reviewed. Upon completion of the investigation, the following may occur:

- The student conduct officer determines there is insufficient information, and the case is closed.
- The student conduct officer determines there is sufficient information and proceeds with scheduling a conduct conference (step 2).

Step 2. Notification

The respondent will receive a formal complaint of a violation through written notice. The notice will be delivered by one or more of the following methods: emailed to the student's University-issued account and/or mailed to the permanent address according to the University's record. The letter of notice will include:

- The reported violation(s) citing the Code of Student Conduct.
- The date, time, and location of the conference.

Step 3. Conference

During the conference, the student conduct officer will present the findings to the respondent. As a result, the following may occur:

- The respondent is found not responsible and the case is closed.
- The respondent accepts responsibility and/or the findings for the violation and the student conduct officer imposes sanctions.
- The respondent denies responsibility and/or rejects the findings for the violation, but has the right to appeal the decision and sanctions imposed by the

student conduct officer.

- The respondent denies responsibility for the violation and/or rejects the findings and the misconduct could result in expulsion, suspension, and/or removal from housing. The student conduct officer may then refer the case to the Student Conduct Board for formal resolution through an administrative hearing.

A respondent placed on interim suspension may request to have their case heard by the conduct officer through a conduct conference or referred to the University Committee on Student Behavior.

The student conduct officer, at their discretion, may refer a case to the University Committee on Student Behavior for resolution.

If the respondent fails to attend the conduct conference, the student conduct officer may render a decision based on the evidence available. The respondent will then forfeit their right to appeal the decision and/or sanction(s) imposed by the student conduct officer.

FORMAL RESOLUTION

The University has established appropriate student conduct panels to provide hearings concerning reported violations of the Student Code of Conduct that could result in expulsion, suspension, and/or removal from housing.

Notification

A notice will be made in writing and delivered by one or more of the following methods: emailed to the student's University-issued email account; mailed to the permanent address according to the University's record. The letter of notice will include:

- The reported violation(s) citing the Code of Student Conduct.
- The date, time, and location of the hearing.

Hearing

The student conduct officer will schedule a hearing with the student conduct panel no more than 10 business dates after the conduct conference. This may be extended when reasonably necessary. If the respondent wishes to request a delay, they must notify the student conduct staff within two (2) business days of the scheduled hearing.

The student conduct panel for each hearing will be

composed of three members from the University to include employees and students. Each student conduct panel must include at least one student. All members of the student conduct panel will be selected from the student conduct board and participate in mandatory training covering all aspects of the conduct process. Students serving must be in good academic standing with no serious conduct violations at the University.

The chief conduct officer or designee will serve as a non-voting chair for each hearing panel. The chair of the panel will conduct hearings according to the following guidelines:

- Hearings are closed to the public.
- Hearings are tape-recorded; however, deliberations of the hearing panel will remain private.
- Regarding incidents involving more than one respondent, the panel will jointly conduct a hearing. Separate findings will be made for each respondent. At the discretion of the student conduct officer, individual hearings may be permitted or as required by law.
- The complainant, respondent, and advisors will be allowed to attend the entire portion of the hearing except for the deliberation and findings. Only in cases involving violence or sexual misconduct, as it relates to Title IX, will the complainant be advised of the outcome.

All parties must submit questions to the conduct officer in writing at least two business days before the hearing. Witnesses will only attend the portion of the hearing in which they are presenting information.

- Advisors are not permitted to speak or participate directly in any student conduct hearing unless permitted by the chair of the panel.
- The panel may only rely on oral and written statements of witnesses and written reports/documents.
- After the hearing, the panel will determine by majority vote, using a preponderance of the evidence (whether it is more likely than not) the respondent violated the Code of Student Conduct and recommend sanctions.
- A written decision will be sent to the respondent within two (2) business days after the conclusion of the hearing.

If the respondent fails to attend the hearing, the University Committee on Student Behavior may render a decision based on the evidence available. The respondent will then forfeit their right to appeal the decision and/or sanction(s) imposed by the Committee.

There are certain times of the year and possible extenuating circumstances that may remove the option of the student conduct panel. During this time, a student conduct officer will adjudicate cases. The option of a student conduct panel may be removed on the following occasions:

1. When the committee is participating in training.
2. When the University is not in session.
3. During the final two weeks of the fall or spring semester.
4. During summer sessions.

APPEALS

Appeals requests are limited to the following grounds:

1. The conduct process as outlined was not adhered to during the original hearing and the break in process was substantial enough to have possibly affected the outcome.
2. To consider new evidence unavailable during the original hearing or investigation that could substantially impact the original finding or sanction. A summary of this new evidence and its potential impact must be included.

The notice of appeal must contain, at a minimum, a statement of grounds for appeal and a summary statement of the facts supporting such grounds.

Upon receipt of the appeal, the Sr. VP of Academic Affairs will review and provide a written decision within five business days. The respondent may request a meeting with the VP to further discuss the appeal; however, the decision is made based on the written information submitted and is final.

DURING THE CONDUCT PROCESS

Responsibilities

All students are responsible for being knowledgeable about

the information contained in the Student Code of Conduct. Hard copies are available upon request from the Office for Student Conduct located in the Whitten Student Center.

University email serves as the official communication with students. It is the responsibility of all students to maintain and monitor their University email regularly to stay abreast of student conduct proceedings.

Rights of the Accused (Respondent)

- The right to confidentiality of educational records pursuant to Family Educational Rights and Privacy Act (FERPA) of 1974.
- The right to be informed of the charges against them in writing.
- The right to have a support person or advisor present during student conduct proceedings. This person may not actively participate in the hearing, but may give advice to the complainant.
- The right to request, in advance, a copy of the incident report.
- The right to call a reasonable number of witnesses. Names of the witnesses must be provided to the student conduct officer at least three business days prior to the hearing.
- The right not to appear or to remain silent at the hearing. In the event the respondent does not appear at the hearing, after proper notification, the evidence in support of the violation will be presented, considered, and adjudicated.
- The right to a fair and impartial hearing.

Rights of Victims (Complainant)

- The right to have a support person or advisor present during student conduct proceedings. This person may not actively participate in the hearing, but may give advice to the complainant.
- The right to be informed of the outcome in cases involving violence and sexual misconduct as it relates to Title IX.
- The right to a fair and impartial hearing.

Section 6: Student Conduct Authority

Authority

The Sr. VP of Academic Affairs is vested with the authority over student conduct by the president. The Sr. VP of Academic Affairs appoints a director of Student Conduct to oversee and manage the student conduct process. The Sr. VP of Academic Affairs and director of Student Conduct may appoint administrative hearing and appeals officers as deemed necessary to supervise the student conduct process efficiently and effectively. The director of Student Conduct or designee will assume responsibility for the investigation of an allegation of misconduct to determine if the complaint has merit.

Gatekeeping

No complaint will be forwarded for a hearing unless there is reasonable cause to believe a policy has been violated. Reasonable cause is defined as some credible information to support each element of the offense, even if that information is merely a credible witness or a victim's statement. A complaint wholly unsupported by any credible information will not be forwarded for a hearing.

Conflict Resolution Options

The director of Student Conduct has discretion to refer a complaint for mediation or other forms of appropriate conflict resolution. All parties must agree to conflict resolution and to be bound by the decision with no review/appeal. Any unsuccessful conflict resolution can be forwarded for formal processing and hearing; however, at no time will complaints of physical sexual misconduct or violence be mediated as the sole institutional response. The director of Student Conduct may also suggest that complaints that do not involve a violation of the Code of Student Conduct be referred for mediation or other appropriate conflict resolution.

Interpretation and Revision

The director of Student Conduct will develop procedural rules for the administration of hearings that are consistent with provisions of the Student Code of Conduct. Material deviation from these rules will, generally, only be made as necessary and will include reasonable advance notice to the parties involved, either by posting online and/or in the form of written communication. The director of Student

Conduct may vary procedures with notice upon determining that changes to law or regulation require policy or procedural alterations not reflected in this Code. The director of Student Conduct may make minor modifications to procedure that do not materially jeopardize the fairness owed to any party. Any question of interpretation of the Student Code of Conduct will be referred to the Sr. VP of Academic Affairs, whose interpretation is final. The Student Code of Conduct will be updated annually under the direction of the director of Student Conduct with a comprehensive revision process being conducted every three years.

Section 7: Formal Conduct Procedures

University as Convener

The University is the convener of every action under this code. Within that action, there are several roles. The responding student is the person who is alleged to have violated the Code. The party bringing the complaint, who may be a student, employee, visitor, or guest, may choose to be present and participate in the process as fully as the responding student. There are witnesses who may offer information regarding the allegation. There is an investigator(s) whose role is to present the allegations and share the evidence that the University has obtained regarding the allegations.

Group Violations

A student group or organization and its officers and membership may be held collectively and individually responsible when violations of this code by the organization or its member(s):

- Take place at organization-sponsored or co-sponsored events, whether sponsorship is formal or tacit.
- Have received the consent or encouragement of the organization or of the organization's leaders or officers.
- Were known or should have been known to the membership or its officers.

Hearings for student groups or organizations follow the same general student conduct procedures. In any such action, individual determinations as to responsibility will be made and sanctions may be assigned collectively and individually and will be proportionate to the involvement

of each individual and the organization.

Amnesty

1. For Victims: The University provides amnesty to victims who may be hesitant to report to University officials because they fear that they themselves may be accused of minor policy violations at the time of the incident. Educational options will be explored, but no conduct proceedings or conduct record will result.
2. For Those Who Offer Assistance: To encourage students to offer help and assistance to others, Woodbury University pursues a policy of amnesty for minor violations when students offer help to others in need. At the discretion of the director of Student Conduct, amnesty may also be extended on a case-by-case basis to the person receiving assistance. Educational options will be explored, but no conduct proceedings or conduct record will result.
3. For Those Who Report Serious Violations: Students who are engaged in minor violations, but who choose to bring related serious violations by others to the attention of the University are offered amnesty for their minor violations. Educational options will be explored, but no conduct proceedings or record will result.
4. Safe Harbor: The University has a Safe Harbor rule for students. The University believes that students who have a drug and/or addiction problem deserve help. If any University student brings their own use, addiction, or dependency to the attention of University officials outside the threat of drug tests or conduct sanctions and seeks assistance, a conduct complaint will not be pursued. A written action plan may be used to track cooperation with the Safe Harbor program by the student. Failure to follow the action plan will nullify the Safe Harbor protection and campus conduct processes will be initiated.

Amnesty requests are at the sole discretion of the director of Student Conduct and may be revoked if in the course of a connected investigation information becomes available that the requesting student made the request in bad faith. The Amnesty Policy does not prevent action by police or other law enforcement personnel acting independently of the University.

Notice of Alleged Violation

Any member of the Woodbury University community,

visitor, or guest may allege a policy violation(s) by any student for misconduct under this Code.

Notice may be given to the director of Student Conduct or designee and/or to the Title IX coordinator when appropriate. Additionally, administrators may act on notice of a potential violation whether a formal allegation is made or not. All allegations can be submitted by a victim or a third party and should be submitted as soon as possible after the offending event occurs. The University has the right to pursue an allegation or notice of misconduct on its own behalf and to serve as convener of the subsequent campus conduct process.

The director of Student Conduct or designee will assume responsibility for the investigation of the alleged violation as described in the sub-section below.

Investigation

Investigation is referenced in both steps 1 and 2 above, with detailed investigation procedures described in this sub-section. The director of Student Conduct will appoint an investigator(s) for allegations under this Code. The investigator(s) will take the following steps, if not already completed by the director or designee:

1. Initiate any necessary remedial actions on behalf of the victim (if any).
2. Determine the identity and contact information of the party bringing the complaint, whether that person is the initiator of the complaint, the alleged victim, or a University proxy or representative.
3. Conduct an immediate preliminary investigation to identify an initial list of all policies that may have been violated, to review the history of the parties, the context of the incident(s), any potential patterns, and the nature of the complaint.
 - a. If the victim is reluctant to pursue the complaint, determine whether the complaint should still be pursued and whether sufficient independent evidence could support the complaint without the participation of the victim.
 - b. Notify the victim of whether the University intends to pursue the complaint regardless of their involvement, and inform the victim of their rights in the process and option to become involved if they so choose.
- c. Preliminary investigation usually takes between 2-14 business days to complete.
4. If indicated by the preliminary investigation and authorized by the director of Student Conduct, conduct a comprehensive investigation to determine if there is reasonable cause to believe that the responding student violated University policy and to determine what specific policy violations should serve as the basis for the complaint;
 - a. If there is insufficient evidence through the investigation to support reasonable cause, the allegations will be closed with no further action taken.
 - b. A comprehensive investigation usually takes between one day and two weeks.
5. Commence a thorough, reliable, and impartial investigation by developing a strategic investigation plan, including a witness list, evidence list, intended timeframe, and order of interviews for all witnesses and the responding student, who may be given notice of the interview prior to or at the time of the interview.
 - a. Prepare the notice of alleged policy violation(s) on the basis of the reasonable cause determination, which may be delivered prior to, during, or after the responding student is interviewed, at the discretion of the investigator(s).
6. Interview all relevant witnesses, summarize the information they are able to share and, when appropriate, have each witness sign the summary to verify its accuracy.
7. Obtain all documentary evidence and information that is available.
8. Obtain all physical evidence that is available.
9. Complete the investigation promptly by analyzing all available evidence without unreasonable deviation from the intended timeline.
10. Make a finding, based on a preponderance of the evidence, whether a policy violation is more likely than not.
11. Present the investigation report and findings to the

responding student.

12. Share the findings and update the party bringing the complaint on the status of the investigation and the outcome.

Interim Action

Under the Student Code of Conduct, the director of Student Conduct or designee may impose restrictions and/or separate a student from the community pending the scheduling of a campus hearing on alleged violation(s) of the Student Code of Conduct when a student represents a threat of serious harm to others, is facing allegations of serious criminal activity, to preserve the integrity of an investigation, to preserve University property, and/or to prevent disruption of or interference with the normal operations of the University. Interim actions can include separation from the institution or restrictions on participation in the community for no more than 20 business days pending the scheduling of a campus hearing on alleged violation(s) of the Student Code of Conduct. In cases where the University is not in normal session, an extended process may be engaged in order to provide all interested parties with the opportunity to engage in the process. A student who receives an interim suspension may request a meeting with the director of Student Conduct or designee to demonstrate why an interim suspension is not merited. Regardless of the outcome of this meeting, the University may still proceed with the scheduling of a campus hearing.

During an interim suspension, a student may be denied access to University housing and/or the University campus/facilities/events. As determined appropriate by the director of Student Conduct, this restriction may include classes and/or all other University activities or privileges for which the student might otherwise be eligible. At the discretion of the director of Student Conduct and with the approval of, and in collaboration with, the appropriate dean(s), alternative coursework options may be pursued to ensure as minimal an impact as possible on the responding student.

Involuntary Withdrawal Policy

A student who exhibits behavior:

- That indicates the student is unable to or unwilling to carry out substantial self-care obligations
- Where current medical knowledge and/or best available objective evidence indicates that the student

poses a significant risk to the health or safety of others

- Where the student poses an actual risk to their own safety not based on mere speculation, stereotypes, or generalizations about individuals with disabilities
- That poses a significant risk of damage to property
- That is disruptive to the normal educational processes of the University (including activities in University owned housing)
- That renders them incapable of achieving academic goals,

May be administratively withdrawn from the University. An involuntary withdrawal may be implemented by the associate dean of Students or designee in consultation with Academic Affairs, the Counseling Center, and/or Disability and Accessibility Services. In most cases, an involuntary withdrawal will be immediate and shall be for a reasonable length of time. Note that at any time prior to the implementation of an involuntary withdrawal, a student may choose to withdraw voluntarily. If a student wishes to appeal such a decision, they must submit an appeal in writing, within five business days, to the Sr. VP of Academic Affairs. The appeal decision will be made by the Sr. VP of Academic Affairs.

Decisions regarding involuntary withdrawal will be based on observations of student conduct, actions, and statements, not based on knowledge or belief that the student has a disability. Before placing any student with a disability on a mandatory withdrawal, Woodbury University will do an individualized assessment to determine if there are reasonable accommodations that would permit the student to continue to participate in Woodbury University's campus community without being withdrawn. Decisions may be made in consultation with a non-Woodbury professional qualified to interpret the information and will include consideration of reasonable accommodations. When a student is involuntarily withdrawn from the University, the student shall be provided with the following in writing:

- The reason(s) for this action
- Information regarding the student's eligibility for any tuition and/or fee refund
- Information regarding any impact this action may have upon the student's current grades and academic progress

- Conditions that must be met prior to the student's request for re-enrollment as well as the earliest date at which the student may re-enroll providing all conditions are met
- Information regarding the student's presence on campus or use of University services/facilities
- Results of non-compliance with the treatment recommendations for the student's academic future at Woodbury University (see below)

The written plan outlined above may be subject to amendment as determined by the associate dean of Students or designee.

A student who is involuntarily withdrawn from the University must reapply for admission to the University in order to resume their studies.

Although this policy is not intended to be punitive, invoking the policy does not imply that the student will be exempt from regular disciplinary action according to the policies governing the University community Student Code of Conduct as outlined in the Student Handbook.

Conduct Sanctions

One or more of following sanctions may be imposed upon any student for any single violation of the Code of Student Conduct:

1. **Warning:** An official written notice that the student has violated University policies and/or rules and that more severe conduct action will result should the student be involved in other violations while the student is enrolled at the University.
2. **Restitution:** Compensation for damage caused to the University or any person's property. This could also include situations such as failure to return a reserved space to proper condition—labor costs and expenses. This is not a fine but, rather, a repayment for labor costs and/or the value of property destroyed, damaged, consumed, or stolen.
3. **Fines:** Reasonable fines may be imposed.
4. **Community Service Requirements:** For a student or organization to complete a specific supervised service.
5. **Loss of Privileges:** The student will be denied specified privileges for a designated period.

6. **Confiscation of Prohibited Property:** Items whose presence is in violation of University policy will be confiscated and will become the property of the University. Prohibited items may be returned to the owner at the discretion of the director of Student Conduct.
7. **Behavioral Requirement:** This includes required activities including, but not limited to, seeking academic counseling or substance abuse screening, writing a letter of apology, etc.
8. **Educational Program:** Requirement to attend, present, and/or participate in a program related to the violation. It may also be a requirement to sponsor or assist with a program for others on campus to aid them in learning about a specific topic or issue related to the violation for which the student or organization was found responsible. Audience may be restricted.
9. **Restriction of Visitation Privileges:** May be imposed on a resident or non-resident student. The parameters of the restriction will be specified.
10. **University Housing Probation:** Official notice that, should further violations of Residence Life or University policies occur during a specified probationary period, the student may immediately be removed from University housing. Regular probationary meetings may also be imposed.
11. **University Housing Reassignment:** Reassignment to another University housing assignment. Residential Life personnel will decide on the reassignment details.
12. **University Housing Suspension:** Removal from University housing for a specified period after which the student is eligible to return. Conditions for readmission to University housing may be specified. Under this sanction, a student is required to vacate University housing within 24 hours of notification of the action, though this deadline may be extended upon application to and at the discretion of the director of Housing and Residence Life. This sanction may be enforced with a trespass action if deemed necessary. Prior to reapplication for University housing, the student must gain permission from the director of Housing and Residence Life or designee. This sanction may include restrictions on visitation to specified buildings or all University housing during the suspension.
13. **University Housing Expulsion:** The student's

privilege to live in or visit any University housing structure is revoked indefinitely. This sanction may be enforced with a trespass action if deemed necessary.

14. **University Probation:** The student is put on official notice that, should further violations of University policies occur during a specified probationary period, the student may face suspension or expulsion. Regular probationary meetings may also be imposed.
15. **Eligibility Restriction:** The student is deemed “not in good standing” with the University for a specified period of time. Specific limitations or exceptions may be granted by the director of Student Conduct and terms of this conduct sanction may include, but are not limited to, the following:
 - a. Ineligibility to hold any office in any student organization recognized by the University or hold an elected or appointed office at the University.
 - b. Ineligibility to represent the University to anyone outside the University community in any way including participating in study abroad programs, attending conferences, or representing the University at an official function, event.
16. **University Suspension:** Separation from the University for a specified minimum period, after which the student is eligible to return. Eligibility may be contingent upon satisfaction of specific conditions noted at the time of suspension. The student is required to vacate the campus within 24 hours of notification of the action, though this deadline may be extended upon application to and at the discretion of the director of Student Conduct. During the suspension period, the student is banned from University property, functions, events, and activities without prior written approval from the director of Student Conduct. This sanction may be enforced with a trespass action as necessary. This sanction will be noted as a conduct suspension on the student’s official academic transcript.
17. **University Expulsion:** Permanent separation from the University. The student is banned from University property and the student’s presence at any University-sponsored activity or event is prohibited. This action may be enforced with a trespass action as necessary. This sanction will be noted as a conduct expulsion on the student’s official academic transcript.

18. **Other Sanctions:** Additional or alternate sanctions may be created and designed as deemed appropriate to the offense with the approval of the director of Student Conduct or designee.

The following sanctions may be imposed upon groups or organizations found to have violated the Student Code of Conduct:

1. One or more of the sanctions listed above.
2. Deactivation, derecognition, loss of all privileges (including status as a University registered group/organization) for a specified period of time.

Parental Notification

The University reserves the right to notify the parents/guardians of dependent students regarding any conduct situation, particularly alcohol and other drug violations. The University may also notify parents/guardians of non-dependent students who are under the age of 21 of alcohol and/or other drug violations. Parental notification may also be utilized discretionarily by administrators when permitted by FERPA or consent of the student.

Notification of Outcomes

The outcome of a campus hearing is part of the education record of the responding student and is protected from release under the Federal Education Rights and Privacy Act (FERPA), except under certain conditions. As allowed by FERPA, when a student is accused of a policy violation that would constitute a “crime of violence” or forcible or non-forcible sex offense, the University will inform the alleged victim/party bringing the complaint in writing of the final results of a hearing regardless of whether the University concludes that a violation was committed. Such release of information may only include the alleged student’s/responding student’s name, the violation committed, and the sanctions assigned (if applicable). In cases of sexual misconduct and other offenses covered by Title IX, only, the rationale for the outcome will also be shared with all parties to the complaint in addition to the finding and sanction(s).

In cases where the University determines through the student conduct process that a student violated a policy that would constitute a “crime of violence” or non-forcible sex offense, the University may also release the above information publicly and/or to any third party. FERPA defines “crimes of violence” to include:

1. Arson

2. Assault offenses (includes stalking)
3. Burglary
4. Criminal Homicide—manslaughter by negligence
5. Criminal Homicide—murder and
6. non-negligent manslaughter
7. Destruction/damage/vandalism of property
8. Kidnapping/abduction
9. Robbery
10. Forcible sex offenses
11. Non-forcible sex offenses

Failure to Complete Conduct Sanctions

All students, as members of the University community, are expected to comply with conduct sanctions within the timeframe specified in the hearing decision. Failure to follow through on conduct sanctions by the date specified, whether by refusal, neglect, or any other reason, may result in additional sanctions and/ or suspension from the University. In such situations, resident students will be required to vacate University housing within 24 hours of notification by the director of Student Conduct, though this deadline may be extended upon application to and at the discretion of the director of Housing and Residence Life and/or the director of Student Conduct. A suspension will only be lifted when compliance with conduct sanctions is satisfactorily achieved. This determination will be made by the director of Student Conduct. In the case of an organization, being “withdrawn” is equated with loss of University recognition as a registered student organization. To re-enroll or regain recognition as an organization, a student/group must have satisfactorily completed all (including any additionally assigned) conduct sanctions. This determination will be made by the associate dean or designee.

Students who graduate with outstanding sanctions may be considered “not in good standing” with the University and restricted from returning to campus until the required conditions are met.

Appeal Review Procedures

Any party may request an appeal of the decision by filing a

written request to the Sr. VP of Academic Affairs, subject to the procedures outlined below. All sanctions imposed by the original hearing body remain in effect, and all parties should be timely informed of the status of requests for appeal, the status of the appeal consideration, and the results of the appeal decision.

Grounds For Appeal Requests

Appeals requests are limited to the following grounds:

1. The conduct process as outlined was not adhered to during the original hearing and the break in process was substantial enough to have possibly affected the outcome.
2. To consider new evidence unavailable during the original hearing or investigation that could substantially impact the original finding or sanction. A summary of this new evidence and its potential impact must be included.

Appeals must be filed in writing with the Sr. VP of Academic Affairs within five business days of the notice of the outcome to the hearing, barring exigent circumstances. Any exceptions are made at the discretion of the Sr. VP of Academic Affairs and, when appropriate, the Title IX coordinator.

The Sr. VP of Academic Affairs will share the appeal by one party with the other party (parties) when appropriate under procedure or law (i.e., if the responding student appeals, the appeal is shared with the complainant, who may also wish to file a response, request an appeal on the same grounds or different grounds). The Sr. VP of Academic Affairs will refer the request(s) to the University’s designated appeals review officer, appointed by Sr. VP of Academic Affairs. The Appeal Officer will also draft a response memorandum to the appeal request(s), based on the officer’s determination that the request(s) will be granted or denied and why.

The appeals review officer will conduct an initial review to determine if the appeal request meets the limited grounds and is timely. They may consult with the director of Student Conduct and/or Title IX coordinator on any procedural or substantive questions that arise.

If the appeal is not timely or substantively eligible, the original finding and sanction will stand and the decision is final. If the appeal has standing, the appeals review officer determines whether to refer the appeal to the University Committee on Student Behavior or to remand it to the original decision-maker(s), typically within three to five

business days. Where the original decision-maker may be unduly biased by a procedural or substantive error, a new hearing officer(s) will be designated to reconsider the matter, which can in turn be appealed once. Full rehearings by the University Committee on Student Behavior are not permitted. Where new evidence is presented or the sanction is challenged, the appeals review officer will determine if the matter should be returned to the original decision-maker for reconsideration or if it should be reviewed by the University Committee on Student Behavior with instruction on the parameters regarding institutional consistency and any applicable legal guidelines. In review, the original finding and sanction are presumed to have been decided reasonably and appropriately, thus the burden is on the appealing party(ies) to show clear error. The University Committee on Student Behavior must limit its review to the challenges presented.

On reconsideration, the University Committee on Student Behavior or original decision-maker may affirm or change the findings and/or sanctions of the original hearing body according to the permissible grounds.

All decisions of the University Committee on Student Behavior are to be made within five days of submission to the Panel and are final, as are any decisions made by the original hearing body, director of Student Conduct or Title IX coordinator as the result of reconsideration consistent with instructions from the appeals review officer.

The University Committee On Student Behavior

Three-member University Committee on Student Behavior are drawn from the hearing panel pool with the following requirements to serve:

1. They did not serve on the Panel for the initial hearing.
2. They were not involved in the investigation in any way.
3. They have been properly trained in appeals procedures.

The appeals review officer will have final authority to approve all those serving on the panel. The parties may challenge a panelist(s) on the basis of potential bias, and any panelist who cannot render an impartial decision must recuse themselves. The appeals review officer will make the determination as to the validity of any challenge or need for recusal. In the event of a recusal from the panel,

the appeals review officer will solicit a replacement from the pool of panelists.

The director of Student Conduct or designee serves as the non-voting advisor to the panel, with responsibility for training the panel, conducting preliminary investigations, and ensuring a fair process for the complainant and responding student.

The presumptive stance of the University is that all decisions made and sanctions imposed by the original decision-maker are to be implemented during the appellate process. At the discretion of the director of Student Conduct, and in consultation with the Title IX coordinator when necessary, implementation of sanctions may be stayed pending review only in extremely exigent circumstances. This does not include proximity to graduation, end of term, or exams. Instead, it refers to an overwhelming likelihood, as determined by the appeals review officer and director of Student Conduct, in consultation, that the appeal would result in a reversal of the finding and/or substantial modification of the sanctions.

Disciplinary Records

All conduct records are maintained by the University for seven years from the time of their creation except those that result in separation (suspension or expulsion, including from housing) and those that fall under Title IX, which are maintained indefinitely.

Student Involvement

E-Sports (p. 27)

Student Organizations (p. 29)

Student Organization Fundraising (p. 31)

Off-Campus Travel Instructions for Trip Coordinators
(p. 33)

E-Sports

Welcome to Woodbury Esports

Woodbury University's Esports Program is a competitive and inclusive environment where students develop leadership, teamwork, gaming, and social skills through structured gameplay.

Mission Statement

The mission of Woodbury Esports is to foster academic excellence, personal growth, and community engagement through competitive gaming / esports. We emphasize collaboration, integrity, and strategic thinking both in and out of game.

Core Values

-

Teamwork: We succeed together through cooperation and collaboration.

-

Integrity: We compete fairly and respectfully, upholding the values of sportsmanship.

-

Personal Growth: We grow as students, people, and as competitors.

-

Inclusion: We welcome all skill levels and backgrounds.

-

Excellence: We pursue mastery in game, academics, and leadership.

Program Structure

Teams, Titles, & Activities:

Varsity and club level activities are offered in the following titles and activities, as well as additional titles as need / interest arises:

- VALORANT

- Overwatch 2

- Super Smash Bros.

- Hearthstone

- Rocket League

- Cosplay

- Speedrunning

- Content Creation

-

League of Legends

Tryouts & Eligibility:

All students must be enrolled full-time and maintain a minimum 2.5 GPA. Tryouts are held at the start of the semester. Team selections are based on skill, communication, sportsmanship, and availability.

Practices and Matches:

Practices are held twice per week with an additional day of VOD review. Matches are held weekly in the respective title's publisher supported tournaments as well as in additional national third-party tournaments such as PlayFly, NACE, and LAN events.

Player Expectations

- Maintain academic eligibility and maintain good standing with the university.

-

Attend all practices, matches, and team meetings unless a pre-approved exception occurs.

-

Demonstrate respect to teammates, opponents, and coaching staff.

-

Avoid toxic behavior, harassment, and unsportsmanlike conduct across all platforms.

Facilities

The Woodbury Esports Arena is located in Miller Hall, or M101 (Game Lab). The space is equipped with high performance PCs, consoles, and serves as a dedicated practice area for all students.

Get Involved

To Join: Email joe_jacko@redlands.edu or visit [Apply for Admission - Woodbury University](#) to apply.

To Watch: Follow us on [Twitch](#), [Discord](#), and [Instagram](#) for live streams, events, and updates.

Student Organizations

Educational experiences at Woodbury extend beyond the classroom. Student organizations create opportunities to develop leadership skills, meet new people, have fun, and engage in professional development and networking. Student interest drives the development of each organization—find one that matches your interests, or you are welcome to start a new one!

Student Organizations

All student organizations using the Woodbury University name in any capacity are required to be registered with Student Affairs.

Privileges of Registered Student Organizations

1. Present ideas, information, and suggestions on topics of concern to the University faculty, students, administration, and Board of Trustees.
2. Request funding for Associated Students of Woodbury University (ASWU) events in accordance with Organization Allocations Committee (OAC) guidelines.
3. Pursue activities and directions of interest to members, if they are legal, ethical, and not in violation of any University policies or procedures.
4. Advertise and promote the group and its activities on campus and in campus publications with approval from Student Affairs.
5. Limited use of campus copying and duplicating services with approval of Student Affairs for materials related to student organization business.
6. Hold fundraisers for the organization or charitable causes. All fundraising must be approved by Student Affairs.
7. Create and link student organization website to the Woodbury University website according to university procedures (see Student Affairs).

Responsibilities of Registered Student Organizations

1. Adhere to all federal, state, and local laws.

2. Read, understand, and adhere to all University policies and procedures.
3. Understand and follow all University procedures for the use of campus services, such as printing, mailing, posting, facility reservations, financial services, etc. To be a recognized student organization at Woodbury University, the organization must attend all ASWU meetings and adhere to ASWU policies and procedures.
4. Maintain an account in the Business Office through which funds may be deposited and withdrawn according to university procedures. Student Affairs may revoke privileges of any organization in debt.
5. Promote and foster the educational and developmental mission of the University and Student Affairs.
6. Respect the rights and privacy of other groups and individuals in pursuit of their plans, goals, and activities.
7. In all organizational activities, be mindful of the interests and needs of the total membership of the organization as well as the entire University community.
8. Have a minimum of four active officers (a president, treasurer, and two other officers of the organization's choosing) in addition to a membership body. This is to ensure the organization's longevity, reduce officer burnout, and increase involvement and buy-in from the student body.
9. No student may hold an executive board office in a student organization while on student conduct or academic probation or have been on academic warning for two or more consecutive semesters.
10. Register regular meetings for membership through the Facility Reservation and Event Authorization (FREA) process.
11. Participate in official campus-wide events including, but not limited to, Week of Welcome and Woodstock.
12. Be responsible for themselves and their guests at all group functions and at university events in which the group participates.
13. Have a full-time (including participating adjuncts) faculty/staff advisor. Organizations must consult

regularly with their advisor(s) and keep them informed of all relevant plans and activities. The advisor's signature is required on all requests for ASWU funding, financial transactions, and Facility Reservation and Event Authorizations.

14. Pay all financial obligations in a timely manner from the organization's available funds.
15. Have representation at Student Organization Orientations, organized through Student Affairs.
16. Have representation at all ASWU meetings (i.e., Organization Allocation Committee Training).
17. Have organization representation at meetings and training deemed mandatory by Student Affairs.
18. Check and use appropriately the organization's official Woodbury student organization email account on a regular basis to ensure efficient and accurate communication.

Violations by Registered Student Organizations

1. In the event of an alleged violation, the Designee for Student Affairs will contact the organization's president and advisor(s).
2. A governing student council (such as Greek Life Association or ASWU) may hold its own concurrent hearing separate from the University conduct process.
3. Individual representatives of a student organization may face charges independent of the organization. Refer to the Conduct Process section of this handbook for further information regarding violations by Registered Student Organizations.

Reinstatement of Inactive Student Organizations

Student organizations that fail to renew and re-register themselves each fall and spring semester are deemed inactive by Student Affairs and ASWU. Reinstatement allows inactive student organizations to become active again if the student organization was inactive for no more than 12 months as of the date it was last deemed active. Whenever a student organization has been inactive for more than 12 months, the organization must submit a new, current Student Organization Registration Renewal Packet to Student Affairs. The organization will then be eligible

for ASWU-OAC funding as well as access to the student organization account with the Business Office and must assume all debts and credits associated.

New Student Organizations

If several students have an interest or concern not met by one of the existing student organizations, it is possible to start a new group. The first step in this process is for a student to identify several students with the same interests. The minimum number of students required to start an organization is three (3). Then the group should meet with Student Affairs to begin developing a constitution and complete the necessary registration forms. The Designee for Student Affairs will work with the students to develop a foundational constitution, mission, leadership, and purpose. Once registration has been approved, the new student organization may seek recognition through the ASWU.

Unrecognized Student Groups

Woodbury University encourages students to affiliate with registered student organizations. However, sometimes student organizations lose recognition for inactivity and/or violation of campus policies. These groups lose all University privileges afforded to student organizations and may not participate in any University functions (including Welcome Week etc.). Sometimes these unrecognized student groups attempt to operate without university support or oversight. Individual students and recognized organizations may not affiliate with nor support unrecognized student groups in any way (including attending events, giving or loaning funds or resources, advertising events, etc.).

Student Organization Events

Organizations must register for all events, whether on- or off- campus, through the FREA process. Events will be considered student organization events if one or more of the following criteria are met:

- The event is planned during an organization meeting.
- The organization or the University's name is attached to the event.
- The event utilizes funds through any of the organization's accounts.
- The event is advertised on campus or through any campus-affiliated venues.

- 50% or more of the organization's members attend.

When in doubt, organizations should consult with the Designee of Student Affairs.

Student Organization Fundraising

Definition of Fundraising, fundraising is defined as the collection of money through donations from individuals, companies, or programming for the purposes of generating charitable donations.

Soliciting Donations for Student Organizations

1. Organizations must schedule an appointment with the Senior Development & Alumni Affairs if they wish to solicit donations from off-campus entities. Woodbury University has existing sponsorships that may prevent student organizations from securing conflicting sponsors. Additionally, the University has well-established relationships with several off-campus entities (individuals, companies, trusts, etc.) that must be observed.
2. Donations may be monetary gifts or in-kind items.
3. Cash, items, or services are not considered donations if the donor receives something in return (promotion of a business, product, or service; on-campus flyer distribution; etc.). In these cases, only listing business names on programs or banners as sponsors is permitted.
4. Student organizations unique to Woodbury (not affiliated with national organizations) fall under the University's 501(c) tax ID status. National fraternities/sororities and other national academic organizations have their own tax status and should contact their headquarters to obtain tax information.
5. Woodbury does not provide advice to donors. Donors should consult their professional tax advisors.
6. Check should be made payable to Woodbury University.
7. All charitable funds raised must be deposited into student organizations' campus accounts through the Senior Development & Alumni Affairs, NOT through the Business Office.
8. Be careful to represent Woodbury appropriately when

communicating with potential donors:

- Follow guidelines for the proper use of the University seal, logo, and other visual media.
- Use proper grammar.
- Follow-up with written acknowledgment in a note or card.

Scholarships

1. Student organization-sponsored scholarships open to specific groups (all students, all Animation majors) must total at least \$2,500.
2. Endowed scholarships must be a minimum of \$50,000.
3. Awarding scholarships are determined and managed by the Financial Aid Office.

Donations from Woodbury Departments

Money should not be transferred from a university department into a student organization's account. Departments may support student organizations by purchasing goods or services on their behalf.

Soliciting Donations for a Charity

1. Each charitable organization must submit a statement of support on an official letterhead to Student Affairs acknowledging that the fundraising will occur on its behalf and indicating the expected date of receipt of the donations
2. Donations may only be made to charitable organizations that provide their tax ID number and proof of 501(c)(3) status.
3. University funds, including funds from ASWU, can never be donated to charitable organizations. Only money that has been specifically raised for a charity can be donated to that specific charity.
4. Checks should be made payable to the charitable organization.

Cash collected for a charity should be deposited through the Business Office immediately, the deposit receipt is attached to a check request form so that payment may be made to the charitable organization.

Fundraising Events (To Raise Money for Student Organizations or Charities)

1. Fundraising activities must align with the University's educational mission and the organization's purpose.
2. All fundraisers must be pre-approved through the FREA process.
3. Educational information about the student/ charitable organization should be made available during the event.
4. Only net proceeds from a fundraising event may be donated to charitable organizations. For example, if an event costs \$500 to implement and \$1000 is raised, \$500 must be donated to the charity. All fundraiser event advertisements must indicate that net proceeds will go to charity.

Prohibited Methods of Fundraising

1. Fundraising events where people or their services are auctioned/sold.
2. Bake sales utilizing foods prepared at home.
3. Solicitation by credit card companies.
4. Door-to-door fundraising in residence halls or campus offices.
5. Email blasts to any portion of the campus community.
6. Fundraising for any candidate for political office or any political party.
7. Contests based on chance (i.e., 50/50 raffles, raffles not conforming to the description below) because they are considered lotteries and under California law, only the California State Lottery may operate a lottery. Contests based on skill (i.e., business plan competition, basketball tournaments, logo design competitions) are permitted.

Raffles

1. 50/50 raffles, in which monetary donations grant entry into raffles for half of the total raised profits, are prohibited.

2. Items donated for raffle may be considered in-kind gifts.

3. Raffles are permitted under certain conditions:

- The raffle must be used to fund charitable work.
- At least 90% of the raffle proceeds must be used to support California-based charities.
- Each ticket must have a detachable coupon or stub marked with a matching identifier.
- Winners of prizes must be determined by drawing among the tickets.
- The drawing must be conducted in California and performed/supervised by an adult.
- Law forbids the use of gaming devices or the sale of raffle tickets at a racetrack, gambling establishment, satellite-wagering facility, or on the internet

Off-Campus Travel Instructions for Trip Coordinators

1. The guidelines below and applicable forms should be distributed to students prior to the date of departure to provide ample time for documents to be reviewed and completed.
2. Not all travel forms are required for every type of off-campus travel.
 - a. Travel Authorization for Student Trips – Always required. To be completed by the appropriate trip coordinator (Woodbury employee) who will obtain necessary approvals.
 - b. Guidelines for Student Travel – Always required. Each student has to sign this form.
 - c. Liability Release & Indemnification and Student Medical Information and Release Form – Each student is required to complete this form for off-campus travel that is overnight and/or involves risk.
 - d. Driver Safety Regulations and Agreement – Only required when a student drives another student to and/or from Woodbury University off-campus activity. Each driver must complete this form and attach a copy of their valid driver's license. This form must be completed regardless of ownership of the vehicle.
3. The trip coordinator should retain copies of forms while traveling and submit originals to Student Affairs 30 days prior to the date of departure.

Attendance

Students participating in any off-campus activities are expected to attend all scheduled events. Students who fail to attend events are required to reimburse the University for fees and/or expenses incurred because of non-attendance.

Lodging

If activities outside of class require an overnight stay, students are expected to reside in accommodation arranged prior to the event. Students may share a room only with members of the same gender. A student is responsible for any damages or expenses (i.e., phone calls, room service, etc.) incurred beyond the cost of lodging.

Transportation

When taking students on trips, it is the University's recommendation that transportation be arranged so that all students are in one place and driven by a trusted driver. Students driving other students in prearranged carpools must sign and abide by the Student Driver Safety Regulations and Agreement Form. A copy of the student's driver's license must be attached to the form. Only Woodbury University staff or faculty members are permitted to drive vehicles rented by the University.

Health Insurance

Woodbury University requires that all students have medical insurance. Students may not take part in an off-campus activity if they have not purchased or filed proof of personal medical insurance coverage. Please contact the Student Affairs Office if you have questions about coverage.

Alcohol and Controlled Substances

Students are expected to obey local, state, and federal laws regarding the use of alcohol and controlled substances. Additionally, students are expected to conform to policies of the University as well as to those specific to the event itself.

Business Office

Students with outstanding balances on their student accounts or who have been involved in disciplinary actions are not permitted to attend off-campus events involving overnight travel.

Conduct

Students are expected to conduct themselves in a manner consistent with the policies of the University as published in the Code of Student Conduct. Students who exhibit inappropriate behavior may be required to return to the University prematurely at their own expense. In addition, inappropriate behavior will be addressed through the University's conduct process.

Students with Disabilities

Woodbury University is strongly committed to accommodating students with disabilities. Any student who anticipates needing accommodation while traveling should provide appropriate documentation to the associate dean for Academic and Student Support in Student Affairs (see Policy and Procedures for Accommodating Students with Special Needs in the Student Handbook) as early as possible, as accommodations may take time to arrange. The University is unable to make accommodations that are unduly burdensome or that fundamentally alter the nature of the program.

Liability Release & Indemnification and Student Medical Information and Release Form

Students must fill out a Liability Release & Indemnification and Student Medical Information and Release Form prior to the off-campus travel and/or activity. Any student who has a potential medical issue should inform the Woodbury employee responsible. It is the student's responsibility to ensure that any necessary medications are available to him/her when needed. Woodbury University requires students to sign the Liability Release & Indemnification and Student Medical Information and Release Form for any activity that involves risk (i.e., skiing, construction, whitewater rafting, backpacking, etc.) and/or overnight trips.

Student Support Services

Business Office (p. 35)

CARE Team (p. 35)

Career Services (p. 38)

Counseling Center (p. 36)

Financial Advising (p. 39)

Financial Aid (p. 39)

International Student Services (p. 40)

Library (p. 40)

The Office of Disabilities and Accessibility Services (p. 40)

Business Office

The Business Office is available to answer any questions you may have about your student account. Working closely with the Financial Aid Office, the Business Office strives to ensure that all student accounts are financially accurate and that you thoroughly understand all payment responsibilities and options.

Student Account Management

Students can access their accounts, view current balances, and pay tuition bills online 24 hours a day, seven days a week via Self-Service. The Business Office offers several convenient methods for you to make payments on your student account in advance of the tuition payment due date.

The Business Office is pleased to offer you the various payment options below for your student account:

- Payments can be made through Self-Service with a credit card.
- Checks (personal, cashier, and money orders) can be mailed or presented in person. Please make all checks payable to Woodbury University.
- We accept most credit and debit cards (American Express, MasterCard, Visa).
- Payments can also be sent via wire transfers for ACH (please contact our office for instructions).

For more information regarding the Business Office services, policies, and procedures, please refer to the Woodbury University Portal. We cannot accept cash payments.

CARE Team

Concern, Assess, Respond, Evaluate (CARE) is a cross-divisional team that reviews student cases related to social, mental health, academic or behavioral issues.

The CARE Team's Purpose

Woodbury's CARE Team is a cross-departmental, multi-disciplinary team of professionals that work together to identify and respond to students who are overwhelmed, experiencing distress or are at risk of crisis, including students who are displaying behaviors that put themselves or others at risk. The CARE team works collaboratively to connect students with campus or community resources to help them manage the distress and resolve the issue(s) at hand so that they can maintain wellbeing and academic achievement. The CARE team also works to educate the university community around issues of wellbeing and university resources and referral options to create a community in which members look out for one another, care, and will be proactive in addressing individual or community concerns.

Connecting with the CARE Team

It can be difficult to notice all of the things going on around you, but there are many signs that a student may be in distress. The CARE team can help members of our

community understand, respond to, and report their concerns. You can reach out to CARETeam@woodbury.edu or contact the Chair of the CARE Team, Carrie Watts, at 818-394-3345 for assistance.

Anyone can make a report to the CARE team regarding concerns about a student who may be in distress or at risk. Referrals may be made from faculty, staff, students, parents, or community members. A referral to the CARE team does not mean that the student is “in trouble;” rather it means that a trained person will reach out to the student and talk to them and will work with a team to determine how the university can support and connect them to resources.

Learn more about CARE Team and how to submit a CARE report here: <https://woodbury.edu/student-life/student-support-services/the-care-team/>

Counseling Center

Woodbury Counseling Center provides free, and confidential mental health services for all registered students ranging from undergraduate to graduate students currently residing in the state of California. All therapy services are provided by a licensed professional. We offer in-person and virtual teletherapy services through a secure video platform (Zoom). To learn more about the Woodbury Counseling Center, please visit our page on the Woodbury website.

Hours:

Woodbury Counseling Center is located in the **Whitten Student Center** and sessions are available **Tuesday, Wednesday, and Thursday** from **9am-6pm** (hours may vary upon holiday and special schedules).

Services Offered:

- **Individual Short-Term Therapy:** Short-term therapy are consistent sessions for students who present mild to moderate ranges of mental health symptoms and problems. These sessions can be available, by appointment, on a weekly basis and will last for as long as the student is studying at Woodbury University.
- **Single Session Therapy:** Single session therapy is utilized for issues that may not require extended services. Single sessions are useful for students who have concerns about a specific issue or concern that can be addressed in solution-focused manner. Each student is permitted two single sessions per semester.
- **Referrals:** A student can schedule a consultation session for referrals to a mental health therapists, psychiatry services, and formal psychological testing/assessments that are appropriate for students with specialized or longer-term concerns.

Common Issues We Treat:

We treat concerns and issues that can be addressed utilizing a brief, short-term model of therapy such as:

- Mild Depression
- Anxiety
- Life Transition Stress
- Relationship Issues
- Academic Performance Issues and Concerns
- Minor drug/alcohol concerns
- Grief/loss

- Self-Esteem Issues
- Assault
- Identity issues
- Discrimination/Oppression

We are unable to provide services for specialized concerns and issues, psychiatric medication, or those requiring more comprehensive care.

Crisis Counseling & After-Hours Support:

Crisis counseling is available every **Tuesday, Wednesday, and Thursday at 4 p.m.** Crisis counseling is appropriate for students who are in severe emotional distress, actively experiencing a crisis, having difficulties functioning (i.e. struggling with sleeping, eating, etc.), at risk for suicide, or at risk to harming others.

If crisis services are unavailable or you require after-hours support, please contact our **24/7 crisis line at (909) 748-8960.**

In the event of an emergency please contact **911** or **Campus Security at (818) 252-5208.**

How to Make an Appointment:

To schedule an appointment please call, e-mail, or visit us in-person at the Whitten Center where a member of our Student Affairs team will be able to assist you directly (please note e-mail is only monitored during business hours of operation).

Phone: (909) 748-8108

Website: [Making an Appointment](#)

E-Mail: Hayley.Crossley@Woodbury.edu or Counseling_Center@Redlands.edu

Timely Care

Life can sometimes present personal, family, or social challenges that impact your academic and personal well-being. These challenges can range from stress and anxiety related to coursework, to difficulties in personal relationships, or unexpected family issues. Such obstacles can affect your ability to focus, maintain motivation, and achieve your goals. We in Student Affairs want to empower and encourage you to reach out for help when needed. It's important to remember that seeking support is a sign of strength, not weakness. Our resources are here to provide you with the tools and assistance necessary to navigate these challenges, ensuring that you can thrive both academically and personally.

We are excited to announce our new partnership with TimelyCare, a virtual health and well-being platform that provides 24/7 access to care from anywhere in the United States, at no cost to you.

What is TimelyCare?

TimelyCare is a comprehensive virtual health and well-being platform tailored specifically for students, offering a variety of accessible services via a mobile app or desktop. Their team of qualified mental health professionals embraces a philosophy of wellness, empowering you to become more self-aware and make positive changes. TimelyCare's confidential counseling services provide evidence-based, solution-focused cognitive behavioral therapy to address any concern, big or small.

How can I access TimelyCare?

Download the TimelyCare app from your app store or go

to timelycare.com/Woodbury. Register with your school email address to start using the services from any web-enabled device – smartphone, tablet, laptop, or desktop.

Who can use TimelyCare?

Any enrolled Woodbury University student.

What services are available?

- **MedicalNow:** 24/7, on-demand medical care.
- **TalkNow:** 24/7, on-demand emotional support.
- **Scheduled Counseling:** Select the day, time, and mental health provider of your choice (12 visits per year).
- **Scheduled Medical:** Choose the day, time, and medical provider of your choice.
- **Self-Care Content:** Access yoga and meditation sessions, group conversations with providers, and other health and well-being topics.

How much does a visit cost?

TimelyCare services are available at no cost to Woodbury students.

Additional FAQs:

- **How do I log in?**

Download the TimelyCare app or go to timelycare.com/Woodbury.

- **I already have insurance. How does TimelyCare benefit me?**

You have free, 24/7 access to providers from anywhere in the United States, regardless of your insurance status.

- **Can I get a prescription?**

Yes, if the provider deems it clinically appropriate.

- **What can I be treated for?**

TimelyCare's providers can offer support for a wide range of common concerns and will decide on the best course of treatment after talking to you.

We encourage you to take advantage of these resources to support your health and well-being. Download the TimelyCare app or go to timelycare.com/Woodbury to get started.

Urgent Situations & Emergencies

What is an urgent situation?

An urgent situation is one in which you are concerned about yourself or another person who may be:

- at risk for suicide
- at risk for harm to others
- having difficulty functioning, i.e., not eating, not sleeping, etc.
- psychotic symptoms, i.e., hearing voices or seeing things that are not there.

These sorts of situations cannot wait for a routine intake appointment. Here are your options:

1. You can reach a crisis counselor by calling the Counseling Center's 24/7 Crisis Line: 909-748-8960
2. During business hours, Monday through Friday, 8 am - 5 pm.

Call the Redlands Counseling Center, 909-748-8108, and let the administrative assistant know that you (or another student) need(s) to talk with a therapist as soon as possible. The administrative assistant will need to talk with the student to obtain contact information and a brief description of the situation.

If the crisis counselor is not available at that time, the administrative assistant will ask for the student's availability that day and will schedule a same-day phone assessment. The crisis counselor will call the student at the agreed-upon time, will make a phone assessment, and develop a plan for the student for care.

For life-threatening emergencies, always dial 911 and campus security at 818.252.5208.

Career Services

The Career Services Office provides programs, events, services, and resources designed to encourage and assist students in all aspects of career planning. The office also fosters partnerships with employers, alumni, faculty and the community to provide opportunities for students to build the foundation of a successful career.

Services and Events

Students at Woodbury have many options for developing the skills and experience they need to pursue their career goals. Some of the services we provide include:

- **Career Counseling** – Career Services is here to talk about your career and graduate school options, to support you in searching for jobs and internships, and to help you identify the unique strengths that you bring to your professional life.
- **Job/Internship Search Process** – Whether you are beginning your job search or you're at the interview stage, Career Services can support you in finding opportunities, polish your resume and cover letter, and practice with mock interviews.
- **Events** – Career Fairs are held annually to connect students, alumni, and employers to great opportunities. Career Services also provides workshops throughout the year on topics ranging from how to use Handshake to creating a great resume.

Internships

Internships are a graduation requirement for all majors. Woodbury's Los Angeles/Burbank location provides a wealth of internship opportunities that allow students to gain practical work experience in their field of interest. The Career Services office offers career guidance and support to assist students in finding appropriate internship experiences, as well as employers in becoming host company partners.

Handshake

Join our online job board, [Handshake](#), where you can discover job and internship opportunities, attend career-related events, and schedule appointments with our Career Services team. For any inquiries or to contact our office, feel free to email us at careers@woodbury.edu.

Learn more ways the Career Services Office can help you here: <https://woodbury.edu/student-life/student-support-services/about-career-services/>

Financial Advising

For those students who are interested in strategies for budgeting and options for seeking basic services, scholarships, grants, loans outside of the school, Matthew Lyle Middleton, our Financial Advisor to Students, is available by appointment. His office is in Whitten #, and he can be contacted at matthew.middleton1@woodbury.edu, or (818) 252-5105. Standard hours are 9 AM to 12 PM, 1 PM to 5 PM Mondays through Fridays.

Services Include:

- 1:1 Financial Advising
- Scholarships, Grants, & Loans
- Budgeting
- Dealing with Financial Stress
- Banking How-To
- Credit Cards and You
- Lowering Costs, Raising Income, Saving Time
- Basic Needs Planning (Food, Housing)

You may set up an appointment with the QR code [here](#):

Additionally, you may consider creating an account for [iGrad](#), which has articles and tools to help you with budgeting and finances. There are two surveys to determine your money personality and your financial stress to help understand your current situation.

Financial Aid

Approximately 96% of students attending Woodbury University in the past year received some form of financial

aid. The Financial Aid Office is committed to making attending Woodbury an affordable experience for you and your family. For more information regarding Financial Aid services, policies, and procedures, please refer to the Woodbury University Catalog.

International Student Services

Woodbury embraces its international student population and strives to support international student success through the following endeavors:

- Advising students on immigration regulations that affect their status in the U.S.
- Serving as a resource to the campus and international student communities.
- Advocating for international students and international education.

Essential resources on F-1 visa and campus events information can be found at <https://woodburyedu.sharepoint.com/sites/ISS/SitePages/Home.aspx>.

For all international student-related inquiries, please contact International Student Services at Rossana.MuraroFriedman@woodbury.edu or (818) 252-5265

Library

The library supports the University's mission by collecting, preserving, and providing access to information resources that support teaching and learning in the context of Woodbury's academic programs. Within the library collections, resources for research and inspiration are discipline-focused as well as transdisciplinary. Those resources include approximately 324,000 print-based and electronic books, 10,000 films (streaming and DVD), 256 print journals, and 124,000 digital journals/magazines. Access to the library's online catalog and digital resources is available 24 hours per day, 7 days per week. The library utilizes wide-ranging borrowing agreements such as inter-library loan in order to provide access to materials held by other institutions.

The library's physical spaces provide access to collections that encourage creativity and exploration in a technologically and aesthetically inviting environment. Comfortable lounge-type seating is arranged throughout the facility, which also features wireless access to the internet. In addition to 5 Windows workstations and 4 Mac

workstations that are networked to printers and always available to students, the library electronic classroom houses an additional 16 desktop computer workstations in a lab setting, which are available for student use whenever the space is not reserved for classes.

Research assistance—ranging from quick answers to simple questions to in-depth research consultations with librarians—is readily available. Simply ask for assistance at any of the on-site service desks, or use online chat or email-based reference services accessible via the library website (<https://library.woodbury.edu>).

The library provides a dynamic instruction program to support students in locating, evaluating, and using information ethically and effectively. As a part of this instruction program, librarians teach 1-unit courses that satisfy the University's information literacy requirement for graduation.

The Woodbury ID card serves as a library card for borrowing library materials.

Library hours of operation vary throughout the year to accommodate the academic cycle. Current hours and ways to contact the library are posted on the library website (<https://library.woodbury.edu>).

The Office of Disabilities and Accessibility Services

Woodbury University is committed to providing students with disabilities with equal access to all university programs, services, and activities as required by Section 504 of the Rehabilitation Act and the Americans with Disabilities Act. To make this possible, the Office of Disabilities and Accessibility Services (ODAS) grants reasonable accommodations to qualified students with disabilities. ODAS also works to ensure compliance with Section 504, including investigating and resolving any issues related to disability discrimination.

ODAS's Mission

Through the provision of academic support services focused on promoting self-advocacy, resourcefulness, and independence, Woodbury's Office of Disabilities and Accessibility Services strives to support, empower, and integrate students with disabilities into all aspects of campus life to help provide access to a comprehensive university experience.

Statement of Non-Discrimination

and Equal Access for Students with Disabilities

Under Section 504 and the ADA, qualified individuals cannot be refused admission or participation in educational programs and activities because of their disability. ODAS's procedures, governed by Woodbury University's policies, guarantee that students with disabilities will have full and fair access to academic and co-curricular activities and programs, regardless of their disability status. Additionally, these students have the right to be free from discrimination or harassment based on their disability.

Reasonable Accommodations and Services for Students with Disabilities

Accommodations are adjustments that allow students with disabilities equal access to educational opportunities without fundamentally altering the program standards or content. Both academic accommodations and housing accommodations are determined by ODAS based on an individualized interactive process. Students with disabilities also have the right to seek accommodations as necessary to participate in other activities of the University, including in the conduct process and in on campus activities. Students seeking accommodations should contact ODAS at Disabilities@woodbury.edu or complete the online accommodations request form on the Woodbury website at <https://woodbury.edu/student-life/student-support-services/disabilities/>

As a part of Academic Affairs, ODAS also works with University administration, faculty, and staff to foster campus-wide awareness and understanding disability, accessibility, and equity. Additionally, ODAS works collaboratively with the campus community to remove barriers and promote an engaging learning environment where students with disabilities can utilize their skills to pursue and attain their academic and personal goals. ODAS collaborates with other campus resources, including Academic Advisors, Tutoring Services, Career Services and Student Affairs. Through a wide range of programming and supports, ODAS endeavors to provide innovative, student-centered services in order to ensure student success and retention.

Assistance Animals

Generally, the term "assistance animal" may refer to a service dog or an emotional support animal. However,

there are different rules and procedures applicable to each.

Service Dogs:

Under the ADA, a service animal is defined as "any dog that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual, or other mental disability." The task performed by the dog must be directly related to the person's disability.

Service animals are permitted in Woodbury's facilities consistent with the ADA, including anywhere students, members of the public, and other participants in services, programs, or activities are permitted.

Documentation, such as proof that the animal has been certified, trained, or licensed as a service animal, is not required. Federal law does not require an animal to be formally trained or to be certified that it has been trained. Service animals are those that are individually trained to effectively perform tasks for people with disabilities.

Any student who needs a service animal in their dorm (on campus housing (p. 44)) is required to notify ODAS so that an appropriate housing accommodation can be determined. This ensures that students are made fully aware of all applicable policies and procedures, that the University has the opportunity to ensure the safety and access needs of other students in the housing environment, and that ODAS can ensure that any other needed accommodations are discussed.

In the event that the student seeks to bring a service animal onto campus other than in campus housing, it is not required that the student go through the accommodation process for approval. However, the University recommends that any student using a service animal on campus contact ODAS. Informing ODAS of the need for a service animal will provide the opportunity for the ODAS Director to assist the student with any possible concerns related to access, explain any applicable procedures, and further support the student if needed. Service animals must be licensed pursuant to local animal services regulations and must be fully inoculated, with the burden of proof on the animal user. Fecal matter deposited by a service animal must be removed immediately and disposed of properly. If personally unable to perform the task, service animal users must arrange for removal of fecal matter.

The ADA requires individuals with service animals to be responsible for the care and supervision of their animals. This includes feeding, grooming, and toileting. A service

animal must be housebroken (i.e., trained so that it controls its waste elimination, except for illness or accident) and must be kept under control by a leash, harness, or other tether. In cases where the handler is unable to hold a harness or tether because of a disability, or the use of such would interfere with the service animal's safety and the effective performance of work or tasks, the service animal must be under the handler's control by some other means, such as voice control.

Woodbury staff and faculty members may not ask about the nature or extent of a person's disability to determine whether a person's animal qualifies as a service animal and whether the service animal may be allowed on campus or in classrooms. However, when it is not readily apparent that a dog is a service animal, personnel may make two inquiries to determine whether the dog qualifies as a service animal.

These two inquiries are:

1. Is the dog required because of a disability?
2. What work or task has the dog been trained to perform?

Woodbury staff and faculty members may consult ODAS at any time regarding accommodating students with service animals.

Emotional Support Animals:

Emotional support animals (ESAs) provide comfort but are not trained to perform specific tasks to assist individuals with a disability. In general, ESAs are not allowed to accompany students or guests in public areas of Woodbury University or in classrooms.

However, ESA's can be approved as a reasonable housing accommodation when necessary to address a disability-related barrier that impacts access to on-campus housing (p. 44).

Before students can bring ESAs into on-campus housing, they must register for reasonable accommodations with the ODAS and provide applicable documentation. Specifically, the documentation must adhere to the guidelines outlined in ODAS's General Documentation Guidelines and must include specific information regarding the necessity of the ESA to afford the student an equal opportunity to use and enjoy campus housing. For example, the animal would provide emotional support or other assistance that would ameliorate one or more symptoms or effects of a student's disability.

If student is approved for an ESA housing accommodation, student must follow applicable policies and guidelines from both ODAS and Housing. Failure to follow appropriate policies may result in a student conduct referral, fine for damages pursuant to housing policies, and/or determination to revoke approval of an ESA. In the event that a student is not longer permitted to have an ESA in the dorm, ODAS will ensure a reasonable alternative to address the student's disability is determined to provide for continued access.

Overview of ODAS's Interactive Process for the Determination of Accommodations

During the interactive process, the Director of ODAS seeks to gain an in-depth understanding of the functional impact of the disability and to determine the appropriate reasonable accommodations to support the student's access. The Director makes a determination on a case-by-case basis as to the accommodations necessary and appropriate for the individual student. This interactive process applies to academic accommodations, housing accommodations, or any other accommodations based on a disability sought to gain access to activities or functions of the University.

Reasonable accommodations can only be determined and approved after the interactive process is complete, which involves submission by the student of necessary documentation and an intake meeting during with the Director of ODAS seeks to gain an in-depth understanding of the functional impact of the disability. The procedures for determining accommodations include the following steps:

Step 1: Start the Process

Incoming or current students may connect with ODAS directly, or at times may be referred by faculty or other departments. Initial contact is helpful for students to find out more about the process and about available support

Step 2: Paperwork and Documentation

It is the student's responsibility to disclose a disability and to provide additional information through documentation and the interactive process to seek accommodations. Students must complete an online form to provide more information and provide additional documentation as necessary. Medical or psychological documentation should be reasonably current, include a

diagnosis, and describe the functional impact of the disability in an educational setting. Woodbury follows the national best practices for documentation guidelines as set forth by the organization AHEAD.

Step 3: Intake Meeting

The intake appointment is a 1:1 meeting between the student and the ODAS Director, and is a central part of the interactive process. The intake meeting involves discussion of the functional impact of the disability on the student's experience and education, review of provided information, and discussion of potential barriers. Discussion of possible accommodations will also occur in this meeting.

Step 4: ODAS Decision

The ODAS Director makes the determination regarding whether the student is eligible for accommodations. This decision may be made during the meeting or after if additional time to review information is needed. Students are informed of the final determination, and have a right to appeal if applicable.

Step 5: Notice of Accommodations

A Notice of Academic Accommodation Letter or a Notice of Housing Accommodation Letter is produced to document the reasonable accommodations in place. The NAAL or NAHL is provided, with student consent, to the appropriate individuals involved in implementations, such as instructors or housing.

Appeal and Grievance Procedures

Students who disagree with determinations made by ODAS, including determinations about documentation and during the initial intake process, have the right to appeal such decisions in writing. All appeals are to be timely submitted in writing to ODAS at Disabilities@woodbury.edu, and the ODAS Director will promptly notify the student at that time of the process for the appeal. The appeal will be decided by an appropriate University official as designated in current and applicable institutional policies.

Further Information about ODAS

Students are encouraged to visit ODAS's SharePoint site to explore additional information about disability-related accommodations, supports, and ODAS policies and

procedures. ODAS is located in the Whitten Student Center, and students may make an appointment or come in for drop-in appointments. Students are welcome to reach out directly to ODAS at any time for assistance or support. To file a complaint related to possible disability discrimination, students should contact the Director of ODAS directly.

The ODAS SharePoint is located at: <https://woodburyedu.sharepoint.com/sites/ODAS>

ODAS may be contacted via email at disabilities@woodbury.edu or phone at 818.394.3345.

Student Life

Residence Hall Community Living Standards (p. 44)

Dining Services (p. 53)

Residence Hall Community Living Standards

Access/Keys

Residents will be able to use their student ID to access the residence halls. Residents will also be issued keys to their room, which they are expected to use responsibly. The effectiveness of our safety precautions is dependent upon responsible action by members of the community:

1. Students are not to loan their student ID or keys to others at any time.
2. Tampering with any lock is strictly prohibited.
3. Keys are the property of the University and must be returned when a student checks out of the room or at the request of Residence Life or Student Affairs staff.
4. No keys may be duplicated. Residents found duplicating University keys are subject to conduct action as well as the cost of rekeying.

5. Should a key be lost or stolen, the resident is responsible for immediately reporting to Residence Life or Student Affairs staff so that appropriate steps can be taken to prevent illegal entry. There will be a mandatory lock and key replacement fee to be determined by the locksmith. Arrangements for a new lock and/or key must be made with the Residence Life coordinator. Refer to the Lockout Policy for more information.

6. Should a student ID be lost or stolen, the resident is responsible for immediately reporting to Campus Security by emailing HelpDeskCampusSecurity@woodbury.edu so that appropriate steps can be taken to prevent illegal entry. Arrangements for a new student ID must be made to Campus Security by emailing HelpDeskCampusSecurity@woodbury.edu. Once you give Campus Security written confirmation to have your student ID replaced, you will be charged the mandatory replacement fee, as determined by Campus Security, to your student account.

7. Failure to timely report a lost student ID card or room key may result in appropriate conduct of action. Such cases include, but are not limited to, unauthorized individuals accessing the residence halls with lost keys or cards, or duplication of a room key.

Alcohol

Alcohol is not allowed in residence halls. Empty alcohol bottles are also prohibited in the residence halls, even for decorative purposes.

Alterations

No changes will be made to the residence hall by the students without written permission from the Residence Life Coordinator. This includes, but is not limited to shelves, partitions, clothesline, lofts, window coverings, wallpaper, painting, plumbing, electrical, heating, other structural changes or alterations to furniture, or the removal of Woodbury University furniture and its replacement with items owned by the student.

Bathrooms

Residents and guests who identify as male must use residence hall bathrooms designated for males. Residents and guests who identify as female must use residence hall bathrooms designated for females.

Bicycles, Skateboards, Skates and Scooters

Bicycles, skateboards, roller skates, in-line skates, scooters, and other such items may not be ridden in the residence halls. Bicycles may not be parked in walkways, hallways, stairways, or entrances. Bicycles should only be locked on bicycle racks.

Community Damages

A community area is defined as any area other than individual student rooms—for example: bathrooms, hallways, lounges, exterior doors, stairwells, balconies, etc. Charges for damage to community areas in a residence hall will be the responsibility of:

1. Any individual who accepts responsibility for or is found to be responsible for the damage.

2. All the residents of a particular wing, hall, floor, or building where the damage occurs. The Residence Life coordinator, in consultation with the Maintenance Department, shall determine this charge.

Controlled Substances

(See Student Code of Conduct, “Drugs & Controlled Substances.”)

Cooking

Cooking in rooms is strictly prohibited. Cooking appliances with exposed heating elements or high energy consumption, such as microwaves rated more than 700 watts, air fryers, hot plates, electric coffee pots, immersion

heaters, popcorn poppers, crock pots, electrical heaters, electric frying pans, electric woks, stoves, toaster ovens, air conditioners, torchiere style halogen lamps, ultra-violet sun lamps, or any other appliance that uses over 800 watts of electricity (with the exception of hair dryers), and/ or any appliance that does not meet current UL specifications are not permitted in residents' rooms. All cooking must take place in the residence hall community kitchens. As members of a community, students should remember the following when using a kitchen area:

- Residents are responsible for cleaning appliances, dishes, etc., that they use. Dishes left dirty in the kitchen or bathrooms for more than 24 hours will be thrown out. Items may not be stored on top of the refrigerator. Please do not leave personal belongings in the kitchen.

- Refrigerators are for all residents to use. Residents should mark their food with their name, room number, and date the item was placed in the refrigerator. Refrigerators will be cleaned at the end of each term, and unmarked and spoiled food will be thrown out.

- The University does not accept responsibility for food left in refrigerators; therefore, students should respect the personal property of others and refrain from using food, utensils, and anything else left by other resident students without their expressed consent to do so. Students will be subject to disciplinary action if they remove another student's personal belongings from the kitchen area(s).

- When cooking, students must be present in the kitchen area. Students are not permitted to cook food in the microwave unless they are present. Disciplinary action, including fines, will be taken if these procedures are not followed.

- A student failing to maintain the safety of the kitchen will be fined \$25 or more and may face additional disciplinary action. This includes leaving an oven or cooktop turned on after food preparation is completed or failing to clean up spills.

COVID-19

Preventing and mitigating the spread of COVID-19 on campus and in the residence halls is an utmost importance in ensuring the safety and well-being of the residential community.

Because COVID-19 is a highly contagious virus, congregated living settings, such as the residence halls, are areas where transmission is at a higher risk, including, but not limited to, high-touch surfaces, such as exterior entrance doors, bathrooms, laundry rooms, and kitchens. Residents are expected to follow these requirements to protect themselves and others while in the residence halls:

- When required, masks must be properly worn indoors whenever residents are outside of their rooms.

- A resident must remain in their room if they are feeling sick.

- Students failing to comply with these requirements may be subject to conduct action or penalty. Please note that additional changes and updates due to COVID-19 will be communicated via email and posted in the residence halls.

Disruptive Behavior

Behavior that disrupts the residential environment, infringes on the rights of others in the community, or corrupts the generally accepted sense of public decency within the community is prohibited. This includes, but is not limited to, throwing items in the hallways, bouncing balls on the floor/hallways, throwing objects from windows or balconies, standing, sitting on, or jumping off rooftops or balconies, indecent exposure, or any other behavior that may disrupt other students' attempts to study or sleep.

Electrical Appliances

The following appliances are not permitted in the residence halls: any appliance requiring 220 volts or 1500 watts, hot plates, air conditioners, or any appliance with an exposed heating element. In each room, residents may have one small refrigerator (3.0 cubic feet or smaller capacity, 1.5 amps or smaller rating, Energy Star Qualified) and one single-serve coffee machine. Use of all other appliances is prohibited.

External Air Conditioning to South Hall

To provide students with a more comfortable and equitable living experience, the university will consider the addition of external air conditioning to South Hall in certain

instances. The policy as defined below is subject to change based on operational demands and availability. The university will evaluate the need for external air conditioning in South Hall based on the seven-day National Weather Service forecast in Burbank. In addition, the University will identify 24-hour cooling station(s) available on campus.

Filming

Filming of any kind is not allowed in any communal spaces (lobby, hallways, kitchen, etc.) without the express prior approval of the Residence Life coordinator. Any requests for external filming must be submitted through the FREA process and requires at least two weeks advance notice. Students wishing to film for classes or other minor projects may film within their own residence hall rooms as long as no equipment or other hazards are present outside of the room.

Fire Safety

1. Tampering with fire doors, smoke detectors, pull stations, fire extinguishers, sprinkler heads, or other fire safety equipment is prohibited.
2. Students must immediately evacuate when a fire alarm sounds and may not re-enter until the alarm has been silenced and the "all clear" is given by a University staff member.

3. Leaving items unattended on a residence hall stove or in an oven at any time is prohibited.

4. The following items are prohibited in the residence halls: candles and incense (even for decorative purposes); cooking appliances that are not University-approved (see Cooking policy for more information); air conditioning units or ceiling fans not installed by the University; live Christmas trees and wreaths; extension cords; and halogen lamps.

5. Students may not tamper with or augment any electrical devices that may lead to harm. Any surge protectors utilized may not cause damage to surrounding facilities or cause harm to others attempting to enter to utilize the space.

Only University-approved appliances are permitted. See Cooking policy for more information.

Guests

A “guest” is defined as any individual who does not live in a student’s assigned room. Residents are allowed to have overnight guests in their rooms for three consecutive nights (not to exceed 10 nights per semester) under the following circumstances:

1. If a resident has a roommate(s), every roommate’s consent is needed.

2. Residents assume responsibility for their guests. Guests are subject to the same rules, regulations, and expectations as their host, and their host is responsible for informing the guest of the rules, regulations, and expectations in advance.

3. Violation of University policies or abuse of the guest policy will result in revocation of the resident’s guest privileges.

4. Guests must always carry identification with them and show it upon request to Residential Life staff members, Student Affairs staff, or Campus Security.

5. Guests must always be accompanied by the hosting resident.

6. Guests must leave the building at the request of Residence Life Staff members, Student Affairs staff, or Campus Security.

7. Guests who identify as male must use the residence halls bathrooms designated for males. Guests who identify as female must use the bathrooms designated for females.

8. The maximum number of guests allowed in a residence hall room at any given time is one guest per resident. This applies to all guests, whether they are visiting or staying overnight.

Hallways

Students must remove all personal belongings from the hallways. Items left in the hallways, including room furniture, are considered fire hazards. Any items left in the hallways may be discarded. Residence Life is not responsible for any lost, damaged, or stolen items left in the hallways.

- Students will be assessed a \$250 charge for lost keys. Students will be charged the same amount for failure to return room keys within 24 hours after acquiring a temporary key, upon checking out, and/ or leaving the university.

- If the resident locks themselves out while in possession of the temporary key, ID, and/or require additional personnel to access their room, the resident will automatically be charged \$25 per incident regardless of number of lockouts.

Health Insurance

Woodbury University requires that all residents have medical insurance. In the event of illness or injury, the University is authorized to contract emergency care on behalf of and at the expense of the student. For detailed information on the Woodbury University Plan, please visit <https://clients.garnett-powers.com/univ/woodbury/>

- Once the student regains access to their room, the temporary keys must be returned to the Housing office within the time specified. Failure to do so will result in a room lock change and a lost key fee. The student assigned to the room is responsible for fees associated with changing locks.

- If a key is returned without the proper key code, is blank, or is the wrong key for their assigned room, the student will be assessed a \$150 charge to change the room lock.

Lockout Policy

Residence Life recognizes that students will occasionally lock themselves out of their room. Residents who check out loaner keys, loaner IDs, or call the RA on Duty for assistance more than three times an academic semester will be subject to fines. The first three lockouts during the academic semester will not result in a fine except in the cases outlined below.

- Residents must return all assigned room keys at the time of checkout. Keys sent in the mail after checkout will not be accepted, except in cases where the resident has obtained explicit permission from the Residence Life Coordinator or designee.

- After three lockouts, residents will be charged a lockout fee for each lockout and must meet with the Residence Life Coordinator:

- Third Lockout = \$25

- Fourth Lockout = \$50

- Fifth Lockout or more = \$100

Musical Instruments

Practicing musical instruments in residence halls is prohibited if it can be heard outside of the room.

Noise/Quiet Hours

Noise can be very disruptive to a community and, therefore, courtesy hours are in effect 24 hours a day, seven days a week. If someone asks a resident to reduce the volume of his or her stereo, voice, etc., the request must be honored. Residents are expected to anticipate and respect the needs of other residents, specifically the need to live in an environment with minimum annoyances to pursue academic goals and promote student wellness. In the spirit of community consideration, stereo speakers and stereos must not be directed out of windows/doors or used outside the living unit. Stereos should be played at levels that do not disturb others. Music, talking, or other sounds are too loud if the sound can be heard by neighbors, in the corridor, or outside the building. Repeated disregard for appropriate sound levels will result in the removal of the

equipment from the student's room.

In addition to courtesy hours, quiet hours are in effect during the following times:

- Sunday – Thursday: 10 p.m. to 8 a.m.

- Friday – Saturday: Midnight to 9 a.m.

- During studio finals and traditional exam periods, quiet hours will be in effect 24 hours a day.

Pets

Animals are not allowed in the residence halls at any time this includes brief visits by family or friends. Fish are the one exception allowed in the residence halls with a maximum tank size of 10 gallons. The resident is responsible for any water damage caused by the tank. All electrical fish tank equipment must be unplugged during times when the halls are closed. This policy does not apply to service animals, defined by the Americans with Disabilities Act as an animal “that is individually trained to do work or perform tasks for the benefit of an individual with a disability.”

Rightful Occupancy

The University's rooms are designed for occupancy by one, two, three, or four students (as assigned). Students may not sublet a University room to another person.

Residence hall rooms are for the exclusive use of full-time Woodbury University students and not intended for families, spouses, and/or domestic partners.

Room Changes

Students may request to change rooms by emailing housing@woodbury.edu with the requested change and the reason for wanting to change rooms. Any student who requests to change rooms may be charged an administrative fee of \$50 per move at the discretion of the Residence Life Coordinator.

Room Personalization

Residents are encouraged to make their residence hall room their home by personalizing their rooms. The following rules should be kept in mind when decorating to avoid damage charges:

1. Building alterations, additions, or changes to rooms may not be made. Alterations may result in charges to return the room to its original condition.

2. Damage to wall surfaces can be prevented. When hanging things on walls avoid using nails and/or tape. By using a product such as "Sticky Tac", "Hold It", or "Blu-

Tac" you can minimize damage to walls. Scotch and duct tape will also remove paint and damage walls. Students will be charged for damaged walls regardless if steps were taken to repair such damage.

3. The University reserves the right to dispose of all stored items not properly claimed or for items left in rooms after student has vacated the assigned space.

4. University furniture: The University provides each resident with a bed frame or loft, mattress, desk, chair, chest of drawers and closet space. No University-owned furniture may be removed from the room that it is assigned without authorization from the Residence Life Coordinator. Residents may rearrange the furniture inside their room provided it is returned to its original condition and location at the time of checkout. Furniture from any vacant room or community area may not be moved into another room. Students who are found to be in possession of University furniture not assigned to that specific room may be subject to conduct action.

5. Non-University furniture: Upholstered furniture used in University residence halls must have fabrics that meet the criteria of California Flammability Bulletin 117. Only furniture that meets this fire-retardant code will be allowed in University residences. It is the student's responsibility to ensure that any furniture he/she brings onto campus meets these codes. This automatically eliminates vinyl furniture, such as beanbag chairs, and upholstered furniture that is not classified as being fire-retardant. Students bringing furniture on to campus must have written verification that the furniture is up to code. Waterbeds are not permitted.

6. Lofts: In rooms where homemade or rented lofts are permitted, lofts must meet all fire retardant and safety codes. Wood material used must either be pre-treated wood and stamped indicating that it is flame-resistant material or be coated with a UL flame-retardant coating that has been

rated for flame spread of 25 or less or has a zero flash point. All surfaces must be treated. All lofts must be inspected and approved by an authorized representative of the Residential Life staff member within 24 hours of being set up. Lofts that do not pass inspection must be removed from the premises within 24 hours. Students failing to comply with these requirements may be subject to conduct action or penalty.

7. A surge protector should be used with all stereo, computer, television, or other sensitive electronic equipment. The University is not responsible for any damages that occur due to electrical surges.

Smoking

In accordance with Section 41.5 of the Los Angeles Municipal Code, smoking is prohibited in the University residence halls; this includes individual rooms, lobbies, lounges, corridors, bathrooms, etc. Additionally, all smoking by faculty, staff, students, and visitors is prohibited on campus. This includes the use of electronic smoking devices and vapes. Please see the Student Code of Conduct for more information.

Solicitation and Posting

No advertising, selling, or commercial soliciting is permitted in the residence halls. Student Affairs must approve the posting of flyers in the residence halls. No sign, banner, signal, advertisement, aerial, or other equipment or illumination may be exposed on or at any window or other part of the residence halls.

Student Housing Contract

The Student Housing contract is a legally binding document between the University and the student. This contract is valid for one full academic year. All on-campus residents accept the terms of the contract upon retaining possession of room keys. When a student accepts the aforementioned agreement, the student agrees to stated conditions regarding the usage of the residence hall facilities and the rights of others who live there. The student is responsible and accountable for upholding their part of the contract. The Student Housing contract shall be considered applicable and binding for all Woodbury University students residing in the residence halls, regardless if it were signed prior to the start of occupancy. Hard copies of the Student Housing contract are available in the Office of Residence Life.

Trash

Residents are responsible for keeping their rooms and community areas clean and free from litter. Trash must be taken to trash dumpsters located outside of the building. Trash may not be taken to or left in lounges, kitchens, bathrooms, or other community areas.

Unauthorized Entry

Only residents and authorized persons are allowed in the residence halls. Students should not grant residence hall

access to individuals who are not residents of the hall or who they do not know. Only authorized persons are allowed to enter restricted areas in the residence hall. These areas include, but are not limited to, storage rooms, electrical rooms and boxes, maintenance and housekeeping closets, and roof areas.

University Breaks

The residence halls are closed during Winter Break, except for designated Winter Break housing. All residents must leave their rooms by the designated closing time and may not return until the residence halls reopen. Residents who do not vacate the residence halls by checkout time will be assessed a \$100 Failure to Vacate Fee.

Windows and Window Screens

Tampering with or removing window screens is prohibited. Residents will be billed for the repair or replacement of damaged screens. Students are prohibited from climbing in or out of residence hall windows.

Dining Services

Woodbury meal plan programs entitle students to 8, 10, 12, or 14 meals per week from Monday morning breakfast through Sunday dinner. Students on Resident Meal Plans are entitled to one meal during any single meal period and may use flex dollars anytime New Woody's Café is open. Any student may participate in a meal plan program. Non-resident students may purchase meal plans through the Residence Life Coordinator. Commuter students are encouraged to purchase a Commuter Meal Plan. This plan

consists of 5 meals per week plus \$75.00 in Flex Dollars. This meal plan is available to any non-resident student and may be purchased through the Business Office during registration each semester. Information about meal plans is available through Student Affairs or the Business Office.

Lost or Stolen University ID Cards

If your University ID Card—which includes your Meal Card—is lost or stolen, notify the manager at New Woody's and the University Library immediately. Until you replace or find your lost University ID Card, you will be required to pay \$5.00 for each meal.

Flex Dollars

- Additional flex dollars may be purchased at New Woody's or at the Business Office. If flex dollars are purchased through the Business Office, please submit the yellow receipt indicating the amount added to New Woody's so the funds may be applied to your flex account.
- Items such as protein bars, trail mix, bottled beverages, or specialty desserts are not offered as part of meal plans, but may be purchased with flex dollars. Students may use flex dollars to purchase meals for friends or family. Students may not use their meal cards to purchase meals for others.

Sack Meals

Students prevented from eating during regular meal hours by campus activities or work schedules may request a sack meal. All sack meals must be requested at least 24 hours before they are to be picked up (during standard weekday operating hours only). A University ID Card must be provided at pickup. Students are required to pick up sack meals within 4 hours of the requested pick-up time. Sack meal menu options may be limited due to health codes. Prepared meals that are not picked up will be charged as full meals and the student will be removed from the Sack Meal program.

Sick Trays

All students unable to eat at New Woody's due to illness will be provided meals via the following procedure:

- Sick tray requests must be made by Residence Life Staff.
- Each sick tray request must be accompanied by the

University ID Card of the person who is sick.

- Sick trays may be obtained from the manager or chef on duty.

Family Visits

New Woody's is happy to provide one (1) complimentary meal per semester for family members visiting residential students. Please notify the manager at New Woody's the date of the visit via e-mail to ensure arrangements are made in advance. Meals provided are the same offered on residential student meal plans.

Additional Information

- No meal refunds will be given under any circumstances.
- A card may only be used by another student when written/email consent has been received by the manager at New Woody's or with written/e-mail consent from the campus nurse.
- Any meal card used by someone other than the proper owner will be confiscated and turned over to the Office of Student Affairs for appropriate conduct action. Fraudulent use of any meal card will immediately be reported to Student Affairs for appropriate conduct action.
- Sack meal menu options may be limited due to health codes. Prepared meals that are not picked up will be charged as full meals and the student will be removed from the Sack Meal program.

Computer Use / IT

Policy

This policy is applicable to all members of the campus community, whether on the premises or elsewhere, and refers to all computer information resources whether shared, standalone, portable, or networked. The University views the use of its computers, networks, and internet access as a privilege, not a right, and seeks to protect legitimate computer users by imposing sanctions on those who abuse that privilege.

Procedure

The University honors and respects the academic freedom of its members and strives to permit maximum freedom of computer use consistent with current University policy and state and federal law. Within those guidelines, the University expects responsible and ethical behavior when using computers and computer technology as follows:

1. Respect the rights afforded by the First Amendment and by academic freedom, but understand that these rights do not extend to messages or images that would be considered:
 - a. Obscene or patently offensive
 - b. Libelous
 - c. Threats of violence or incitement to lawless action
 - d. Demeaning or harassing to individuals or groups
 - e. Disruptive to the academic environment

The above actions are violations of university policy and may result in criminal prosecution or civil liability.

2. Respect and demonstrate sensitivity toward the standards of others. If dealing with messages or images that might be offensive to others, attempt to do so privately and remember that good manners and courteous behavior do not stop at the computer screen.
3. Respect the privacy of others by not seeking information on, obtaining copies of, or modifying files, tapes, or passwords belonging to others.
4. Respect the legal protection provided by copyright and licensing of programs, data, and other sources of

information by not distributing or making copies of text or software without the permission of the copyright holder. Do not place illegally obtained software on university computers or networks.

5. As users, employees are responsible for any use or misuse of any log-in by themselves or others using an individual computer or account. It is advisable that all reasonable precautions be taken to ensure that unauthorized use of an individual account is prevented. A terminal or personal computer should not be left unattended once an account has been logged into. Passwords should not be shared and should be changed frequently.
6. Respect the intended usage of systems for electronic information exchange, including the World Wide Web and email:
 - a. All currently active students, faculty, and staff members will be issued an email account.
 - b. All Woodbury-related business and communication should be done using a woodbury.edu email address.
 - c. Alumni and emeriti will continue to keep their woodbury.edu email addresses. Those who currently have Google woodburyuniversity.edu accounts will be able to continue using them.
 - d. Do not forward electronic chain letters on the campus network.
 - e. Do not use University computing and network resources to promote commercial or profit-making activities or unsanctioned non- University activities.
 - f. Do not send forged or bulk emails.
 - g. The Woodbury University email system is University property to be used only for approved purposes.
 - h. Email messages are not protected by privacy legislation and should be considered University property. Email should not be used for sensitive information.
 - i. Users may not produce or distribute offensive graphics, messages, or text. This includes, but is not limited to, pornographic materials and ethnic,

racial, or religious slurs. The University reserves the right to monitor the email systems for purposes of administration and message forwarding. In the event that inappropriate behavior is observed during such monitoring, the University also reserves the right to address such behavior. Designated individuals within Technology Services are afforded “authorized access” as agents of the University.

- j. Email storage limits for faculty, staff, and students will be established by the IT office.

7. Respect the integrity of the network as follows:

- a. Do not use any programs, transactions, data, or processes that infiltrate a system or damage or alter the software or data components of a system.
- b. Do not alter any system or network software.
- c. Do not attempt to crash systems or networks.
- d. Do not introduce viruses into systems.
- e. Do not install or modify any on-campus University hardware without explicit authorization from the appropriate service provider.
- f. Online gaming may be allowed depending on the network environment. Permissions may be granted on a case-by-case basis.

8. Respect the University’s need to monitor its own systems. Woodbury does not routinely monitor email or other electronic communications; however, email and files stored on the University system are not private. Deleting a message is no guarantee that the message isn’t stored elsewhere.

9. Respect data stored on PCs by backing up frequently. IT encourages users to backup data on their university issued OneDrive.

Privacy

All users retain the right of privacy in their personal files and data, emails, and voicemails as long as they are using IT resources in a manner consistent with the purposes, objectives, and mission of the University and its IT policy. Likewise, users are obligated to respect the rights of privacy that others expect in their own systems, data, and accounts.

Users should be aware that the University cannot guarantee security and privacy during use of its IT resources. To the contrary, various uses of IT resources, or access in general, may not always be private. For example, issuance of a password or other means of access is to assure appropriate confidentiality of university-related information and files. However, it does not guarantee privacy in all cases, especially for personal or unlawful use of IT resources.

Moreover, users should note that, in emergency situations, the University may also require backup and caching of various portions of IT resources; logging of activity; monitoring of general usage; and other activities that are not directed against any individual user or user account, for the purposes of emergency maintenance or restoring normal operations of IT resources.

In the event the University has reasonable suspicion that a user has violated any civil or criminal law, the University Code of Conduct, IT policy, or any other University policy, procedure, or regulation, the University reserves the right to access, inspect, monitor, remove, take possession of, or surrender to civil or criminal authorities the offending content, with or without notice or consent of the user. The University may also do so for the purpose of satisfying any legal, regulatory, or government request.

Further, the University may monitor IT resources to ensure that they are secure and being used in conformity with IT policy and other University guidelines. Thus, to the extent allowed by applicable law, the University reserves the right to examine, use, and disclose any data or content found on the University’s IT resources for the purposes of furthering the health, safety, discipline, security, or intellectual or other property of any user or other person or entity. Information that the University gathers from such permissible monitoring or examinations may also be used in disciplinary actions.

This limited exception to the general right of privacy in the context of acceptable use of IT resources can be authorized for reasonable cause only by a duly elected officer of the University—namely, the president and vice presidents and, in the case of faculty, with notice to the president of the Faculty Senate. Any action taken by the University based on the content or information obtained will be subject to the procedural safeguards accorded under the student handbook, and all other student policies and procedures promulgated by the Office of Academic Affairs.

Monitoring, Reporting, Violations, and Sanctions

Monitoring

As noted above, the University may, but is not required to, monitor, block, or otherwise prevent inappropriate use of IT resources. Nonetheless, in the event of a violation or failure to comply with this IT policy, the University may monitor any user's access and use of IT resources in order to determine whether violations have occurred. If violations are found, the University may initiate charges and impose appropriate sanctions by following the various processes and procedural safeguards that are applicable to the user's employment or enrollment status.

Reporting

Users have an obligation to report violations of IT policy as well as any potential security or other breach of any portion of IT resources. Reporting of any such violations or other issues involving the inappropriate use of IT resources should be referred to:

- The dean of Students (or delegate) if the alleged offender is an undergraduate student or a graduate student.
- The vice president if the alleged offender is an administrator.
- The appropriate academic dean or vice president for Academic Affairs, if the alleged offender is a faculty member.
- The executive director of Human Resources if the alleged offender is any other employee who does not fall into any of the above categories
- The vice president for Information Technology/CIO, for all other alleged offenders.

Violations:

A violation of the IT policy is considered a violation of the University's principles, objectives, and standards. Depending on the severity of violation, it may also violate the University's other policies or even local, state, federal, or international law. Accordingly, in response to any given violation, the University may impose penalties ranging from the termination of the user's access to IT resources to disciplinary review and further action including, but not limited to, non-re-appointment, discharge, or dismissal. In

cases involving egregious violations, the University may institute legal action or cooperate with actions brought by applicable authorities or third parties.

Sanctions:

In addition to liability and penalties that may be imposed on users under international, federal, state, or local laws, users who fail to fulfill their responsibilities or engage in prohibited conduct will be subject to sanctions imposed by the University. Sanctions against students are listed in the Student and Residential Life Handbooks. Faculty members are subject to disciplinary action including reprimand, suspension, and dismissal as stipulated in Article IV of the University Statutes. Administrators and staff are subject to disciplinary action under their respective handbooks and collective bargaining agreements. Depending on the nature and severity of the violation, sanctions can range from various levels of warnings to immediate termination of employment or enrollment.

The University will exercise good faith and proper discernment in its enforcement of IT policy. It will respect the academic freedom to which users are entitled insofar as the legal rights and responsibilities of the individual user and the University require. Failure to take action in any particular instance does not constitute an alteration of the IT policy or a waiver of any right or remedy available to the University. Under no circumstance shall the University be liable to any user or third party for any violation including, but not limited to, illegal or improper acts that any user commits through use of IT resources.

Wireless Network Policy

Purpose and Scope

Woodbury University (WU) computing and telecommunication networks, computer equipment and computing resources are owned by the university and are provided to support the academic and administrative functions of the university. The goal of this policy is to protect WU technology-based resources from unauthorized use and/or malicious attack that could result in loss of information, damage to critical applications, or damage to our public image. All users employing wireless methods of accessing WU technology resources must adhere to WU defined processes for doing so, using WU approved access points. Unauthorized access to the wireless network is not allowed. Federal and state law, and university policies and procedures govern the use of this equipment and technologies. Any additional university wireless communications requirements must be in compliance with

applicable federal and state laws, and this policy.

Wireless access is provided to users for the primary purpose of facilitating academic and administrative activities, but also for personal use so long as such uses do not violate applicable laws and University policies.

Wireless bandwidth is shared by everyone connected to a given access point and/or other wireless devices operating in the same area, so session time-outs and per-device bandwidth limits are enforced to ensure that all users receive sufficient resources to fulfill their individual needs. Wireless bandwidth limits are set at the sole discretion of the Information Technology Department, using FCC recommendations as a guideline, and are subject to change as needed.

The following policy is complementary to any previously implemented policies dealing specifically with network access and remote access to the university network.

Supported Technology

Woodbury University uses the 802.11n and 802.11ac protocols as its wireless network standards, transmitting in the 2.4 GHz and 5 GHz radio frequency spectrums.

In order to provide wireless access to authorized users, Information Technology (IT) must install “access points” in and around the campus. These access points are generally small, antenna-equipped devices that connect directly to the local area network (LAN).

“Rogue” access points are devices that are installed without the knowledge or permission of Woodbury University, used by individuals to gain illegal access to the University’s network.

Policy and Appropriate Use:

- All wireless access points on the University’s network must be approved and centrally managed by Woodbury University’s IT department. The addition of new wireless access points within campus facilities will be managed at the sole discretion of IT. Non-sanctioned installations of wireless equipment, or use of unauthorized equipment on campus premises, are strictly forbidden.
- The IT department continuously conducts sweeps of the wireless network to ensure there are no rogue access points present.
- The IT department reserves the right to turn off without notice any access point connected to the

network that it feels puts the University’s systems, data, and/or users at risk. The IT Department reserves the right to disable your Wi-Fi network access for a variety of reasons, including but not limited to “excessive” bandwidth usage, a misconfigured or compromised device, or degradation of service to other users.

- Access point broadcast frequencies and channels shall be set and maintained by the IT Department. Any device or equipment found to be interfering with access point signals may be subject to relocation or removal, including cordless phones, microwave ovens, cameras, etc.
- All computer equipment and devices used to connect to the University’s network must display reasonable physical security measures. Users are expected to secure their university-connected devices when they are physically at their machines as well as when they step away.
- Wireless access users agree to immediately report to Woodbury University’s IT Department any incident or suspected incidents of unauthorized access point installation.
- Users accessing campus network resources with personal devices are strongly encouraged to install and maintain security protections such as personal firewalls and anti-virus software.

Policy Non-Compliance

Failure to comply with this Wireless Access Policy may result in the suspension of wireless access privileges and possible disciplinary action. Violations of this Wireless Access Policy will be adjudicated, as appropriate, by the Dean of Students Office, Information Technology, or Human Resources. Sanctions as a result of violations of these regulations may result in the following:

- Loss of access privileges;
- University judicial sanctions as prescribed by student, faculty or staff behavioral codes;
- Monetary reimbursement to the University or other appropriate sources;
- Reassignment or removal from university housing and/or the University;
- Prosecution under applicable civil or criminal laws.

Peer-To-Peer Policy

Peer-to-peer (P2P) applications are defined as programs that allow computers to share data in the form of music, movies, games, or any computer file or software over a local network and the internet without accessing a centralized distribution server or set of servers. The University prohibits and blocks the use of peer-to-peer applications on networks within the residence halls and on public Wi-Fi (Woodbury Wireless). Usage of P2P applications is not restricted to any other network or Woodbury IT resource at this time. Regardless, the use of these applications has been known to cause problems that can affect the entire University community as well as individual devices.

The University mandates that all IT resources be used in a manner consistent with the IT policy and compliant with the Higher Education Opportunity Act and all other applicable laws and regulations. The University is under no obligation to protect users from complaints or actions arising from any violation or alleged violation of the law, including infringement of any intellectual property right due to use of P2P, or any other type of “file-sharing” software or networks. Users should understand that the fact that material is accessible through the internet does not mean that accessing such material is authorized by third-party rights holders. In some cases, even content that is only accessible after a user pays for it may not be authorized for distribution by those who hold rights to that content.

Copyright infringement is the act of exercising, without permission or legal authority, one or more of the exclusive rights granted to the copyright owner under section 106 of the Copyright Act (Title 17 of the United States Code). These rights include the right to reproduce or distribute copyrighted work. In the file-sharing context, downloading or uploading substantial parts of a copyrighted work without authority constitutes infringement. Penalties for copyright infringement include civil and criminal penalties. In general, anyone found liable for civil copyright infringement may be ordered to pay either actual damages or “statutory” damages affixed at not less than \$750 and not more than \$30,000 per work infringed. For “willful” infringement, a court may award up to \$150,000 per work infringed. A court can, in its discretion, also assess costs and attorneys’ fees. For details, see Title 17, United States Code, Sections 504, 505. Willful copyright infringement can also result in criminal penalties, including imprisonment of up to five years and fines of up to \$250,000 per offense. For more information, please see the

U.S. Copyright Office website at www.copyright.gov, specifically FAQ’s at www.copyright.gov/help/faq.

Accordingly, the University prohibits the use of peer-to-peer applications on its networks—including those networks where P2P file sharing is allowed—on IT resources, in general, to transmit or exchange any videos, music, software, images, or other content in which the intellectual property is held by any party or entity other than the user, unless the user has valid, written authorization to access or distribute such content. Any use of IT resources in violation of this policy will be subject to disciplinary sanctions in keeping with the applicable provisions of the IT policy and other University statutes, rules, and policies. Nonetheless, the University allows and encourages the use of P2P applications for legitimate academic purposes when such uses do not involve any violation of applicable laws, statutes, or policies, or infringement of third-party rights.

The University will continue to implement safeguards against the illegal exchange and distribution of copyrighted materials. To that end, the University employs various deterrents such as bandwidth management technology to ensure P2P programs do not degrade network speeds or any other portion of the IT resources. Should such programs degrade the performance of IT resources, or otherwise affect them in a manner inconsistent with IT policy or other University policies, appropriate action will be taken against users responsible for such degradation or other negative impact.

The University understands that there are legitimate academic uses for P2P applications. If you believe you have an academic justification for the use of P2P in the residence halls or on public Wi-Fi (Woodbury wireless), a request for an exception may be submitted to the IT Help Desk. Exception requests will be reviewed on a case-by-case basis with department chairs, deans and the CIO. If such an exception is granted, it is expected that the user will strictly abide by the usage of the P2P file sharing policy by not sharing material that will infringe any copyright on another’s intellectual property. As such, Woodbury University reserves the right to revoke P2P access granted by the exception process at any time if the user is suspected of sharing material that infringes any copyright or violates usage of intellectual property.

Users should be aware that peer-to-peer applications are not necessarily harmless and using them, in addition to potentially degrading the performance of IT resources, may:

Violate copyright, patent, trademark, or other rights.

Result in the disclosure of confidential information.

Jeopardize the security of the IT resources.

As noted above, disproportionate bandwidth usage and the unauthorized use or distribution of copyrighted materials constitute violations of the University's IT policy. The IT department of the University will annually review its P2P policy and procedures to ensure the utmost compliance with all applicable laws and regulations. To see a list of alternatives for legal downloading, please visit <http://www.educause.edu/legalcontent>.

Email Policy

Overview

Email is used pervasively in almost all industry verticals and is often the primary method of communication and awareness within an organization. At the same time, misuse of email can cause legal, privacy, and security risks, thus it is important for users to understand the appropriate use of electronic communications.

Purpose

The purpose of this email policy is to ensure the proper use of the Woodbury University email system and make users aware of what Woodbury University deems as acceptable and unacceptable use of its email system. This policy outlines the minimum requirements for the use of email within the Woodbury University Network.

Scope

This policy covers appropriate use of any email sent from a Woodbury University email address and applies to all employees, vendors, and agents operating on behalf of Woodbury University.

Policy

1. Do not open any attachments you are unsure of, even if they come from one of the trusted email addresses or domains you have whitelisted. Save it to a temporary folder on your pc and scan it by using a built-in virus scanner such as System Center. All official Woodbury related emails will come from @woodbury.edu email address. Do not open any emails which come from non @woodbury.edu address Endpoint Protection.
2. All use of email must be consistent with Woodbury University policies and procedures of ethical conduct, safety, compliance with applicable laws, and proper business practices.
3. Woodbury University email accounts should be used primarily for Woodbury University business-related purposes; personal communication is permitted on a limited basis, but non-Woodbury University-related commercial uses are prohibited.
4. All Woodbury University data contained within an email message, or an attachment must be secured according to the Data Protection Standard.
5. Email should be retained only if qualifying as a Woodbury University business record. Email is a Woodbury University business record if there exists a legitimate and ongoing business reason to preserve the information contained in the email.
6. Email that is identified as a Woodbury University business record shall be retained according to the Woodbury University Record Retention Schedule. Each department has its own retention guidelines. Please check with your own department to see if a Record Retention Schedule exists.
7. The Woodbury University email system shall not be used for the creation or distribution of any disruptive or offensive messages, including offensive comments about race, gender, appearance, disabilities, age, sexual orientation, pornography, religious beliefs or practices, political beliefs, or national origin. Employees who receive any emails with this content from any Woodbury University employee should report the matter to their supervisor immediately.
8. Students who choose to have their emails auto-forwarded to private (unofficial) email addresses do so at their own risk. The University is not responsible for any difficulties that may occur in the transmission of emails.
9. Using a reasonable amount of Woodbury University resources for personal emails is acceptable, but non-work-related emails shall be saved in a separate folder from work-related emails. Sending chain letters or joke emails from a Woodbury University email account is prohibited.
10. Woodbury University employees shall have no expectation of privacy in anything they store, send, or receive on the University's email system. Woodbury University may monitor messages without prior

notice. Woodbury University is not obliged to monitor email messages.

Email Policy Compliance

Compliance Measurement

The IT team will verify compliance with this policy through various methods, including, but not limited to, periodic walk-throughs, video monitoring, business tool reports, internal and external audits, and feedback regarding IT policy.

Exceptions

Any exception to the policy must be approved by the IT team in advance.

Non-Compliance

Employees found to have violated this policy may be subject to disciplinary action, up to and including termination of employment.

Information Technology Internet Use Policy

Social networking (i.e., maintaining an account or presence on sites such as Facebook, Twitter, etc.) and the posting of weblogs or “blogs” are increasingly popular forms of internet usage. The University recognizes social networking and blogging as important means of self-expression and relationship networking and notes the educational and professional benefits of both.

Nonetheless, users of social networking and blogs should be aware of certain issues. Most social networking pages and blogs can be viewed, or even added to, by any user or third party with access to the internet. Accordingly, the University cautions all users against posting content that could divulge the users’ private details or expose users to embarrassment or ridicule. The University has no control over such potential disclosures by users and, therefore, the University is not responsible for any dissemination of private information.

The University reminds users that, regardless of any efforts to the contrary, users may be identified as members of the University community and therefore associated by third parties with the University. Accordingly, users should remember that they are representatives of the University and should, therefore, comport themselves in accordance

with the principles and standards of the University.

Moreover, every user should keep in mind that a potential employer, colleague, or other important business relation may review users’ posted content anywhere on the internet that is publicly accessible. As such, users should not falsely state or exaggerate qualifications, accomplishments, affiliations, or other characteristics of either themselves or the University.

Users should refrain from posting to social networks, blogs, or any other internet site any content that may infringe on intellectual or other property rights of any other user or third party. The University disclaims any liability to users for posting or submission of content on the internet through use of IT resources, regardless of any type of action brought against users.

Lastly, the University notes that it does not control the various third-party websites and other internet destinations that user’s access. Accordingly, the University expressly disclaims any liability to users resulting from any damage to any computing resources owned or otherwise controlled by users including, but not limited to, hardware, software, or any peripherals.

Computer Lab Printing & Copying Policy

Why must we pay for printing and copying services on campus?

Individual students from different majors have different printing and copying requirements or may have their own off-campus printing/copying capabilities. It would not be fair to charge students one flat rate. Instead, we charge on a pay-as-you-go basis.

Every student is assigned an Equitrac Account, which is used for printing and copying on campus. Prices are listed on the attached schedule of charges. Standard white copy paper will be provided. Personal paper and plotter rolls are not allowed on all printers, copiers and plotters.

What happens if I have funds left in my Equitrac student printing Account and I am no longer an enrolled Woodbury student?

NO REFUNDS ARE GIVEN. Deposit funds as needed for

printing. Keep in mind that all printing funds should be used before you graduate

What do I need to do before using printers or copiers on campus?

1. Create a PIN for your Equitrac Account (if you don't have one already). On a web browser, go to <https://print.woodbury.edu/EQWebClient> and login with your Self-Service credentials. This URL is only accessible on the campus network.
 - a. After logging in, click the User Dashboard link.
 - b. Click on Manage PINs.
 - c. Create a PIN number that is between six to 20 digits. Please do not enter alphabetical characters, and do not use PIN numbers that are easy for others to guess.
 - d. Click the Change PIN button.
2. Fund your Equitrac Account. You can fund your Equitrac account electronically with PayPal, a debit/credit card, or with a cash deposit. Funds can be used for printing and copying on campus.
 - a. **Method 1: Cash Deposits.**
 - i. Go to the cash deposit station on campus, located in Miller Hall 202.
 - ii. Enter your PIN number on the keypad.
 - iii. Insert a \$1, \$5, \$10, or \$20 bill facing up. There are no refunds or change provided, so make sure you want to feed the bill before you do so.
 - iiii. Press D on the keypad to end your transaction.
 - iiiii. Wait a few seconds for the transaction to process, then press C on the keypad to get a receipt. In case of issues with your deposit, you will need to provide a copy of your receipt.
 - b. **Method 2 (Debit Card/Credit Card/PayPal)**
 - i. Go to <https://print.woodbury.edu> and login with your Self-Service credentials. This URL is only accessible on the campus network.
 - ii. After logging in, click on the Deposit button.

- iii. Text Box Select PayPal as your deposit method. Even if you do not have a PayPal account, this option is used for debit and credit card transactions.
- iiii. Specify how much you want to deposit in the Amount box.
- iiiii. Carefully review the PayPal Acceptable Use Policy. If you agree with that policy, then select the checkbox "I have read and accepted: PayPal Acceptable Use Policy," then click the PayPal Checkout button.
- iiiii. If you do not have a PayPal account, click the Checkout as Guest button. If you have a PayPal account, you have the option to login with your PayPal account.
- iiiii. Verify your payment details and complete the transaction.
- iiiii. After you've completed the transaction, check your Equitrac account to be sure the deposit is reflected in your account.

How to Make Copies or Prints

You can use any publicly accessible copier on-campus. To use the copier, use the touchscreen to login with your Self-Service credentials. Wait until the copier features appear on the display, then make your copies. When you are done, press the Access button, then log-out so that no one else can make copies of your account.

You can print in the library or in any computer lab or classroom that has a printer. To print, log onto a lab computer, open your document, then print in the normal manner. Double-check your printing preferences, paper size, and color mode to ensure that you are charged correctly. Afterwards, the cost of the print will be displayed in a Print Cost Preview window. You may either Accept or Delete the print. If the cost of the print exceeds the funds available in your Equitrac account, then your print or copy job will be canceled automatically. When you are done, sign out of the computer so that no one else can print from your account.

How to check your account balance.

You can check your balance by entering your PIN number into any deposit station on campus. You can also check your balance by visiting <https://print.woodbury.edu/EQWebClient> from within the

campus network.

If you suspect someone is using your PIN or printing with your credentials.

Change your password and PIN immediately, then notify the Information Technology department so they can investigate appropriate measures. The IT department can be reached via email at helpdesk@woodbury.edu, or by phone at 818.767.0888 ext. 5295.

If the printer or copier produces an unsatisfactory document.

1. Immediately report the incident to computer lab staff. If you are unable to locate either, please call 818.252.5295 or email helpdesk@woodbury.edu.
2. Use a different printer or copier until the problem is resolved. Instead of charging a higher cost per document and giving refunds, the cost per document is charged at lower rates. No monetary refunds are given.
3. When reporting an unsatisfactory document, please do the following:
 - a. Open a web browser and type this address <https://burbankprinting.redlands.edu>
 - b. Log in with your student credentials and click on Recent Print Jobs.
 - c. Find your print and select Request Refund.
 - d. Enter the amount of the refund requested then enter the details in the box provided and click send.
 - e. You will be notified by email if your request is approved or denied.

How to request technical support or to get problems resolved.

First, contact the staff who supports the equipment (i.e., computer lab staff or a staff member at the library). If they cannot resolve the problem themselves, they will refer you to someone who can. If their office is closed, you can contact us through one of the following methods:

- Phone: 818.252.5295

- Email: helpdesk@woodbury.edu

For any additional information please visit our IT SharePoint site at

<https://woodburyedu.sharepoint.com/sites/InformationTechnology/KnowledgeBase>

Anti-Abuse Policy

Use of the University's printers or copiers is subject to monitoring and auditing. If printer or copier access is abused through fraud, cost-circumvention measures, or unauthorized behavior, then the university reserves the right to take measures to remedy the abuse.

Printing and Copying Prices

Prices are posted on the printers and copiers in the computer labs. The latest printing and copying prices and policy can be viewed on the IT Department's SharePoint site under Student Resources.

University ID Cards

The Woodbury University ID card is the official student identification card. This card serves as library card, meal card, and ID card, and gives you access to many University services including the computer labs and utilization of the access control system.

Students are required to carry their University ID cards whenever they are on campus. Students are required to provide ID cards to any security officer or campus administrator upon request, and University administrators reserve the right to revoke a student's ID at any time.

New students are issued University ID cards free of charge through the Information Technology (IT) department. If you have not received a new ID or need to replace your ID, email **Helpdesk@woodbury.edu** to start the process. You will need to input your name, phone number, Woodbury email address, status (student) and major, and upload a picture of yourself against a white or off-white background from just below your shoulders to just above the top of your head, facing forward, no hat, sunglasses, or mask.

The Information Technology (IT) department will contact you once your ID is ready for pickup, usually within a day or two. Note that any lost student ID that is being replaced will have a \$10 replacement fee charged to their student account. If an ID card stops working and is not lost, no fee will be charged for replacement.

Campus Safety

Woodbury University is committed to providing a safe environment for its community members. Private security officers monitor the campus 24 hours a day, seven days a week. A security officer can always be reached by dialing extension 5208 from a campus phone or 818.252.5208 from off campus. All members of the campus community play an important role in helping to make the campus safe and secure for everyone. By taking reasonable precautions, community members can make themselves less likely to be victimized by crime. Some of these include:

- Always lock residence hall and office doors and windows when you leave, even if it is just for a moment.
- Always lock car doors and roll up all windows.
- Call Campus Security for an escort to avoid walking alone at night.
- Do not leave valuable items unattended in public areas. Keep them out of sight in a locked drawer or other safe place.
- Do not prop open residence hall or studio doors, and do not share door codes.
- Identify your personal property by labeling, engraving, or otherwise marking it.
- If you see anything suspicious, call Campus Security immediately at extension 5208 or 818.252.5208.

Emergency Preparedness

Woodbury University is well-prepared to respond to all emergencies through its Emergency Response Plan, which incorporates an extensive team of professionals trained to deal with potential campus- wide emergencies and coordinate with local and state first-response agencies. In the event of an emergency, this team will be activated to address whatever contingencies may arise. Details regarding the Emergency Response Plan can be found at <https://woodbury.edu/student-life/living/safety-security/>.

Please remember that emergency preparedness is also an individual responsibility. All students, faculty, and staff members should become familiar with posted evacuation routes and participate actively in periodic emergency drills.

To report an emergency, call Campus Security at extension

5208 or 818.252.5208 OR call 911. State: “This is an emergency.” Be prepared to give the dispatcher the following information:

- Your name and location.
 - Phone number from where the call is being made.
 - Type of emergency: Medical, Fire, Criminal act, Bomb threat, Natural disaster.
 - Other important information
1. Number and condition of victims
 2. Location and extent of situation, hazard, fire, etc.
 3. Involvement of hazardous materials (as available, give product name and/or describe any markings, labels, or placards).
 4. What is needed (chief complaint)

DO NOT HANG UP FIRST: Let security and emergency personnel hang up first. After the call, security will direct Emergency Response personnel to the scene of the emergency. It is important to contact Security immediately afterward, if you call 911 first.

Important Phone Numbers

- Emergency: 911
- Campus Security: 818.252.5208

During an emergency, please follow the directives of security, campus administrators, and first responders.

Notification of Violent Crimes

Students, faculty, and staff are informed periodically about campus security procedures and useful crime prevention measures through University publications and special memos. Additionally, the University will issue timely warnings regarding incidents that may pose substantial threat to members of our campus community. Notices will be posted and distributed on campus.

Student Right-To-Know Act

In accordance with the Campus Security/Student Right-to-Know Act, the University records and publishes campus

crime statistics on an annual basis. The Security coordinator is available to address questions about the University's security policies, crime statistics, or definitions of crimes.

To address questions about the University's security policies, crime statistics, or definitions of crimes, send an email to **HelpdeskCampusSecurity@woodbury.edu**.

Events With Alcohol

While Woodbury University's alcohol policy reflects current interpretations of federal, state, and local laws governing the possession, distribution, and use of alcohol, it also expresses the University's commitment to responsible drinking and behavior.

For the purposes of this policy, an "event with alcohol" is defined as an official gathering—either on or off campus—sponsored by Woodbury University or any of its constituent groups at which alcohol is served. The timing and location of all events where alcohol is present must be sensitive to the academic mission and needs of the University community. The presence of alcohol at these events creates a need to manage activities with greater care and more attention to the conduct of those present. Those who choose to attend events where alcoholic beverages will be served and consumed must assume responsibility for the consequences of their actions.

1. Alcoholic beverages may not be served at official Woodbury University events without proper registration. All events with alcohol must be registered via the Facility Reservation and Event Authorization (FREA) process at least two weeks prior to the event date. A completed Host Responsibility Form for Events with Alcohol* (for events sponsored by faculty or staff members) or Petition for Student Organization Event with Alcohol* (for student organizations) must be completed by the event host and attached to the FREA form. Some club events, parties, and certain other events involving students may require one host per 100 guests expected to attend. The Dean of Students must approve all student organization events with alcohol.
2. Consumption of alcoholic beverages must be limited to the location(s) pre-approved for the event via the FREA process. Additionally, access to the event must be controlled. Alcoholic beverages may only be served by vendors contracted through Woodbury's food service provider or, for off-campus events, by

staff from a venue in possession.

3. Service of alcoholic beverages shall be limited to those aged 21 years and older, while access to alcoholic beverage service areas by those under 21 shall be monitored. There must be a system in place to ensure that no one under 21 years of age is served any alcoholic beverages. Such systems may include, but are not limited to:
 - a. Checking of government-issued picture identification at entrances (acceptable identification includes a valid driver's license with photo, a government-issued photo ID card, or a passport); University identification cards are not sufficient proof of age
 - b. Use of a wristband of all persons determined to be of legal drinking age.
 - c. For events on University property, Woodbury student identification should always be checked against a list of birthdays obtained from the Student Affairs Office.
 - d. The system that will be used for events hosted by faculty or staff members must be described on the Host Responsibility Form for Events with Alcohol. The system that must be used for events hosted by student organizations is described in the Guidelines for Student Organization Events with Alcohol.
4. At a minimum, servers and hosts should ensure that alcohol use at the event is responsible and safe by observing the following guidelines:
 - a. Guests may not be served more than one alcoholic beverage per hour, not to exceed four alcoholic beverages total. An alcoholic beverage is defined as 5 ounces of wine, 12 ounces of beer, or 1.5 ounces of hard alcohol. Only non-alcoholic beverages may be served during the last hour of events lasting four hours or longer. Obviously, intoxicated persons are not to be served alcoholic beverages.
 - b. Event hosts and sponsoring departments/organizations are required to provide, in sufficient quantity throughout the event, food and one or more non-alcoholic beverage choices (i.e., soda, water, juice, or coffee). If alcohol is being provided at no cost, food and non-alcoholic beverages must also be provided at no cost. If alcohol is available for purchase, food and non-

alcoholic beverages also must be available for purchase or provided at no cost.

- c. Drinking games, or any activities that encourage or contribute to alcohol overindulgence or abuse, are prohibited.
 - d. Service of alcohol from a large, open, common source containers (such as a punch bowl) are prohibited.
5. Woodbury University security may be required for events with alcohol, depending upon the nature of the event and expected attendance using the following rubric as a guideline. This rubric will also be used to determine if a security supervisor is required. Sponsoring departments/organizations are responsible for the cost of event security.
SECURITY MAY BE REQUIRED AT EVENTS IF...

- a. **Event access must be controlled** - Reasoning: Guests must stay within certain areas OR fire exits must be kept clear OR alcohol must be kept inside event venue, Examples: Concert; outdoor event with alcohol
- b. **There are expensive items or equipment present** - Reasoning: To ensure security of items or equipment, Examples: Art exhibit
- c. **The event is at night** - Reasoning: There are few staff onsite to assist in the event of an emergency, Examples: Dance
- d. **The event is potentially controversial** - Reasoning: There is increased potential for an incident or emergency, Examples: Political speaker; rally
- e. **There may be 1,000 or more attendees** - Reasoning: To assist with crowd control AND there is increased potential for an incident or emergency, Examples: Festival; commencement
- f. **There may be 200 or more students with few faculty/staff** - Reasoning: To assist with crowd control AND there is increased potential for an incident or emergency and few faculty/staff to assist, Examples: Student organization party
- g. **There will be an open bar AND individuals under 21 may be present** - Reasoning: To assist with upholding alcohol policies, Examples: Networking event

h. **There will be an open bar AND more than 150 attendees** - Reasoning: To assist with upholding alcohol policies and to assist with crowd control AND there is increased potential for an incident or emergency, Examples: Cocktail reception

i. **Alcohol will be served AND there will be 75 or more students with few faculty/staff** - Reasoning: To assist with crowd control AND there is increased potential for an incident or emergency and few faculty/staff to assist, Examples: Student organization club event

j. **Event hosts and sponsoring departments/organizations must ensure that all event promotion is appropriate.** Event advertising (i.e., flyers, banners, invitations, T-shirts, signs, etc.) must not overtly or covertly focus on alcohol consumption as the primary purpose of the event.

6. Student organizations should additionally reference the Guidelines for Student Organization Events with Alcohol. The conditions above do not apply to events that are considered private. Private events are defined as the following:

- Events hosted by faculty or staff members where attendance is determined by personal invitation to a limited number of individuals.
- On-campus events hosted by student organizations where attendance is determined by personal invitation to a limited number of individuals and the organization's advisors are present for the entire event.
- Student organization meals held at a venue in possession of a valid liquor license (to be confirmed at <http://www.abc.ca.gov/datport/LQSMENU.html>) where attendance is limited to the organization's active members.

Private events will adhere to Woodbury University's Alcohol Policy, which prohibits the possession or consumption of alcohol by any individual under the age of 21, as well as to California State Law, which prohibits furnishing alcohol to persons under the age of 21. Additionally, alcohol may not be consumed in campus parking lots or at the ASWU Pool House unless prior approval has been issued by Student Affairs.

No Smoking Policy

Woodbury University recognizes that using tobacco products is harmful to the health of tobacco users and that exposure to secondhand smoke poses a health risk to non-smokers. The University has implemented a no-smoking policy to address these health concerns and to provide a smoke-free study and workplace for all members of the campus community.

Smoking by faculty, staff, students, and visitors is not allowed anywhere on campus. This policy also includes the use of electronic smoking devices and vapes.

Parking and Traffic Policies

General Provisions

For the safety and convenience of all members of the Woodbury University community, University parking regulations are in effect and enforced 24 hours a day, 365 days a year. All motor vehicles operated by students must be registered on the Rydin Parking Permit site and must display a current, valid parking permit regardless of the student's place of residence or academic program. Motorcycle operators and drivers with handicap placards/license plates must register their vehicles, display a current parking permit, and park in the designated parking spaces on campus. Failure to register a vehicle and purchase a parking permit will result in denied entry to parking areas or possible citation and fine and/or be towed at owner's expense. Woodbury University has approximately one parking space for every three registered vehicles. Accordingly, possession of a parking permit does not guarantee space availability. All vehicles driven or parked on campus must carry liability and property damage insurance in accordance with the California Vehicle Code. The registered operator of a motor vehicle is responsible for its operation on campus at all times. The University assumes no responsibility for the care or protection of any vehicle or its contents at any time, including when parked in designated University parking areas.

More information on Parking and Traffic Policies can be found at <https://woodbury.edu/student-life/living/safety-security/>

Motor Vehicles Registration

Purchase a parking permit online by completing the registration form at <https://www.permitsales.net/WoodburyU>. Temporary parking passes are printable via the website to park on campus until permanent permits are mailed. Vehicles must be registered by the add/drop deadline of each semester (there is a two-week grace period at the start of the fall and spring semesters). After the first two weeks of each semester, parking permit enforcement begins. The cost for fall parking permits is \$160. The cost for spring parking permits is also \$160.

If there is to be an increase this will be communicated to all concerned. Spring Semester permits are valid through the following summer session. Students who operate more than one vehicle must purchase separate parking permits for each vehicle. Parking permits must be displayed so that the entire permit is visible. Failure to fully display the permit will result in citation and fine. Lost parking passes and passes for newly purchased vehicles may be issued at prorated fees. There are seven parking lots at the Burbank campus with 815+ unrestricted parking spaces for students.

When registering your vehicle, you must provide the license plate. If the vehicle is new or plates have not been issued, you must provide the vehicle's VIN number. The vehicle's VIN number must then be visible from the outside of the vehicle while on campus.

Driver Responsibilities

Drivers are responsible for the driving and parking of their vehicles on campus. Drivers shall adhere to all campus parking regulations and fully cooperate with University Security officers in any investigations involving a motor vehicle. This includes producing University identification, a valid driver's license, and/or proof of insurance to any University Security officer. Failure to cooperate with Security officers will make your vehicle subject to tow and result in referral for judicial conduct. For safety reasons, loitering in all University parking lots is not permitted.

License Plates

State-issued license plates shall always be affixed to all vehicles on campus. University Security officers may inquire about the status of unobservable plates and students will be required to produce DMV registration upon request.

Proper Display of Permits

Student permits must be affixed to the driver's-side lower corner inside the windshield with the permit number fully visible. Staff/faculty permits must hang from the rear-view mirror OR be displayed on the driver's side dash with the permit number fully visible.

Designated Parking Spaces

Parking violations, fines, and/or loss of parking privileges are strictly enforced. Full parking enforcement goes into effect after on the Add/Drop deadline.

Vehicle Operation

The speed limit on campus is 10 miles per hour. Vehicle use is limited to driveways and parking lots. Driving on lawns, sidewalks, or walkways is prohibited and will result in citation and fine. Unsafe operation of vehicles, including reckless driving, driving the wrong way on one-way driveways, and failure to stop at stop signs is prohibited and will result in citation and fine.

Vehicle Parking

There are seven lots for general parking on campus. The Whitten/Issacs Lot is the only lot designated "Faculty Only." Parking in posted/reserved spaces without authorization will result in vehicle citation and/or tow. Reserved parking is enforced 24 hours a day, every day. Spaces marked with signs are designated for personnel. Vehicles must be parked in spaces with curbs or white stall lines on either side. Red zones are for emergency vehicles only (no student or faculty/ staff parking). Blue zones are for vehicles with properly displayed state-issued red or blue disability placards.

No trailers, oversized vehicles, or recreational vehicles (RV) are permitted to be parked or stored on campus property without authorization from the Department of Campus Safety or College Administration. An oversized vehicle is a vehicle that is too wide or too long to fit within a standard-sized parking space. A recreational vehicle (RV) is a vehicle that is outfitted with sleeping quarters. No camping or sleeping is allowed in any vehicle (regular or RV). **STUDENTS MAY NOT LEAVE THEIR VEHICLES ON CAMPUS OVER THE SUMMER BREAK.**

Do not sleep in your vehicle. No one is allowed to stay overnight in, live in, or store any vehicle, trailer, mobile/motor home, etc. on any parking lot/structure. If

you are observed or suspected of sleeping in your vehicle, the University's retain the right to enter your vehicle by any means necessary to perform a safety check if Campus Security Officer or Administrator cannot wake you from outside your vehicle.

Vehicle Storage

It is the policy of the University to prohibit the storage or abandonment of any vehicle on University property. It is permissible for students to leave their vehicles on campus throughout the academic year including the vacation breaks for up to 45 days.

Vehicle Maintenance

Vehicle maintenance other than minor adjustments or cleaning should occur away from campus. Maintenance involving hazardous waste (oil, gas, and other fluids) is prohibited.

Removal of Vehicles

In accordance with California state law, the following vehicles may be towed away at the owner's expense: abandoned, inoperative, or unregistered* vehicles; vehicles parked in fire lanes, red zones, disabled spaces, or blue zones; vehicles blocking gates or driveways; or vehicles parked in temporary posted "No Parking" zones; vehicles stored or abandoned by persons having no relationship to the University; or vehicles posing a safety threat (i.e., fluid leakage, broken glass, etc.). Any expense incurred by the University related to the removal of a vehicle is the responsibility of the registered owner, permit holder, or violator. Associated charges will be assessed against the student's account, if applicable. *Unregistered vehicles are vehicles not registered with Woodbury and/or vehicles with expired license plates or state registration tags.

Immobilization of Vehicles

Any vehicle with three or more citations in a semester is subject to immobilization via vehicle boot. Vehicle owners must show valid registration and government- issued identification prior to release of the boot. Incident reports will be forwarded to the Office of Student Affairs.

Towing of Vehicles

Vehicles illegally parked in fire lanes, handicap spaces without proper permit, or VIP reserved spaces next to Hensel Hall are subject to immediate tow. All vehicle tows

are at owner's expense.

Bicycles

The University reserves the right to remove bicycles that are determined to be abandoned. There are 10 bicycle racks to park your bicycle on campus. Please use them and remember that bike racks are shared resources and should not be used for long-term storage. To ensure fair access for all students, bikes parked in these racks must be moved at least every two weeks. If you park your bike on campus, you are responsible for keeping it in good condition. Bikes that show signs of neglect – such as flat tires, damaged handlebars or pedals, bent frames or rims, rusted chains or wheels, or non-functioning brakes – may be removed and disposed of by the University.

Keeping your bicycle safe:

- Secure all bicycles, even in protected areas like residence halls, rooms, and backyards.
- Use a U-shaped security lock to secure your bike; other locking devices may be easy to break or cut.
- Do not lock your bike to objects that can be moved. Lock your bicycle to a stationary object.
- Do not lock your bike by only the front or back wheel, since they can be removed.
- Ride safe.
- Keep to the right side of the roadway and ride in single file. Pass other cyclists with caution.
- Obey all traffic laws.
- Use hand signals.
- Ride cautiously through parking areas, driveways, and congested intersections.
- For night riding, equip your bike with front and rear lights, use reflectors, and wear light-colored clothing.
- Give pedestrians and motor vehicles the right of way and use a warning device.
- Use caution when passing parked cars because doors can open without warning.
- Watch out for potholes, rocks, broken glass, and other road hazards.
- Remember to wear a safety helmet when riding your

bike.

Parking Citations and Fines

Vehicle operators will be cited and fined for any of the following violations:

WUVC 100—\$40 Permit or permit numbers not visible

WUVC 101—\$40 Permit improperly displayed

WUVC 102—\$40 Permit expired

WUVC 103—\$40 Parking in posted No Parking zone

WUVC 105—\$40 Parking in reserved space

WUVC 107—\$40 Parking in an area not designated for parking

WUVC 108—\$40 Not parked within stall lines / double parked

WUVC 110—\$60 Blocking other vehicles, gates, driveways, walkways

WUVC 111—\$60 Exceeding posted time in a loading / unloading zone

WUVC 200—\$100 Driving the wrong way on a one-way driveway

WUVC 201—\$100 Driving on lawns, sidewalks, or walkways

WUVC 202—\$100 Reckless driving / failure to stop at stop sign

WUVC 203—\$100 Exceeding speed limit

WUVC 204—\$100 Removing barricades / cones from reserved spaces

WUVC 300—\$125 Parking in disabled space / blue zone without placard

WUVC 301—\$125 parking in fire lane / red zone

WUVC 302—\$150 Forged permit

WUVC 999—\$125 Vehicle tow / vehicle boot / immobilization

Parking permits or state issued disabled placards not properly displayed or readily visible will be regarded as having no parking permit or disabled placard. Drivers with disabled placards that are not properly displayed will be

subject to be cited and fined if parked in disabled zones. Fines incurred by students are automatically charged to the student's account. Students may pay assessments by mailing checks to the Business Office or when statement is received from the Business Office. Unpaid fines assume the same status as any other college debt. Students who do not pay parking tickets may be put on financial hold, blocked from registering for subsequent terms, and denied transcript requests. Incident reports may be filed on students who receive three or more parking citations within a semester; such students will be subject to conduct sanctions.

semester

- Commit moving violations on campus

Methods of Appeal

Parking violations may be contested online at <https://www.permitsales.net/WoodburyU/violations>. Appeals must be received online within seven calendar days of the citation being issued. Appeals will be adjudicated by the Campus Safety Manager and can be reached at **HelpdeskCampusSecurity@woodbury.edu**.

Grounds for Appeal:

- Parking lot signage/markings unclear.
- Parking regulations unclear.
- Necessitated violation.

Adjudicated citations must be appealed within 7 days of the original appeal and can be based only on:

- New information not presented in the initial appeal, again based on the above circumstances
- The Campus Safety Manager coordinator has the final decision on all appeals.
- Permits are valid ONLY if issued by RYDIN or the Security Office. A permit given to you by your friend is a no-go.

Conduct Charges

Conduct charges will be assessed to students who:

- Duplicate or reproduce valid parking permits
- Create or generate illegal parking permits
- Use or distribute any illegally obtained or illegally created parking permits
- Receive three or more parking violations in one

Policy and Procedures

Community Standards and Policy (p. 72)

Political Events and Activities Policy (p. 73)

Title IX: Sexual Misconduct Policy (p. 74)

Student Expression Policy (p. 96)

Solicitation Guidelines (p. 100)

Community Standards and Policy

Family Educational Rights & Privacy Act (FERPA)

The Family Educational Rights and Privacy Act (FERPA) affords students certain rights with respect to their education records. These rights include:

1. The right to inspect and review the student's own education records within 45 days of the University receiving a request for access. Students should submit written requests to the registrar identifying the record(s) they wish to inspect. The University official will arrange for access and notify students of the time and place records may be inspected. Requests for records not maintained by the Registrar's Office shall be referred to the University official to whom the request should be addressed.
2. The right to request the amendment of a student's education records that the student believes are inaccurate, misleading, or otherwise in violation of the student's privacy rights under FERPA. A student who wishes to request amendment of a record should write to the University official responsible for the record, clearly identify the part of the record the student wants changed and specify why it should be changed. If the University decides not to amend records as requested, the University will notify students of the decision in writing and of students' right to a hearing regarding amendment requests. Additional information regarding hearing procedures will be provided to students when notified of their right to a hearing.
3. The right to provide written consent before the University discloses personally identifiable information from students' education records, except to the extent that FERPA authorizes disclosure

without consent.

4. The University discloses education records without a student's prior written consent under the FERPA exception for disclosure to school officials with legitimate educational interests. A school official is a person employed by the University in an administrative, supervisory, academic or research, or support staff position (including law enforcement unit personnel and health staff); a person or company with whom the University has contracted as its agent to provide a service instead of using University employees or officials (such as an attorney, auditor, or collection agent); a person serving on the Board of Trustees; or a student serving on an official committee, such as a disciplinary or grievance committee, or assisting another school official in performing his or her tasks. A school official has a legitimate educational interest if the official needs to review an education record in order to fulfill his or her professional responsibilities for the University.

The right to file a complaint with the U.S. Department of Education concerning alleged failures by the University to comply with the requirements of FERPA. The mailing address of the Office that administers FERPA is:

Family Policy Compliance Office

U.S. Department of Education

400 Maryland Avenue, SW

Washington, DC 20202-5901

As of January 3, 2012, the U.S. Department of Education's FERPA regulations expand the circumstances under which education records and personally identifiable information contained in such records—including Social Security Numbers, grades, or other private information—may be accessed without consent. First, the U.S. Comptroller General, the U.S. Attorney General, the U.S. Secretary of Education, or state and local education authorities ("Federal and State Authorities") may allow access to education records and personally identifiable information without consent to any third party designated by a Federal or State Authority to evaluate a federal- or state- supported education program. The evaluation may relate to any program that is "principally engaged in the provision of education," such as early childhood education and job

training, as well as any program that is administered by an education agency or institution. Second, Federal and State Authorities may allow access to education records and personally identifiable information without consent to researchers performing certain types of studies, even, in certain cases, when such research is objected to or not requested. Federal and State Authorities must obtain certain use- restriction and data security guarantees from entities they authorize to receive personally identifiable information, but Authorities need not maintain direct control over such entities. In addition, in connection with Statewide Longitudinal Data Systems, State Authorities may collect, compile, permanently retain, and share without consent, personally identifiable information from education records, and may track participation in education and other programs by linking such personally identifiable information obtained from other Federal or State data sources, including workforce development, unemployment insurance, child welfare, juvenile justice, military service, and migrant student records systems.

Policies and Procedures Political Events and Activities

Political Events and Activities Policy

Woodbury University's status as a tax-exempt organization under Section 501(c)(3) of the Internal Revenue Code prohibits it from participating or intervening in any political campaign on behalf of, or in opposition to, any candidate for public office. Accordingly, the University may not endorse a candidate, provide or solicit financial or other support for candidates or political organizations, or establish political action committees. Participating in political campaigns by or in the name of the University could jeopardize the University's tax-exempt status. Conferences and Events will be glad to respond to any questions an event organizer may have regarding political events.

Prohibited political activities include campaign rallies, canvassing, lobbying, support of, or opposition to, candidates for public office, giving gifts to public officials, and other such activities. These regulations also apply to virtual events.

While the applicable regulations permit the University itself to engage in some lobbying and ballot measure activities related to matters impacting the University and higher education, members of the University community, including outside individuals, entities, and employees who

are not acting in their official capacities, are not permitted to use the University's resources to support political activities.

Except as otherwise outlined in this policy, members of the University community are prohibited from using University resources to support political activities in the following manners:

Using University facilities, monies, accounts, credit, vehicles, postage, telecommunications, computer hardware and software, web pages, personnel, equipment, materials, buildings or any other thing of value, except as outlined below.

Using the University's name and seal, on-campus addresses, and nonresidential telephones, resources, services, equipment, supplies, meeting rooms, email lists, or personnel (including research assistants).

Using a university school, department, or institute's name to endorse a candidate while using University resources.

Using a university school, department, or institute's name on a candidate's campaign website or collateral materials to endorse a candidate.

Recruiting volunteers for campaign activities during events.

On-campus solicitation of campaign contributions for candidates.

Payment of fees to candidates, and discounting or waiving fees for political events.

Student Voter Events

Departments/units/recognized student organizations may coordinate voter education activities (including public forums, the publication of voter education guides, and voter registration drives) if they are carried out in a non-partisan manner. Voter education or registration activities conducted in a biased manner that favors (or opposes) one or more candidates is prohibited. All such events must be coordinated in advance and have an approved space reservation.

Hosting Candidates in Their Capacity as Political Candidates

When inviting a candidate to speak in their capacity as a political candidate, event organizers must:

provide an equal opportunity to participate to all political candidates seeking the same office. This applies to both the

nature of the event to which candidates are invited, as well as the manner of their presentation/promotion);

refrain from supporting or opposing a candidate both prior to, during, and after their visit;

prohibit political fundraising from occurring for any/all candidates.

Hosting Candidates When Appearing/Speaking as Non-Candidates

When inviting public officials who currently hold, or formerly held, public office to speak, event organizers must:

be explicit in their communication with the candidate that they are speaking in a non-candidate capacity;

refrain from mentioning the individual's potential future candidacy for public office (both before, during, and after their visit); and

maintain a non-partisan atmosphere where the candidate is present.

Issue Advocacy and Political Campaign Intervention

University-hosted political debates and public forums are permitted consistent with the institution's legitimate, purely educational purpose if they do not endorse, support, or oppose a political candidate or party and follow the Federal Election Committee rules on sponsoring debates or forums.

With respect to university-sponsored public forums, the following guidelines must be met:

All legally qualified candidates for a particular public office or party are invited;

All participating candidates are given equal treatment, i.e., access and opportunity to speak;

The format and content of the forum are presented neutrally; it is not structured to promote or advance one candidate over another; and

No political fundraising occurs in conjunction with the forum.

Under the Internal Revenue Code, all section 501(c)(3) organizations are prohibited from directly or indirectly participating in, or intervening in, any political campaign on behalf of (or in opposition to) any candidate for elective public office. Contributions to political campaign funds or

public statements of position (verbal or written) made on behalf of the organization in favor of or in opposition to any candidate for public office violate the prohibition against political campaign activity.

Approval

Any events regulated by this Policy must be approved in writing in advance by the President, who will consult with others as determined appropriate. They will not be approved if it cannot be demonstrated that the above criteria will be met throughout the event.

Resources

Internal Revenue Service, Rev. Rul. 2007-41, 2007-25 I.R.B. (June 18, 2007) (<https://www.irs.gov/pub/irs-tege/rr2007-41.pdf>)

American Council on Education (ACE) Issue Brief on Student Voting and College Political Campaign Related Activities in 2023 (<https://www.acenet.edu/Documents/Student-Voting-and-CollegePolitical-Campaign-Activities-Issue-Brief.pdf>)

Policies and Procedures Sexual Misconduct Policy Title IX

The Title IX Policy is constantly being updated with new information. Feel free to review any updates on the Woodbury Policies and Disclosures webpage: <https://woodbury.edu/policies-disclosures/>

Institutional Values

Woodbury University is committed to providing a non-discriminatory and harassment-free educational, living and working environment for all members of our community including students, faculty, staff, and guests. All members of the campus community are expected to conduct themselves in a manner that does not infringe upon the rights of others. This policy prohibits all forms of sexual misconduct, including sexual harassment, sexual assault, stalking, intimate partner violence, and sexual exploitation. Misconduct of this nature is contrary to Woodbury's institutional values and prohibited by state and federal law.

Woodbury University encourages the prompt reporting of any incident of sexual misconduct to the University. Upon receipt of a report, the University will take prompt and effective action to end the misconduct, remedy the effects, and prevent its recurrence. This policy has been developed

to reaffirm these principles, define community expectations, provide recourse for those individuals whose rights have been violated, and provide fair and equitable procedures for determining when this policy has been violated.

Scope

This policy applies to all Woodbury University community members including students, faculty, staff, volunteers, vendors, independent contractors, visitors, and any individuals regularly or temporarily employed, studying, living, visiting, conducting business, or having any official capacity with the University or on University property. This policy applies to conduct occurring on Woodbury University property or at University-sanctioned events or programs that take place off campus, including study away or internship/work experience programs, and may also apply to other off-campus locations when the University determines that the off-campus conduct has a direct impact on the educational mission and interest of the University.

This policy addresses all forms of sexual misconduct, including sexual harassment, sexual assault, stalking, intimate partner violence, and sexual exploitation against Woodbury community members of any gender, gender identity, gender expression, or sexual orientation. Woodbury University does not discriminate on the basis of sex in its educational (including admission), co-curricular, or other programs or in the context of employment. Sex discrimination is prohibited by Title IX of the Education Amendments of 1972, a federal law that states the following:

No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance.

When used in this policy, Complainant means an individual who is alleged to be the victim of conduct that could constitute harassment or discrimination based on a protected class; or retaliation for engaging in a protected activity. Respondent means an individual who has been reported to be the perpetrator of conduct that could constitute harassment or discrimination based on a protected class; or retaliation for engaging in a protected activity. A third party refers to any other participant in the process, including a witness to the incident or an individual who makes a report on behalf of someone else.

If You Have Been Assaulted

Individuals who have been a victim of sexual assault, attempted sexual assault, or other form of sexual violence are encouraged to visit

<https://www.peaceoverviolence.org/iii-if-you-have-been-sexually-assaulted> for comprehensive information regarding what to do, where to get support, and legal options including filing a report with law enforcement. Members of the University's Title IX team, listed in this section, are also available for information and support.

PROCEDURE

Reporting, Confidentiality and Privacy

Woodbury University has designated a Title IX Coordinator to oversee the University's review, investigation, and resolution of reports of sexual misconduct. The Title IX Coordinator is:

- Responsible for the oversight of the investigation and resolution of all reports of sexual harassment, sexual assault, stalking, intimate partner violence, and sexual exploitation involving students, faculty, staff, vendors, and visitors.
- Assisted by designated Title IX Investigators, who are accessible to any member of the campus community for consultation and guidance.
- Knowledgeable and trained in University policies and procedures and relevant state and federal laws.
- Available to advise any individual about the courses of action available within the University, both informally and formally, as well as within the community.
- Responsible for monitoring full compliance with all procedural requirements and time frames outlined in this policy; and responsible for training, prevention, and education efforts and periodic reviews of campus climate.

TITLE IX COORDINATOR:

Naira Zakarian, HRM
Hensel Hall
818.252.5110
naira.zakarian@woodbury.edu

TITLE IX INVESTIGATOR:

Deanna Frias, HR Administrative Assistant
Hensel Hall
818.252-5188
deanna.frias@woodbury.edu

Anyone wishing to report an incident of sexual misconduct is encouraged to speak with one of the above individuals. Additionally, the University considers any faculty or staff member (other than Counseling Services staff) who have a responsibility for student welfare to be “responsible employees.” This means that informing them of an incident of sexual misconduct requires them to provide notice to the institution; all such faculty and staff (including student staff such as Resident Advisors) are required to report such incidents to the Title IX Coordinator, who are officials with authority explicitly vested with the responsibility to implement corrective measures for harassment, discrimination, and/or retaliation on behalf of the University.

All members of the University community, even those who are not obligated by this policy, are strongly encouraged to report information regarding any incident of sexual misconduct to the Title IX Coordinator. Reporting an incident of sexual misconduct does not mean that a disciplinary process will automatically be initiated. The Title IX team will conduct an initial assessment of the incident and will determine—keeping in mind the Complainant’s expressed preferences—the appropriate course of action to support and protect the safety of the Complainant and the community.

Woodbury University is committed to protecting the privacy of all individuals involved in a report of sexual misconduct. All University employees who are involved in the University’s Title IX response, including the Title IX Coordinator, and Investigators, and Hearing Board Members receive specific training about respecting and safeguarding private information. Throughout the process, every effort will be made to protect the privacy of all individuals involved.

Individuals also always have the right to file a complaint with the Office for Civil Rights, United States Department of Education, 50 United Nations Plaza, San Francisco, CA. 94102; Phone: 415.486.5555; Email: OCR.SanFrancisco@ed.go.

Additionally, any employee who believes that he or she has been the victim of sexual misconduct may file a

complaint with the California Department of Fair Employment and Housing at www.dfeh.ca.gov or the United States Equal Employment Opportunity Commission at www.eeoc.gov.

Confidential Resources

Individuals who wish to seek advice or assistance concerning, or to discuss options for dealing with, sexual misconduct on a strictly confidential basis may speak with licensed mental health provider, ordained clergy, medical providers in the context of seeking medical treatment, and rape crisis counselors, who, except in very narrow circumstances specified by law, will not disclose confidential communications to the University or anyone.

Students who wish to speak to someone on a strictly confidential basis may do so by contacting mental health counselors in Timely Care.

Faculty and staff seeking confidential support may contact Employee Assistance Program by CompPsych

Guidance Resources:

- Tel: 800.311.4327
- TDD: 800.697.0353
- Online: guidanceresources.com your company Web ID: GEN311
- Additionally, any individual may contact 24-hour off-campus rape crisis counselors at (626) 793-3385.

Amnesty for Alcohol or Other Drug Use

Woodbury University encourages the reporting of prohibited conduct under this policy. It is in the best interest of this community that as many incidents as possible are reported, and that witnesses come forward to share what they know. To encourage reporting, an individual who reports sexual misconduct, either as a Complainant or third-party witness, will not be subject to disciplinary action by the University for his or her own personal consumption of alcohol or drugs at or near the time of the incident, provided that any such violations did not and do not place the health or safety of any other person at risk. The University may, however, initiate an educational discussion or pursue other educational

remedies regarding alcohol or other drugs.

Bystander Intervention

The University encourages all community members to take reasonable and prudent action to prevent or stop an act of sexual misconduct. Taking action may include direct intervention (if it is safe to do so), calling law enforcement, or seeking assistance from a person in authority. Community members who choose to exercise this positive moral obligation will be supported by the University and protected from retaliation.

Federal and State Reporting Obligations

Certain campus officials have a duty to report sexual misconduct for federal statistical reporting purposes (under the Clery Act). All personally identifiable information is kept confidential, but statistical information regarding the type of incident and its general location (on- or off-campus, in the surrounding area, but no addresses are given) is compiled for publication in the annual Campus Security Report. This report helps to provide the community with a clear picture of the extent and nature of campus crime to ensure greater community safety. Mandated federal reporters include any faculty or staff member (including student staff such as Resident Advisors) except for Counseling Services staff.

The information to be shared includes the date, the location of the incident (using Clery location categories), and the Clery crime category. This reporting protects the identity of the Complainant and may be done anonymously.

Note, in certain circumstances, California Education Code, Section 67383, requires the University to forward information concerning reports of violent crimes, including reports of sexual assaults, to a local law enforcement agency. The report is forwarded without identification of the Complainant and Respondent, unless explicit consent is provided by the Complainant allowing for the sharing of personally identifying information.

Federal Timely Warning Reporting Obligations

Complainants of sexual misconduct should also be aware that University administrators must issue immediate timely warnings for incidents reported to them that are confirmed to pose a substantial threat of bodily harm or danger to members of the campus community. The University will

make every effort to ensure that a Complainant's name and other identifying information is not disclosed, while still providing enough information for community members to make safety decisions in light of the danger. The reporters for timely warning purposes are exactly the same as detailed at the end of the above paragraph.

Prohibited Conduct and Definitions

Prohibited misconduct includes, but is not limited to:

1. Sexual Harassment (including sexual assault, dating/domestic violence, and stalking)
2. Sexual Misconduct (including sexual exploitation)
3. Retaliation

All policies encompass actual and/or attempted offenses.

Sexual Harassment

The Department of Education's Office for Civil Rights (OCR), the Equal Employment Opportunity Commission (EEOC), and the State of California regard sexual harassment as an unlawful discriminatory practice.

The University has adopted the following definition of sexual harassment in order to address the unique environment of an academic community.

Acts of sexual harassment may be committed by any person upon any other person, regardless of the sex, sexual orientation, and/or gender identity of those involved.

Sexual harassment, as an umbrella category, includes the offenses of sexual harassment, sexual assault, domestic violence, dating violence, and stalking, and is defined as:

Conduct on the basis of sex/gender or that is sexual that satisfies one or more of the following:

1. Quid Pro Quo: An employee conditions the provision of an aid, benefit, or service on an individual's participation in unwelcome sexual conduct.
2. Sexual Harassment: Unwelcome* conduct, determined by a reasonable person, to be so severe, and pervasive, and objectively offensive that it effectively denies a person equal access to an education program or activity.
 - a. **Unwelcomeness is subjective and determined by the Complainant (except when the Complainant is*

younger than the age of consent). Severity, pervasiveness, and objective offensiveness are evaluated based on the totality of the circumstances from the perspective of a reasonable person in the same or similar circumstances ("in the shoes of the Complainant"), including the context in which the alleged incident occurred and any similar, previous patterns that may be evidenced.

3. Sexual assault: defined as:

- a. Sex Offenses, Forcible: Any sexual act directed against another person, without the consent of the victim, including instances where the victim is incapable of giving consent. A "sexual act" is specifically defined by federal regulations to include one or more of the following:
 - i. Forcible Rape: Penetration, no matter how slight, of the vagina or anus with any body part or object, or oral penetration by a sex organ of another person, without the consent of the Complainant.
 - ii. Forcible Sodomy: Oral or anal sexual intercourse with another person, forcibly, and/or against that person's will (non-consensually), or not forcibly or against the person's will in instances in which the Complainant is incapable of giving consent because of age or because of temporary or permanent mental or physical incapacity.
 - iii. Sexual Assault with an Object: The use of an object or instrument to penetrate, however slightly, the genital or anal opening of the body of another person, forcibly, and/or against that person's will (non-consensually), or not forcibly or against the person's will in instances in which the Complainant is incapable of giving consent because of age or because of temporary or permanent mental or physical incapacity.
 - iiii. Forcible Fondling: The touching of the private body parts of another person (buttocks, groin, breasts), for the purpose of sexual gratification, forcibly, and/or against that person's will (non-consensually), or not forcibly or against the person's will in instances in which the Complainant is incapable of giving consent because of age or because of temporary or permanent mental or

physical incapacity.

b. Sex Offenses, Non-forcible:

- i. Incest: Sexual intercourse between persons who are related to each other, within the degrees wherein marriage is prohibited by California law.
 - ii. Statutory Rape: Non-forcible sexual intercourse, with a person who is under the statutory age of consent of 18 years of age in California.
4. Dating Violence: Violence on the basis of sex committed by a person who is in or has been in a social relationship of a romantic or intimate nature with the Complainant. The existence of such a relationship shall be determined based on the Complainant's statement and with consideration of the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship. For the purposes of this definition, dating violence includes, but is not limited to, sexual or physical abuse or the threat of such abuse. Dating violence does not include acts covered under the definition of domestic violence.
5. Domestic Violence: Violence on the basis of sex committed by a current or former spouse or intimate partner of the Complainant, by a person with whom the Complainant shares a child in common, or by a person who is cohabitating with, or has cohabitated with, the Complainant as a spouse, domestic partner, or intimate partner, or by a person similarly situated to a spouse of the Complainant under the domestic or family violence laws of California, or by any other person against an adult or youth Complainant who is protected from that person's acts under the domestic or family violence laws of California. To categorize an incident as domestic violence, the relationship between the Respondent and the Complainant must be more than just two people living together as roommates. The people cohabitating must be current or former spouses or have an intimate relationship*
- a. *Under California law, "any person who willfully, maliciously, and repeatedly follows or willfully and maliciously harasses another person and who makes a credible threat with the intent to place that person in reasonable fear for his or her safety, or the safety of his or her immediate family is guilty of the crime of stalking," which is applicable to criminal prosecutions, but may

differ from the definition used on campus to address policy violations. Under California law, “any person who willfully, maliciously, and repeatedly follows or willfully and maliciously harasses another person and who makes a credible threat with the intent to place that person in reasonable fear for his or her safety, or the safety of his or her immediate family is guilty of the crime of stalking,” which is applicable to criminal prosecutions, but may differ from the definition used on campus to address policy violations.

6. **Stalking:** Engaging in a course of conduct, on the basis of sex, directed at a specific person, that would cause a reasonable person to fear for the person’s safety, or the safety of others; or suffer substantial emotional distress. For the purposes of this definition — a. Course of conduct means two or more acts, including, but not limited to, acts in which the Respondent directly, indirectly, or through third parties, by any action, method, device, or means, follows, monitors, observes, surveils, threatens, or communicates to or about a person, or interferes with a person’s property; b. Reasonable person means a reasonable person under similar circumstances and with similar identities to the Complainant; c. Substantial emotional distress means significant mental suffering or anguish that may but does not necessarily require medical or other professional treatment or counseling.*

Sexual Misconduct

In addition to the forms of sexual harassment described above, which are covered by Title IX, the University additionally prohibits the following offenses as forms of discrimination that may be within or outside of Title IX when the act is based upon the Complainant’s actual or perceived membership in a protected class.

Sexual Misconduct is any unwelcome sexual advances, requests for sexual favors, or other unwelcome written, verbal, or physical conduct of a sexual nature when:

- Submission to the conduct is explicitly or implicitly made a term or condition of an individual’s employment, academic status, or progress, and/or
- Submission to or rejection of the conduct by the individual is used as the basis of employment or academic decisions affecting the individual, and/or
- Submission to, or rejection of, the conduct by the individual is used as the basis for any decision affecting the individual regarding benefits and services, honors, programs, or activities available through the University, and/or
- The conduct has the purpose or effect of having a negative impact upon the individual’s work or academic performance or of creating an intimidating, hostile, or offensive work, educational, or living environment.

Sexual misconduct can occur regardless of the relationship, position, or respective sex of the parties. It can occur between equals (i.e., student to student, staff to staff, faculty member to faculty member) or between persons of unequal power status (i.e., supervisor to subordinate, faculty member to student).

Sexual misconduct based on gender, gender identity, gender expression, sex or gender stereotyping, or sexual orientation, but does not involve conduct of a sexual nature, is also prohibited by this policy. This policy also prohibits harassment of a faculty or staff member by a student.

The conduct alleged to constitute sexual misconduct under this policy will be evaluated from the perspective of a reasonable person similarly situated to the Complainant and considering all of the facts and circumstances.

A single or isolated incident of sexual misconduct may create a hostile environment if the incident is sufficiently severe. The more severe the conduct, the less need there is to show a repetitive series of incidents to provide a hostile environment, particularly if the misconduct is physical.

Examples of behavior that might be considered sexual misconduct include, but are not limited to:

- Pressure for a date or a romantic or intimate relationship
- Unwelcome touching, kissing, hugging, or massaging
- Pressure for or forced sexual activity
- Unnecessary and unwelcome references to various parts of the body
- Belittling remarks about a person’s gender or sexual orientation
- Inappropriate sexual innuendos or humor
- Obscene gestures of a sexual or gender-based nature

- Offensive sexual graffiti, pictures, or posters
- Sexually explicit profanity
- Use of email, the internet, or other forms of digital media to facilitate any of the above referenced behaviors

Sexual Misconduct also includes the following conduct, to the extent that it is not included in the definition of sexual harassment above:

Sexual Exploitation occurs when an individual takes non-consensual or abusive sexual advantage of another for his/her own advantage or benefit, or to benefit or advantage anyone other than the one being exploited, and that behavior does not otherwise constitute sexual harassment under this policy.

Examples of sexual exploitation include, but are not limited to:

- Sexual voyeurism (such as observing or allowing others to observe a person undressing or using the bathroom or engaging in sexual acts, without the consent of the person being observed)
- Invasion of sexual privacy.
- Taking pictures, video, or audio recording of another in a sexual act, or in any other sexually related activity when there is a reasonable expectation of privacy during the activity, without the consent of all involved in the activity, or exceeding the boundaries of consent (such as allowing another person to hide in a closet and observe sexual activity, or disseminating sexual pictures without the photographed person's consent), including the making or posting of revenge pornography
- Prostituting another person
- Engaging in sexual activity with another person while knowingly infected with human immunodeficiency virus (HIV) or a sexually-transmitted disease (STD) or infection (STI), without informing the other person of the infection
- Causing or attempting to cause the incapacitation of another person (through alcohol, drugs, or any other means) for the purpose of compromising that person's ability to give consent to sexual activity, or for the purpose of making that person vulnerable to non-consensual sexual activity

- Misappropriation of another person's identity on apps, websites, or other venues designed for dating or sexual connections
- Forcing a person to take an action against that person's will by threatening to show, post, or share information, video, audio, or an image that depicts the person's nudity or sexual activity
- Knowingly soliciting a minor for sexual activity
- Engaging in sex trafficking
- Creation, possession, or dissemination of child pornography
- Threatening or causing physical harm, extreme verbal, emotional, or psychological abuse, or other conduct which threatens or endangers the health or safety of any person;

Other Civil Rights Offenses Based on Sex/Gender

- Discrimination, defined as actions that deprive, limit, or deny other members of the community of educational or employment access, benefits, or opportunities.
- Intimidation, defined as implied threats or acts that cause an unreasonable fear of harm in another.
- Hazing, defined as acts likely to cause physical or psychological harm or social ostracism to any person within the University community, when related to the admission, initiation, pledging, joining, or any other group-affiliation activity.
- Bullying, defined as repeated and/or severe aggressive behavior likely to intimidate or intentionally hurt, control, or diminish another person, physically and/or mentally that is not speech or conduct otherwise protected by the First Amendment.

Violation of any other University policies may constitute a civil rights offense when a violation is motivated by actual or perceived membership in a protected class, and the result is a discriminatory limitation or denial of employment or educational access, benefits, or opportunities.

Retaliation

The University prohibits individuals from engaging in retaliatory behavior, which is defined as any materially adverse action taken against a person for making a good

faith report of behavior prohibited by this policy or for participating in any proceeding under this policy. Adverse action includes conduct that threatens, intimidates, harasses, coerces or in any other way seeks to discourage a reasonable person from engaging in activity protected under this policy.

Retaliation can be committed by or against any individual or group of individuals, not just a Respondent or Complainant.

Acts of alleged retaliation should be reported immediately to the Title IX Coordinator and will be promptly investigated. The University will take all appropriate and available steps to protect individuals who fear that they may be subjected to retaliation.

Consent, Force, Coercion, Incapacitation, Drugs and Alcohol

Consent: Consent means positive cooperation in act or attitude pursuant to an exercise of free will. The person must act freely and voluntarily and have knowledge of the nature of the act or transaction involved.

Consent consists of an affirmative, conscious, voluntary decision by each participant to engage in mutually agreed-upon sexual activity. It is the responsibility of each person involved in the sexual activity to ensure that he or she has the affirmative consent of the other to engage in said activity. The following are essential elements of effective consent:

- **Informed and reciprocal:** All parties must demonstrate a clear and mutual understanding of the nature and scope of the act to which they are consenting and a willingness to do the same thing, at the same time, in the same way.
- **Freely and actively given:** Consent cannot be obtained through the use of force, coercion, threats, intimidation or pressuring, or by taking advantage of the incapacitation of another individual.
- **Mutually understandable:** Communication regarding consent consists of mutually understandable words and/or actions that indicate an unambiguous willingness to engage in sexual activity. In the absence of clear communication or outward demonstration, there is no consent. Consent may not be inferred from silence, passivity, lack of resistance or lack of active response.
- An individual who does not physically resist or

verbally refuse sexual activity is not necessarily giving consent. Relying solely upon non-verbal communication can lead to a false conclusion as to whether consent was sought or given.

- **Not indefinite:** Consent may be withdrawn by any party at any time. Recognizing the dynamic nature of sexual activity, individuals choosing to engage in sexual activity must evaluate consent in an ongoing manner and communicate clearly throughout all stages of sexual activity. Withdrawal of consent can be an expressed “no” or can be based on an outward demonstration that conveys that an individual is hesitant, confused, uncertain, or is no longer a mutual participant. Once consent is withdrawn, the sexual activity must cease immediately and all parties must obtain mutually expressed or clearly stated consent before continuing further sexual activity.
- **Even in the context of a current or previous intimate relationship,** each party must consent to each instance of sexual contact each time. The consent must be based on mutually understandable communication that clearly indicates a willingness to engage in sexual activity. The mere fact that there has been prior intimacy or sexual activity does not, by itself, imply consent to future acts.
- **Not unlimited:** Consent to one form of sexual contact does not constitute consent to all forms of sexual contact, nor does consent to sexual activity with one person constitute consent to activity with any other person. Each participant in a sexual encounter must consent to each form of sexual contact with each participant.

The age of consent in California is 18 years old. See California Penal Code Section 261.5.

Proof of consent or non-consent is not a burden placed on either party involved in an incident. Instead, the burden remains on the University to determine whether its policy has been violated. The existence of consent is based on the totality of the circumstances evaluated from the perspective of a reasonable person in the same or similar circumstances, including the context in which the alleged incident occurred and any similar, previous patterns that may be evidenced.

In assessing consent, the Respondent’s belief is not a valid excuse for a lack of consent where:

- Respondent’s belief arose from the Respondent’s own intoxication, being under the influence of drugs,

alcohol, or medication, and/or recklessness; or

- Respondent did not take reasonable steps, in the circumstances known to the Respondent at the time, to ascertain whether the Complainant affirmatively consented; or
- Respondent knew or a reasonable person should have known that the Complainant was unable to consent because the Complainant could not understand the fact, nature, or extent of the sexual activity because they were asleep or unconscious; incapacitated due to the influence of drugs, alcohol, or medication; or unable to communicate due to a mental or physical condition.

Force: Force is the use of physical violence and/or imposing on someone physically to gain sexual access. Force also includes threats, intimidation (implied threats) and coercion that overcome resistance or produce consent (“Have sex with me or I’ll hit you. Okay, don’t hit me, I’ll do what you want.”).

Coercion: Coercion is unreasonable pressure for sexual activity. Coercion can include a wide range of behaviors, including intimidation, manipulation, threats and blackmail. A person’s words or conduct are sufficient to constitute coercion if they wrongfully impair another individual’s freedom of will and ability to choose whether or not to engage in sexual activity. Examples of coercion include threatening to “out” someone based on sexual orientation, gender identity or gender expression and threatening to harm oneself if the other party does not engage in the sexual activity.

Incapacitation: Incapacitation is a state where someone cannot make rational, reasonable decisions because they lack the capacity to give knowing consent (i.e., to understand the “who, what, when, where, why or how” of their sexual interaction).

A person cannot consent if they are unable to understand what is happening or is disoriented, helpless, asleep, or unconscious, for any reason, including by alcohol or other drugs. As stated above, a Respondent violates this policy if they engage in sexual activity with someone who is incapable of giving consent.

It is a defense to a sexual assault policy violation that the Respondent neither knew nor should have known the Complainant to be physically or mentally incapacitated. The question of whether the Respondent knew or should have known of the Complainant’s lack of consent or

incapacity to give affirmative consent is an objective inquiry as to what a reasonable person, exercising sober judgment, would have known, in the same or similar circumstances.

Incapacitation may result from the use of alcohol and/ or drugs. Consumption of alcohol or other drugs alone is insufficient to establish incapacitation. The impact of alcohol and drugs varies from person to person, and evaluating incapacitation requires an assessment of how the consumption of alcohol and/or drugs impact an individual’s:

- decision-making ability
- awareness of consequences
- ability to make informed judgments
- capacity to appreciate the nature and the quality of the act

Incapacitation is determined through consideration of all relevant indicators of an individual’s state and is not synonymous with intoxication, impairment, blackout, and/or being drunk.

This policy also covers a person whose incapacity results from a temporary or permanent physical or mental health condition, involuntary physical restraint, and/or the consumption of incapacitating drugs.

Evaluating incapacitation also requires an assessment of whether an individual knew, or should have known, that the other party was incapacitated..

Alcohol and Other Drugs: In general, sexual contact while under the influence of alcohol or other drugs poses a risk to all parties. Alcohol and drugs impair a person’s decision-making capacity, awareness of the consequences, and ability to make informed judgments. It is especially important, therefore, that anyone engaging in sexual activity be aware of the other person’s level of intoxication. If there is any doubt as to the level or extent of the other individual’s intoxication or impairment, the prudent course of action is to forgo or cease any sexual contact or activity.

Being intoxicated or impaired by drugs or alcohol is never an excuse for sexual misconduct and does not diminish one’s responsibility to obtain consent.

Supportive Measures

Supportive measures are actions taken by the University in response to a report of sexual misconduct to meet the needs and protect the rights of the parties and/or other members of the University community, as appropriate.

Supportive measures are non-disciplinary, non-punitive individualized services offered as appropriate, as available, and without fee or charge, to either or both the Complainant and Respondent involved in an incident of sexual misconduct, prior to or while a complaint resolution process is pending. An individual may request to receive support—including the measures mentioned in this section—even if they do not choose to participate in the University’s complaint resolution process.

Potential supportive measures include:

- Access to counseling services and assistance in setting up initial appointment, both on and off campus.
- Imposition of a campus “no contact” letter.
- Rescheduling of exams and assignments (in consultation with appropriate faculty).
- Providing alternative course completion options (with the agreement of appropriate faculty).
- Change in class schedule, including the ability to take an “incomplete,” drop a course without penalty or transfer sections (with the agreement of appropriate faculty).
- Change in work schedule or assignment.
- Change in on-campus housing.
- Arranging to dissolve a housing contract and pro-rating a refund in accordance with campus housing policies.
- Assistance from University staff in completing housing relocation.
- Limit an individual or organization’s access to certain University facilities or activities pending resolution of the matter.
- Voluntary leave of absence.
- Providing an escort to ensure safe movement between classes and activities.

- Providing medical services.
- Providing academic support services, such as tutoring.
- Interim suspension or University-imposed leave.
- Any other remedy that can be tailored to the involved individuals to achieve the goals of this policy.

The imposition of supportive measures is not indicative of a determination of responsibility or any other outcome. In the case of students, such measures shall be applied to the fullest extent possible to avoid depriving any student of their education. Supportive measures may be modified at any time at the discretion of the University.

Emergency Suspension

The University may also suspend a student or employee pending the completion of a complaint resolution process, particularly when, in the judgment of the Title IX Coordinator, the imminent physical health or safety of any member(s) of the University community may be jeopardized by the on-campus presence of the student.

A student who has been placed on interim suspension has the right, within three business days of the notice of the suspension, to meet with the University’s Title IX Coordinator (or designee), to request re-consideration of the interim suspension. The University’s Title IX Coordinator (or designee) will review the appeal to determine whether the decision to place the student on interim suspension was arbitrary or capricious. A decision is arbitrary and capricious where there is no rational connection between the facts presented and the decision made.

Procedures for Complaint Resolution

The specific procedures for resolution of a complaint of sexual misconduct will vary based upon the identity of the Respondent and whether the complaint falls within the scope of Title IX:

- For a complaint against a student, disciplinary action may be taken by the Associate Dean of Students or his/her designee following a finding of responsibility by a Hearing Officer or Hearing Board in accordance with the Sexual Misconduct Resolution Process outlined below.
- For a complaint against a staff member, disciplinary

action may be taken at the conclusion of the investigation by the head of Human Resources or his/her designee in accordance with procedures outlined in the Employee Handbook. Complaints that fall within Title IX may be subject to the Sexual Misconduct Resolution Process outlined below.

- For a complaint against a faculty member, disciplinary action may be taken at the conclusion of the investigation by the Senior Vice President, Academic Affairs or Faculty Executive Committee in accordance with procedures outlined in the Faculty Handbook. Complaints that fall within Title IX may be subject to the Sexual Misconduct Resolution Process outlined below.
- For a complaint against a person other than a student, staff member, or faculty member, the procedure will vary, depending on the circumstances. Complaints that fall within Title IX may be subject to the Sexual Misconduct Resolution Process outlined below.

Sexual Misconduct Resolution Process

OVERVIEW

As outlined in the Reporting section of this policy, an individual who wishes to make a report of sexual misconduct is encouraged to make a report directly to a member of the Title IX team. In every instance under this policy, the University, through the coordinated efforts of the Title IX team, will conduct an initial Title IX assessment.

At the conclusion of the Title IX assessment, the Title IX Coordinator will offer any appropriate supportive measures, refer the matter for informal resolution and/or refer the matter for investigation to determine if there is sufficient information to proceed with formal resolution.

Informal resolution is a non-judicial, remedies-based approach that does not involve disciplinary action against a Respondent. Formal resolution is a judicial, sanctions-based approach that may involve discipline up to and including expulsion or termination.

INITIAL ASSESSMENT

Upon receipt of a report, the University, through the coordinated efforts of the Title IX team, will conduct an initial Title IX assessment, typically within one to five business days. The first step of the assessment will usually

be a preliminary meeting between the Complainant and Title IX Coordinator. The purpose of the preliminary meeting is to gain a basic understanding of the nature and circumstances of the report; it is not intended to be a full forensic interview. At this meeting, the Complainant will be provided with information about resources, procedural options and supportive measures.

As part of the initial assessment of the report, the Title IX Coordinator will:

- Assess the nature and circumstances of the allegation.
- Address immediate physical safety and emotional well-being needs.
- Notify the Complainant of the right to contact law enforcement and seek medical treatment, including the importance of preservation of evidence.
- Explain and provide the Complainant with written information about on- and off-campus resources, as well as the range of possible supportive measures.
- Explain the procedural options, including informal resolution and formal resolution
- Discuss the Complainant's preference for manner of resolution and any barriers to proceeding.
- Explain the University's policy regarding retaliation.
- Determine the respective ages of the Complainant and Respondent, and if one is a minor, make the appropriate notifications under California's child abuse and neglect reporting requirements.
- If the conduct is potentially criminal in nature, arrange to enter non-identifying information about the report into the University's daily crime log.
- Notify the Complainant of his/her right to have an Advisor.
- If the Complainant has not already done so, determine if the Complainant wishes to make a formal complaint. A formal complaint is a document submitted or signed by the Complainant or signed by the Title IX Coordinator alleging a policy violation by a Respondent and requesting that the University investigate the allegation(s).

This initial review will proceed to the point where a reasonable assessment of the safety of the individual and of the campus community can be made. Thereafter, an investigation may continue depending on a variety of

factors, such as the Complainant's wish to pursue disciplinary action, the risk posed to any individual or the campus community by not proceeding, and the nature of the allegation.

*Note, the University's definition of prohibited sexual misconduct is broader than the current regulations interpreting Title IX. If the University determines at any time that a complaint of sexual misconduct does not fall within Title IX and must or may be dismissed, the University may nonetheless proceed to resolve the complaint in accordance with the procedures below. Under the 2020 Title IX regulations (34CFR§106.45), the University **must** dismiss a formal complaint, or any allegations within it if, at any time during the process, it is determined that the conduct alleged in the formal complaint would not constitute sexual harassment as defined above, even if proved; and/or (1) The conduct did not occur in an educational program or activity controlled by the University (including buildings or property controlled by recognized student organizations), and/or the University does not have control of the Respondent; and/or (2) The conduct did not occur against a person in the United States; and/or (3) At the time of filing a formal complaint, a Complainant is not participating in or attempting to participate in the education program or activity of the University. The University **may** dismiss a formal complaint or any allegations therein if, at any time during the investigation or hearing: (1) A Complainant notifies the Title IX Coordinator in writing that the Complainant would like to withdraw the formal complaint or any allegations therein; or (2) The Respondent is no longer enrolled in or employed by the University; or (3) Specific circumstances prevent the University from gathering evidence sufficient to reach a determination as to the formal complaint or allegations therein. If a complaint or particular allegations are dismissed under Title IX, the University will promptly send written notice of the dismissal and rationale for doing so simultaneously to the parties, and may continue to resolve the complaint under this policy in accordance with these procedures.*

At the conclusion of the Title IX assessment, the Title IX Coordinator will determine the appropriate manner of resolution and, if appropriate, refer the report for further investigation, informal resolution, or formal resolution.

The determination as to how to proceed will be communicated to the Complainant in writing. Depending on the circumstances and requested resolution, the Respondent may or may not be notified of the report or resolution. A Respondent will be notified when the

University takes action that would impact a Respondent, such as the imposition of supportive measures that impact the Respondent or the decision to initiate informal or formal resolution proceedings.

Informal Resolution

Informal resolution is a voluntary process for timely and corrective action through the imposition of individual and/or community-focused remedies designed to maintain the Complainant's access to the educational, extracurricular, and employment activities at the University and to eliminate a potential hostile environment. The option to pursue informal resolution will be presented to the parties only after the University has sufficient information about the nature and scope of the conduct at issue. In cases involving allegations of sexual assault or relationship violence, informal resolution is generally not appropriate. If the Complainant, the Respondent, and the Title IX Coordinator all agree to pursue an informal resolution, the Title IX Coordinator will attempt to facilitate a resolution that is agreeable to all parties. The role of the Title IX Coordinator is not to be an advocate for either party, but rather, to aid in the resolution of issues in a non-adversarial manner. Under the informal process, the University will only conduct such fact-finding as is useful to resolve the conflict and as is necessary to protect the interests of the parties, the University, and the University community.

The University will not compel a Complainant or Respondent to engage in mediation, to directly confront the other party, or to participate in any particular form of informal resolution. If at any point during the informal resolution process, the Complainant, the Respondent, or the University wishes to cease the informal resolution process and to proceed with formal complaint resolution, the informal resolution process will stop and the formal complaint resolution process described below will proceed.

Any informal resolution must adequately address the concerns of the Complainant, the rights of the Respondent, and the overall intent of the college to stop, remedy, and prevent policy violations. The University will take appropriate actions as necessary and use its best efforts to remedy any harm that occurred and to prevent any further incidents of sexual misconduct. Examples of potential remedies are provided in the "Supportive Measures" section of this policy. The recommended resolution may also include other institutional responses or requirements imposed on the Respondent.

The time frame for completion of informal resolution may vary, but the University will seek to complete the process within 30 days of receipt of an initial report of sexual misconduct.

The Title IX Coordinator will maintain records of all reports and conduct referred for informal resolution and the outcome of the informal resolution process.

Notice of Investigation and Allegations

Upon receipt of a formal Title IX complaint and/or if a decision is made to proceed an investigation and/or formal resolution, the Title IX Coordinator will provide written notice of the investigation and allegations (the “NOIA”) to the Respondent upon commencement of the process. This facilitates the Respondent’s ability to prepare for the interview and to identify and choose an advisor to accompany them. The NOIA is also copied to the Complainant, who is to be given advance notice of when the NOIA will be delivered to the Respondent.

The NOIA will include:

- A meaningful summary of all of allegations
- The identity of the involved parties (if known)
- The precise misconduct being alleged
- The date and location of the alleged incident(s) (if known)
- The specific policies implicated
- A description of the applicable procedures
- A statement of the potential sanctions/responsive actions that could result
- A statement that the University presumes the Respondent is not responsible for the reported misconduct unless and until the evidence supports a different determination
- A statement that determinations of responsibility are made at the conclusion of the process and that the parties will be given an opportunity to inspect and review all directly related and/or relevant evidence obtained during the review and comment period
- A statement about the University’s policy on retaliation

- Information about the privacy of the process
- Information on the need for each party to have an advisor of their choosing and suggestions for ways to identify an advisor
- A statement informing the parties that the University’s policy prohibits knowingly making false statements, including knowingly submitting false information during the resolution process
- Detail on how the party may request disability accommodations during the interview process
- A copy of this policy and/or other information relevant to alleged sexual misconduct
- The name(s) of the Investigator(s), along with a process to identify, in advance of the interview process, to the Title IX Coordinator any conflict of interest that the Investigator(s) may have
- An instruction to preserve any evidence that is directly related to the allegations

Amendments and updates to the NOIA may be made as the investigation progresses and more information becomes available regarding the addition or dismissal of various charges.

Notice will be made in writing and may be delivered by one or more of the following methods: in person, mailed to the local or permanent address(es) of the parties as indicated in official University records, or emailed to the parties’ University-issued email or designated accounts. Once mailed, emailed, and/or received in-person, notice will be presumptively delivered.

Advisors

A Complainant and Respondent may have an advisor and/or emotional support person (collectively referred to as an advisor) of their choice with them at all meetings and hearings at which the party is entitled to be present, including intake and interviews.

The advisor may be a friend, mentor, family member, attorney, member of the college community, or any other person, as long as they are not also a witness or otherwise a participant in the complaint resolution proceedings.

An advisor may not make a presentation or represent the Complainant or Respondent during any meeting or proceeding, except as otherwise provided herein. During

any meeting or proceeding, the adviser is present to observe and provide counsel and/or emotional support to the party.

Although reasonable attempts will be made to schedule proceedings consistent with the advisor's availability, the process will not be unduly delayed to schedule the proceedings at the convenience of the advisor.

Investigation

Following the initial Title IX assessment and NOIA, the University may initiate a prompt, thorough and impartial investigation. The Title IX Coordinator, in consultation with the Title IX team, will oversee the investigation.

The investigation is designed to provide a fair and reliable gathering of the facts. All individuals in the investigation, including the Complainant, the Respondent and any third-party witnesses, will be treated with appropriate sensitivity and respect. Consistent with the need for a full assessment of the facts, the investigation will safeguard the privacy of the individuals involved.

The University will designate an Investigator who has specific training and experience investigating allegations of sexual misconduct. The Investigator may be an employee of the University or an external Investigator engaged to assist the University in its fact gathering. The University may use a team of two Investigators, which may include the pairing of an external Investigator with a University employee. Any Investigator chosen to conduct the investigation must be impartial and free of any conflict of interest. The parties may, at any time during the resolution process, raise a concern regarding bias or conflict of interest, and the Title IX Coordinator will determine whether the concern is reasonable and supportable. If so, the Title IX Coordinator will assign another trained administrator. If the source of the conflict of interest or bias is the Title IX Coordinator, concerns should be raised with the University President.

The Investigator will coordinate the gathering of information from the Complainant, the Respondent, and any other individuals who may have information relevant to the determination. The Investigator will also gather any available physical or medical evidence, including documents, communications between the parties, and other electronic records as appropriate. The Investigator generally will not access, consider, disclose, or otherwise use a party's records that are made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional acting in the

professional's or paraprofessional's capacity, or assisting in that capacity, and which are made and maintained in connection with the provision of treatment to the party, unless the Investigator obtains that party's voluntary, written consent to do so. The Investigator may consider prior allegations of, or findings of responsibility for, similar conduct by the Respondent. The Complainant and Respondent will have an equal opportunity to be heard, to submit evidence, and to identify witnesses who may have relevant information, and to suggest questions to the Investigator to ask witnesses.

The Investigator, not the parties, is responsible for gathering relevant evidence. When participation of a party is expected, the Investigator will provide that party with written notice of the date, time, and location of the meeting, as well as the expected participants and purpose.

At the conclusion of the investigation the Investigator will prepare a draft investigation report summarizing the investigation, all witness interviews, and addressing all relevant evidence. Appendices including relevant physical or documentary evidence will be included. The Investigator will provide the parties and any respective advisors the draft investigation report and an opportunity to inspect and review all of the evidence (inculpatory and exculpatory) obtained as part of the investigation that is directly related to the reported misconduct for a 10 business day review and comment period. The Investigator will incorporate relevant elements of the parties' written responses into the final investigation report, include any additional relevant evidence, make any necessary revisions, and finalize the report. The Investigator should document all rationales for any changes made after the review and comment period. The Investigator may share the report with the Title IX Coordinator for review and feedback. The Investigator will incorporate any relevant feedback, and the final report is then shared with all parties and their advisors through secure electronic transmission or hard copy at least 10 business days prior to any hearing. The parties are also provided with a file of any directly related evidence that was not included in the report.

The investigation will usually be completed within 30 business days. Given the availability of witnesses or complexity of the circumstances, this time frame may be extended as necessary to ensure the integrity and completeness of the investigation.

Information gathered during the investigation will be used to evaluate the appropriate course of action, provide for the safety of the individual and the campus community, and impose remedies as necessary to address the effects of the

conduct cited in the report.

The University operates with the presumption that the Respondent is not responsible for the reported misconduct unless and until the Respondent is determined to be responsible for a policy violation by the applicable standard of proof.

The investigation does not consider: 1. incidents not directly related to the possible violation, unless they evidence a pattern; 2. questions and evidence about the Complainant's sexual predisposition or prior sexual behavior, unless such questions and evidence about the Complainant's prior sexual behavior are offered to prove that someone other than the Respondent committed the conduct alleged by the Complainant, or if the questions and evidence concern specific incidents of the Complainant's prior sexual behavior with respect to the Respondent and are offered to prove consent.

Threshold Determination for Non-Title IX Sexual Harassment Claims

For a claim that is found to not fall within Title IX, the Investigator will, at the conclusion of the investigation, prepare a written report synthesizing the facts for review by the Title IX Coordinator. The Investigator is not charged with reaching a determination as to responsibility, which is a function reserved for the University Committee on Student Behavior or other hearing body as designated by the Title IX Coordinator.

Upon receipt of the investigative report, the Title IX Coordinator will review the report and make a threshold determination as to whether there is sufficient information upon which an adjudicator could find a violation of policy. This threshold determination does not involve making a determination of responsibility, nor does it involve a credibility assessment. If the threshold has not been established, the Title IX Coordinator will issue a notification letter to the Respondent and the Complainant and dismissing the complaint.

If the complaint is dismissed, the Complainant will have the opportunity to seek review by the assistant vice president or designee by submitting a written request for review within five business days of receipt of the notification. If an appeal is filed, the Respondent will be notified and have the opportunity to respond. The assistant vice president may affirm the threshold finding, reverse the finding, or remand the matter for additional investigation as warranted. The Assistant Vice President will render a

decision in writing, to both parties, at the same time, within 10 business days of receipt of the request for review. The decision of the Assistant Vice President is final. Where a designee is chosen, the identity of this individual will be shared with both parties.

Formal Resolution

Formal resolution of a complaint against a student under the Sexual Misconduct Policy will occur at a live hearing through the University Committee on Student Behavior (UCSB) or a single chair/decision-maker. The Title IX Coordinator, in consultation with appropriate University administrators, may refer matters subject to Formal Resolution to an external adjudicator, such as JAMS, in cases that the relevant Coordinator, in his or her sole discretion, deems appropriate. A UCSB typically consists of four members (three voting members/decision-makers and one, non-voting chair) who are drawn from a pool of trained faculty, staff, and students. All decision-makers must participate in annual training on the dynamics of sexual misconduct, the factors relevant to a determination of credibility, the appropriate manner in which to receive and evaluate sensitive information, the manner of deliberation, evaluation of consent and incapacitation, the application of the preponderance of the evidence standard, sanctioning, and the University's policies and procedures. The training is coordinated by the Title IX Coordinator in conjunction with campus and external partners. If conducted by an external adjudicator, such as JAMS, the decision-maker may consist of a single individual who may also serve as the chair.

The formal resolution process to resolve sexual misconduct complaints, which provides a mechanism by the accused may cross-examine witnesses through an advisor at a hearing in which the witnesses appear in person or by other means (such as videoconferencing) and a neutral adjudicator or decision-maker has the power independently to find facts and make credibility assessments.

If the hearing must be heard at or after the end of the semester or academic year and/or a full UCSB cannot reasonably be convened, case may be heard by a single decision-maker or chair, or the University may substitute an alternate appropriate method of adjudication at its discretion.

Hearing Procedures

Pre-Hearing Meeting with Complainant and/or Respondent

After the investigation report is finalized, the Title IX Coordinator may contact the Complainant and Respondent to schedule combined or separate meetings with each party. At any pre-hearing meeting, each party will receive an explanation of the hearing process and have the opportunity to ask any questions. If the Complainant and/or Respondent have elected to have advisors throughout the hearing process, the advisor is encouraged to accompany the Complainant/Respondent to such meetings.

The chair may convene a pre-hearing meeting(s) with the parties and/or their advisors to invite them to submit the questions or topics they (the parties and/ or their advisors) wish to ask or discuss at the hearing, so that the chair can rule on their relevance ahead of time to avoid any improper evidentiary introduction in the hearing or provide recommendations for more appropriate phrasing. However, this advance review opportunity does not preclude the advisors from asking a question for the first time at the hearing or from asking for a reconsideration based on any new information or testimony offered at the hearing. The chair must document and share with each party their rationale for any exclusion or inclusion at a pre-hearing meeting.

The chair, only with full agreement of the parties, may decide in advance of the hearing that certain witnesses do not need to be present if their testimony can be adequately summarized by the Investigator(s) in the investigation report or during the hearing.

At each pre-hearing meeting with a party and their advisor, the chair will consider arguments that evidence identified in the final investigation report as relevant is, in fact, not relevant. Similarly, evidence identified as directly related but not relevant by the Investigator may be argued to be relevant. The chair may rule on these arguments pre-hearing and will exchange those rulings between the parties prior to the hearing to assist in preparation for the hearing. The chair may consult with legal counsel and/or the Title IX Coordinator or ask either or both to attend pre-hearing meetings.

The pre-hearing meeting(s) will generally not be recorded. The pre-hearing meetings may be conducted as separate meetings with each party/ advisors with all parties/advisors present at the same time, remotely, or as a paper-only

exchange. The chair will work with the parties to establish the format.

Notice of Hearing

When the chair is ready to proceed with a hearing, Notice of Hearing is sent to the Complainant and the Respondent. The notice provides the parties with the date, time, and place of the hearing, as well as the name(s) of the person(s) hearing the case, identifies all pertinent documentary evidence, and provides the final investigation report to the parties at least 10 business days prior to the hearing.

Any witness scheduled to participate in the hearing must have been first interviewed by the Investigator or have proffered a written statement or answered written questions, unless all parties and the chair assent to the witness's participation in the hearing. The same holds for any evidence that is first offered at the hearing. If the parties and chair do not assent to the admission of evidence newly offered at the hearing, the chair may delay the hearing and instruct that the investigation needs to be re-opened to consider that evidence.

The chair will give the decision-maker(s) a list of the names of all parties, witnesses, and advisors at least five business days in advance of the hearing. Any decision-maker who cannot make an objective determination must recuse themselves from the proceedings when notified of the identity of the parties, witnesses, and advisors in advance of the hearing. If a decision-maker is unsure of whether a bias or conflict of interest exists, they must raise the concern to the Title IX Coordinator as soon as possible.

During the 10 business day period prior to the hearing, the parties have the opportunity for continued review and comment on the final investigation report and available evidence. That review and comment can be shared with the chair at the pre-hearing meeting or at the hearing and will be exchanged between each party by the chair.

Objections to the Chair and/or Composition of the UCSB

The Complainant and the Respondent may submit a written request to the Title IX Coordinator that the chair and/or any member of the UCSB be removed. The request must clearly state the grounds to support a claim of bias, conflict of interest or an inability to be fair and impartial. This challenge must be raised within two business days of receipt of the Notice of Hearing. All objections must be raised prior to the commencement of the hearing.

Witnesses

The Complainant, Respondent, UCSB, and/or chair all have the right to call witnesses. Witnesses must have observed the conduct in question or have information relevant to the incident and should not be called solely to speak about an individual's character.

In general, neither party will be permitted to call as a witness anyone who was not interviewed by the Investigator as part of the University's investigation. If either party wishes to call witnesses, whether or not they were previously interviewed as part of the University's investigation, the following must be submitted no later than seven business days before the hearing to the chair via e-mail or in hardcopy format:

- The names of any witnesses that either party intends to call
- A written statement and/or description of what each witness observed, if not already provided during investigation
- A summary of why the witness' presence is relevant to making a decision about responsibility at the hearing
- The reason why the witness was not interviewed by the Investigator, if applicable

The chair will determine if the proffered witness(es) has relevant information and if there is sufficient justification for permitting a witness who was not interviewed by the Investigator. The chair may also require the Investigator to interview the newly proffered witness, and/or may postpone the hearing.

If witnesses are approved to be present, the Respondent and Complainant are provided with a list of witnesses and any relevant documents related to their appearance at the hearing no later than 10 business days before the hearing. All parties have the opportunity to ask questions of witnesses (through the chair, UCSB, and/or their advisor), regardless of who called them to the hearing.

Prior Sexual History and/or Pattern Evidence

1. **Prior Sexual History of a Complainant:** In general, a Complainant's prior sexual history is not relevant and will not be admitted as evidence at a hearing. Where there is a current or ongoing relationship between the Complainant and the Respondent, and the Respondent alleges consent, the prior sexual history between the parties may be relevant to assess

the manner and nature of communications between the parties. As noted in other sections of this policy, however, the mere fact of a current or previous dating or sexual relationship, by itself, is not sufficient to constitute consent. Any prior sexual history of the Complainant with other individuals is typically not relevant and will not be permitted.

2. **Pattern Evidence by a Respondent:** Where there is evidence of pattern of conduct similar in nature by the Respondent, either prior to or subsequent to the conduct in question, regardless of whether there has been a finding of responsibility, this information may be deemed relevant and probative to the panel's determination of responsibility and/or assigning of a sanction. The determination of relevance will be based on an assessment of whether the previous incident was substantially similar to the conduct cited in the report and indicates a pattern of behavior and substantial conformity with that pattern by the Respondent. Where there is a prior finding of responsibility for a similar act of sexual misconduct, there is a presumption of relevance and the finding may be considered in making a determination as to responsibility and/or assigning of a sanction.

The University, through the chair, may choose to introduce this information with appropriate notice to the parties. Alternatively, a party may request in writing that information under this section be admitted. A request to admit such information must be submitted to the chair. The chair will assess the relevance of this information and determine if it is appropriate for inclusion at the hearing.

Evidentiary Considerations in the Hearing

Any evidence that the chair or decision-maker(s) determine(s) is relevant and credible may be considered. The hearing does not consider: 1. incidents not directly related to the possible violation, unless they evidence a pattern; 2. questions and evidence about the Complainant's sexual predisposition or prior sexual behavior, unless such questions and evidence about the Complainant's prior sexual behavior are offered to prove that someone other than the Respondent committed the conduct alleged by the Complainant, or if the questions and evidence concern specific incidents of the Complainant's prior sexual behavior with respect to the Respondent and are offered to prove consent.

Previous disciplinary action of any kind involving the Respondent may be considered in determining an appropriate sanction upon a determination of

responsibility.

The parties may each submit a written impact statement prior to the hearing for the consideration of the decision-maker(s) at the sanction stage of the process when a determination of responsibility is reached.

Request to Reschedule Hearing

Either party can request to have a hearing rescheduled. Absent extenuating circumstances, requests to reschedule must be submitted to the chair with an explanation for his or her request at least three business days prior to the hearing.

Consolidation of Hearings

At the discretion of the Title IX Coordinator, multiple reports may be consolidated against a Respondent in one hearing if the evidence related to each incident would be relevant and probative in reaching a determination on the other incident. Matters may be consolidated where they involve multiple Complainants, multiple Respondents, or related conduct that would regularly have been heard under this policy or the Code of Student Conduct.

Alternative Testimony Options

All parties have the right to a range of options for providing testimony and participating in the hearing process. If a party or parties prefer not to attend or cannot attend the hearing in person, the party should request alternative arrangements from the Title IX Coordinator or the chair at least five business days prior to the hearing. Alternate arrangements will enable the parties and the decision-maker(s) to hear and see each other.

The Title IX Coordinator or the chair can arrange to use technology to allow remote testimony without compromising the fairness of the hearing. Remote options may also be needed for witnesses who cannot appear in person. Any witness who cannot attend in person should let the Title IX Coordinator or the chair know at least five business days prior to the hearing so that appropriate arrangements can be made.

Refusal to Submit to Cross-Examination and Inferences

If a party or witness chooses not to submit to cross-examination at the hearing, either because they do not attend the meeting, or they attend but refuse to participate in questioning, then the decision-maker(s) may not rely on any prior statement made by that party or witness at the

hearing (including those contained in the investigation report) in the ultimate determination of responsibility. The decision-maker(s) must disregard that statement. Evidence provided that is something other than a statement by the party or witness may be considered.

If the party or witness attends the hearing and answers some cross-examination questions, only statements related to the cross-examination questions they refuse to answer cannot be relied upon. However, if the statements of the party who is refusing to submit to cross-examination or refuses to attend the hearing are the subject of the allegation itself (i.e., the case is about verbal harassment or a quid pro quo offer), then those statements are not precluded from admission. Similarly, statements can be relied upon when questions are posed by the decision-maker(s), as distinguished from questions posed by Advisors through cross-examination.

The decision-maker(s) may not draw any inference solely from a party's or witness's absence from the hearing or refusal to answer cross-examination or other questions.

If charges of policy violations other than sexual harassment are considered at the same hearing, the decision-maker(s) may consider all evidence it deems relevant, may rely on any relevant statement as long as the opportunity for cross-examination is afforded to all parties through their advisors, and may draw reasonable inferences from any decision by any party or witness not to participate or respond to questions.

If a party's advisor of choice refuses to comply with the University's established rules of decorum for the hearing, the University may require the party to use a different advisor. If a University-provided advisor refuses to comply with the rules of decorum, the University may provide that party with a different advisor.

Recording Hearings

Hearings (but not deliberations) are recorded by the University for purposes of review in the event of an appeal. The parties may not record the proceedings and no other unauthorized recordings are permitted. The decision-maker(s), the parties, their advisors, and appropriate administrators of the University will be permitted to listen to the recording in a controlled environment determined by the Title IX Coordinator. No person will be given or be allowed to make a copy of the recording without permission of the Title IX Coordinator.

Deliberation, Decision-making, and Standard of Proof

The decision-maker(s) will deliberate in closed session to determine whether the Respondent is responsible or not responsible for the policy violation(s) in question. If a panel is used, a simple majority vote is required to determine the finding. The preponderance of the evidence standard of proof is used.

When there is a finding of responsibility on one or more of the allegations, the decision-maker(s) may then consider the previously submitted party impact statements in determining appropriate sanction(s). The chair will ensure that each of the parties has an opportunity to review any impact statement submitted by the other party(ies).

The decision-maker(s) will review the statements and any pertinent conduct history provided by appropriate administrator and will recommend/ determine the appropriate sanction(s) in consultation with other appropriate administrators, as required.

The decision-makers will then prepare a written statement of outcome ("outcome") and deliver it to the Title IX Coordinator, which shall include (i) a summary of the allegations which are the basis for the formal complaint; (ii) a description of the procedural steps taken in response to the complaint from the date of the receipt of the formal complaint through the outcome; (iii) the findings of fact; (iv) conclusions as to whether the findings of facts evidence a violation of the policy; and (v) a statement of, and rationale for an outcome regarding responsibility and any disciplinary sanctions imposed.

This outcome shall be submitted to the Title IX Coordinator within 10 business days of the end of deliberations, unless the Title IX Coordinator grants an extension. If an extension is granted, the Title IX Coordinator will notify the parties.

Notification of Outcome

The outcome and information concerning the appeal process will be shared with the parties simultaneously. The outcome may be delivered by one or more of the following methods: in person, mailed to the local or permanent address of the parties as indicated in official University records, or emailed to the parties' University-issued email or otherwise approved account. Once mailed, emailed, and/or received in- person, notice will be presumptively delivered.

Sanctions

Factors considered when determining a sanction/ responsive action may include, but are not limited to:

1. The nature, severity of, and circumstances surrounding the violation(s)
2. The Respondent's disciplinary history
3. Previous allegations or allegations involving similar conduct
4. The need for sanctions/responsive actions to bring an end to the discrimination, harassment, and/or retaliation
5. The need for sanctions/responsive actions to prevent the future recurrence of discrimination, harassment, and/or retaliation
6. The need to remedy the effects of the discrimination, harassment, and/or retaliation on the Complainant and the community
7. The impact on the parties
8. Any other information deemed relevant by the decision-maker(s)

The sanctions will be implemented as soon as is feasible, either upon the outcome of any appeal or the expiration of the window to appeal without an appeal being requested.

The sanctions described in this policy are not exclusive of, and may be in addition to, other actions taken or sanctions imposed by external authorities.

Student Sanctions

The following are the usual sanctions that may be imposed upon students or organizations singly or in combination:

1. **Warning:** A formal statement that the conduct was unacceptable and a warning that further violation of any University policy, procedure, or directive will result in more severe sanctions/responsive actions.
2. **Required Counseling:** A mandate to meet with and engage in either University-sponsored or external counseling to better comprehend the misconduct and its effects.
3. **Probation:** A written reprimand for violation of institutional policy, providing for more severe disciplinary sanctions in the event that the student or

organization is found in violation of any institutional policy, procedure, or directive within a specified period of time. Terms of the probation will be articulated and may include denial of specified social privileges, exclusion from co-curricular activities, exclusion from designated areas of campus, no-contact orders, and/or other measures deemed appropriate.

4. Suspension: Termination of student status for a definite period of time not to exceed two years and/or until specific criteria are met. Students who return from suspension are automatically placed on probation through the remainder of their tenure as a student at the University.
5. Expulsion: Permanent termination of student status and revocation of rights to be on campus for any reason or to attend University-sponsored events. This sanction will be noted permanently as a conduct expulsion on the student's official transcript, subject to any applicable expungement policies.
6. Withholding Diploma: The University may withhold a student's diploma for a specified period of time and/or deny a student participation in commencement activities if the student has an allegation pending or as a sanction if the student is found responsible for an alleged violation.
7. Revocation of Degree: The University reserves the right to revoke a degree previously awarded from the University for fraud, misrepresentation, and/or other violation of University policies, procedures, or directives in obtaining the degree, or for other serious violations committed by a student prior to graduation.
8. Organizational Sanctions: Deactivation, loss of recognition, loss of some or all privileges (including University registration) for a specified period of time.
9. Other Actions: In addition to or in place of the above sanctions, the University may assign any other sanctions as deemed appropriate.

Employee Sanctions/Responsive Actions

Responsive actions for an employee who has engaged in harassment, discrimination, and/or retaliation include:

1. Warning – Verbal or written
2. Performance improvement plan/ management process
3. Enhanced supervision, observation, or review

4. Required counseling
5. Required training or education
6. Probation
7. Denial of pay increase/pay grade
8. Loss of oversight or supervisory responsibility
9. Demotion
10. Transfer
11. Reassignment
12. Delay of tenure track progress
13. Assignment to new supervisor
14. Restriction of stipends, research, and/or professional development resources
15. Suspension with pay
16. Suspension without pay
17. Termination
18. Other actions: In addition to or in place of the above sanctions/responsive actions

The University may assign any other responsive actions as deemed appropriate.

Withdrawal or Resignation While Charges Pending

Students: If a student has an allegation pending for violation of the sexual misconduct policy, the University may place a hold on a student's ability to graduate and/or to receive an official transcript/diploma.

Should a student decide to not participate in the resolution process, the process proceeds absent their participation to a reasonable resolution. Should a student Respondent permanently withdraw from the University, the resolution process ends, as the University no longer has disciplinary jurisdiction over the withdrawn student. However, the University will continue to address and remedy any systemic issues, variables that may have contributed to the alleged violation(s), and any ongoing effects of the alleged harassment, discrimination, and/or retaliation. The student who withdraws or leaves while the process is pending may not return to the University. A hold will be placed on the ability to be readmitted. They may also be barred from

University property and/or events.

If the student Respondent withdraws or takes a leave for a specified period of time (i.e., one semester or term), the resolution process may continue remotely and that student is not permitted to return to the University unless and until all sanctions have been satisfied.

Employees: Should an employee Respondent resign with unresolved allegations pending, the resolution process ends, as the University no longer has disciplinary jurisdiction over the resigned employee. However, the University will continue to address and remedy any systemic issues, variables that contributed to the alleged violation(s), and any ongoing effects of the alleged harassment or discrimination.

The employee who resigns with unresolved allegations pending is not eligible for rehire with the University, and the records retained by the Title IX Coordinator will reflect that status.

All University responses to future inquiries regarding employment references for that individual will include that the former employee resigned during a pending disciplinary matter.

Appeals

Either party may appeal the outcome in writing to the Title IX Coordinator's designee (the "appeals officer"). The appeal will be conducted in an impartial manner by an impartial decision-maker. The appeal must be filed in writing within five business days of receiving the outcome. The appeal should consist of a plain, concise and complete written statement outlining the grounds for appeal and all relevant information to substantiate the basis for the appeal. The Complainant and/or Respondent may appeal only the parts of outcome directly relating to him/her. Dissatisfaction with the outcome of the hearing is not grounds for appeal.

The only grounds for appeal are:

1. Procedural irregularity that affected the outcome of the matter
2. New evidence that was not reasonably available at the time the outcome regarding responsibility or dismissal was made, that could affect the outcome of the matter
3. The Title IX Coordinator, Investigator(s), or decision-maker(s) had a conflict of interest or bias for or

against Complainants or Respondents generally or the specific Complainant or Respondent that affected the outcome of the matter

The other party(ies) and their advisors, the Title IX Coordinator, and, when appropriate, the Investigators and/or the original decision-maker(s) will be mailed, emailed, and/or provided a hard copy of the request with the approved grounds and then be given 10 business days to submit a response to the portion of the appeal that was approved and involves them. All responses will be forwarded by the chair to all parties for review and comment.

The non-appealing party (if any) may also choose to raise a new ground for appeal at this time. If so, that will be reviewed to determine if it meets the grounds in this policy by the Appeals Officer and either denied or approved. If approved, it will be forwarded to the party who initially requested an appeal, the Investigator(s) and/or original decision-maker(s), as necessary, who will submit their responses in 10 business days, which will be circulated for review and comment by all parties.

Neither party may submit any new requests for appeal after this time period. The Appeals Officer will collect any additional information needed and all documentation regarding the approved grounds and the subsequent responses and the Appeals Officer will render a decision in no more than five business days, barring exigent circumstances. All decisions apply the preponderance of the evidence standard.

A Notice of Appeals Outcome will be sent to all parties simultaneously including the decision on each approved ground and rationale for each decision. The Notice of Appeals Outcome will specify the finding on each ground for appeal, any specific instructions for remand or reconsideration, any sanctions that may result which the University is permitted to share according to state or federal law, and the rationale supporting the essential findings to the extent the University is permitted to share under state or federal law.

Notification will be made in writing and may be delivered by one or more of the following methods: in person, mailed to the local or permanent address of the parties as indicated in official institutional records, or emailed to the parties' University-issued email or otherwise approved account. Once mailed, emailed and/or received in-person, notice will be presumptively delivered.

If the appeal is based on procedural or substantive error,

the Appeals Officer may return the complaint to the original decision-maker(s) with instructions to reconvene to remedy the error, or in rare cases where the error cannot be remedied, the Appeals Officer can ask that a new hearing occur before a new decision-maker or newly constituted UCSB. In the case of new and relevant information, the Appeals Officer can recommend that the case be returned to the original decision-maker or UCSB to assess the weight and effect of the new information and render an outcome after considering the new facts. The reconsideration of the decision-maker or UCSB is final.

Appeals are not intended to be full rehearing of the complaint. In most cases, appeals are confined to a review of the written documentation or record of the original hearing and pertinent documentation regarding the grounds for appeal. This is not an opportunity for the Appeals Officer to substitute his/her judgment for that of the original hearing body merely because he or she disagrees with its finding and/or sanctions. Appeals decisions are to be deferential to the original hearing body, making changes to the finding only where there is clear error. The Appeals Officer can affirm or alter the original findings, depending on the basis of the requested appeal.

Any sanctions imposed as a result of the hearing are stayed during the appeal process. Supportive measures may be reinstated, subject to the same supportive measure procedures above.

If any of the sanctions are to be implemented immediately post-hearing, but pre-appeal, then emergency removal procedures (detailed above) for a hearing on the justification for doing so must be permitted within 48 hours of implementation.

The University may still place holds on official transcripts, diplomas, graduations, and course registration pending the outcome of an appeal when the original sanctions included separation.

Records

The University will maintain for a period of at least seven years records of:

1. Each sexual harassment investigation including any determination regarding responsibility and any audio or audiovisual recording or transcript required under federal regulation.
2. Any disciplinary sanctions imposed on the Respondent.

3. Any remedies provided to the Complainant designed to restore or preserve equal access to the University's education program or activity.
4. Any appeal and the result therefrom.
5. Any informal resolution and the result therefrom.
6. All materials used to train Title IX Coordinators, Investigators, decision-makers, and any person who facilitates an informal resolution process. The University will make these training materials publicly available on the University's website.
7. Any actions, including any supportive measures, taken in response to a report or formal complaint of sexual harassment, including:
 - a. The basis for all conclusions that the response was not deliberately indifferent.
 - b. Any measures designed to restore or preserve equal access to the University's education program or activity
 - c. If no supportive measures were provided to the Complainant, document the reasons why such a response was not clearly unreasonable in light of the known circumstances.

The University will also maintain any and all records in accordance with state and federal laws.

Disabilities Accommodations in the Resolution Process

The University is committed to providing reasonable accommodations and support to qualified students, employees, or others with disabilities to ensure equal access to the University's resolution process.

Anyone needing such accommodations or support should contact the director of Student Services (for students) or vice president for Human Resources (for employees and others), who will review the request and, in consultation with the person requesting the accommodation and the Title IX Coordinator, determine which accommodations are appropriate and necessary for full participation in the process

Policies and Procedures Student Expression Policy

Student Expression Policy

BACKGROUND

The ability and opportunity to freely express ideas and viewpoints are vital to Woodbury University, higher education as whole, and to a thriving democracy. Also vital to a robust and well-rounded educational journey is the necessity of being exposed to ideas and viewpoints that are different, and perhaps challenging, to one's previously held ideas and viewpoints. Indeed, one of Woodbury University's core values is to "build a culture that values diversity and inclusion, open communication, collaboration, and engagement." This value contemplates and celebrates that there will be variety within our community, which includes, among other factors, a diversity of ideas and viewpoints.

Together, we can build bridges across difference by fostering a community where students are empowered to engage in meaningful intellectual curiosity; discern their sense of purpose, identity, and values; and build skills through the exploration of complex societal problems, diverse viewpoints, and multidisciplinary innovative solutions that are foundational living cornerstones of our mission. One way that we welcome our diverse community of learners is to give each one of us the opportunity to speak and to hear the views and ideas of others.

As an academic and professional environment that respects the dignity of all individuals in our community, the opportunity and right to express viewpoints comes with responsibilities. Woodbury University expects that its students will engage in the free exchange of ideas and debate while showing respect to all other members of our community, including others with whom they disagree. The University expects students to be guided by our values of excellence, ethics, aspiration, and community aspiring to become ethical thinkers and creative problem solvers deeply committed to sustainability and social justice—especially as we debate contentious and controversial issues.

Woodbury University is a private University and a private property owner. The civil rights and liberties set forth in the First Amendment to the United States Constitution apply directly only to public entities. California statutory law, however, prevents private universities in the state from censoring or punishing students for speech that would

be protected by the First Amendment at a public institution. This Policy is intended to permit free expression consistent with these and other legal requirements, including Title VI of the Civil Rights Act of 1964 and Title IX of the Education Amendments of 1972, and related University policies and procedures.

With these principles in mind, this Policy is intended to clarify the breadth and limits of students' right of expression on the Woodbury University campus. The Freedom of Expression compendium and frequently asked questions attached to this document is designed to make available support, student skill development tools and resources (e.g. sustained dialogue across difference, restorative justice), and planning resources (e.g. debate planning, counter-protest, demonstration logistics) for all students, regardless of where they may be in their free expression continuum, identity or value exploration.

POLICY

The University supports the rights of students to freely express ideas and viewpoints and to engage in campus demonstrations in responsible ways.

A **demonstration** is intended to cover activities including rallies, assemblies, protests, and other gatherings of people joined together to express views on a particular issue. Participating with the group's activities is sufficient to qualify as participation in a demonstration, even if an individual does not hold the same beliefs as the group.

Student Free Expression and demonstrations are "responsible" at the Woodbury University campus and property when:

- they are nonviolent and do not advocate for or incite violence against others or damages to real or personal property;
- they do not violate the University's Student Code of Conduct or other applicable behavioral codes, and the University's Social Media Community Standards;
- they do not **substantially disrupt** University operations, including academic activities, ceremonies, University business, University-invited speakers, or approved University or external events and programs; and
- they do not infringe on the legal rights of other members of the University community, or their rights and privileges.

Except as provided herein, the University does not censor

or punish speech based on its content or viewpoint or based merely on the fact that others find the speech or demonstration offensive or hateful. The University will impose reasonable time, place, and manner restrictions on permissible speech.

1. Prohibited Speech

The University prohibits students' free expression that constitutes **true threats** or **unlawful harassment**, or that destroys property or disrupts campus activities.

A prohibited **true threat** is any speech that causes someone to reasonably fear for their safety and/or the safety of the community.

Unlawful harassment is defined extensively in the University Policy Prohibiting Discrimination, Harassment, Sexual Misconduct, and Retaliation. Generally, harassment is any speech in any medium (written, verbal, cyber) that is directed against another individual on the basis of a protected characteristics (e.g., race, disability, sex, gender, sexual orientation, religion, age) and which has the intent or effect of unreasonably interfering with that person's access to University resources, programs or activities or creating a hostile learning, living or working environment.

The **destruction of property** to communicate a message is prohibited. This includes posting flyers or other material (e.g. coverings, sheets, objects, newspapers, posters, cardboard, zip ties, rope/string or any kind, aluminum foil) in undesignated areas, campus facilities, structures, statues, or campus trees, lawns or flowerbeds, and applying ink, paint, or another substance in such a way that it takes employee time and effort to remove or results in permanent damage. Scaling or repelling from any facility is also prohibited.

Substantial disruption of campus activities occurs when speech blocks, impedes, prevents or disrupts right to access and the effective carrying out of a University function or approved activity, including programs and activities, living-learning and working environment, lectures (by faculty or guest speakers), meetings, interviews, ceremonies, the conduct of University business in a University office, facilities, public events, or the legitimate movement of any person or vehicle about the campus buildings or outside property areas.

Substantial disruption of campus activities includes coercive activities. No one may attempt to coerce any other person into viewing, listening to, or accepting a copy of any communication. No person may persist in requesting or demanding the attention of any other person after that

other person has attempted to move away or has clearly refused to engage. For instance, if a person has repeatedly refused to take a pamphlet, throwing the pamphlet at the person or interfering with their access to a university facility, event or activity, would interfere with his or her rights. The imposition of opinions and concerns upon those who in turn dissent from them via means of harassment, retaliation (e.g. exclusion or isolation from student organization club or activity) or bullying, including online, is not to be condoned and is inconsistent with a university's process and function.

2. Offensive Speech that is not Prohibited Speech

While the law prevents the University from censoring or punishing hate speech, the University is opposed to hate speech and will speak out in condemnation of egregious speech. Community members, likewise, can and should make their own assessment of such speech and may speak out against it.

TIME, PLACE, AND MANNER RESTRICTIONS

1. Free Expression Zones

To facilitate student free expression, while also attempting to protect the living, learning, and working environment, the University has established two campus locations as student "free expression zones." These zones were selected because of their high degree of visibility and likelihood to promote effective communication while not being disruptive of university operations, including academic activities, ceremonies or approved events.

Permissible student expression or demonstrations (that is, student expression that does not constitute prohibited speech as defined above) that take place in the free expression zones require no advance arrangement or notification. The two free expression zones include:

1. The south section of the Alumni Quad opposite Hensel Hall, on the grass only, remaining within the boundaries of the sidewalk on all four sides.

2. The larger middle section of the Quad opposite Miller Hall, on the grass only, remaining within the boundaries of the sidewalk on all four sides.

The sidewalk itself is not considered part the free expression zones and should not be occupied under any circumstance during demonstrations. Areas where the protections for free expression under this policy do not extend include parking lots, inside university buildings,

and within 20 feet of any location in which instruction, education and/or official business activities are being conducted.

2. Free Expression in Other Campus Areas

Student expression and demonstrations in the areas identified above, as previously stated, require no advance notice. That does not mean that free speech is only available at those locations. If individual students or student groups believe that access to other parts of campus, other than prohibited areas which include parking lots, inside university buildings, and within 20 feet of any location in which instruction, education, and/or official business activities are being conducted, is important to the effective communication of viewpoints or effective protest, individual students or student leaders should contact the Office of Student Affairs, who will explore how access to other parts of campus can be accomplished consistent with reasonable time, place and manner restrictions outlined in this policy. Student Affairs can help secure logistical support for the event (e.g., security) and prevent unanticipated conflicts with existing events.

a. Protests at or in Close Proximity to Approved Campus Events

Students who disagree with another person's protected speech have options to their own expression protected by this Policy. They may peaceably protest at the time and place of the other person's speech. They may host their own event where they share their own views (and others may peaceably protest that event). They may set up debates on the topic. Organizing student leader or student organization/club leadership should contact the Office of Student Affairs for logistical support as well as debate planning.

If a demonstration or expression interferes with an unrelated approved campus event, the demonstration or expression must be moved to a completely different area. If the demonstration or expression is related to the approved campus event, the demonstration or expression will be accommodated so that it can be delivered and so that the campus event can move forward without substantial disruption. For example, a demonstration related to a speech about climate change in Ahmanson (Architecture Complex) will be situated so that people attending the event in the Ahmanson can freely enter and hear the speech and so that protesters can effectively deliver their message prior to or after the event. Coordination with the Office of Student Affairs to support time, place, and manner in advance by organizing demonstration (or protest) student leader or club/organization leadership is required to ensure

logistical support for safety and well-being of all.

To be clear, the University follows well-established principles in the First Amendment and state law by disallowing the so-called "heckler's veto." That is, we do not permit protest or counter-speech that substantially impairs the effective conduct of another person's speech protected under this Policy. Students who substantially impair the effective conduct of another person's protected speech will be asked to leave the premises and could be lawfully subjected to discipline under applicable University codes of conduct or arrest if their conduct amounts to criminal conduct.

b. Speech in the Classroom, Studios, or Other Curricular Settings

Student expression in classrooms, studios, and other curricular settings is subject to restrictions that are consistent with expectations in a professional educational environment, where students expect to be assessed based on the content and quality of their scholarship, both in written papers and examinations and in oral presentations and critiques, as well as to allow others in the classroom to receive their education.

c. Speech in the Living Areas on Campus

This Policy generally applies to student expression in living areas on campus. Special consideration is given to the need to provide students with quiet enjoyment in their place of residence on campus and a supportive living-learning environment where they can study and find rest. Therefore, speech or demonstrations that might otherwise be permissible in open spaces on campus may be prohibited in living areas, consistent with Residence Life and Housing rules and regulations and with students' housing licenses.

3. Guest Speakers and Members of the Public

Consistent with student Campus Life policies and procedures, students must notify Student Affairs in advance of guest speakers they wish to invite to campus, as well as for logistical planning support. If necessary to protect the health and welfare of the members of our community, to ensure protection of property and conservation of University resources, to ensure legal compliance (e.g., with the University's tax-exempt status) or to ensure the purposes of this Policy are not undermined, the University reserves the right to modify or cancel events or demonstrations that are otherwise permitted by this policy, if members of the public who are not current University students, faculty or staff are in

attendance, even if they have been invited by students.

4. Sound Amplification and Use of Noise-Making Devices Prohibited

The use of artificial sound amplification and/or noise-making devices are prohibited. “Amplified sound” is any sound enhanced through any device however powered that magnifies sound, including but not limited to microphones, mobile phones, bull horns, megaphones, and stereo equipment. A “noise-making device” is any device used to make noise including but not limited to drums, whistles, rattles, buckets, houseware items, and horns.

5. Time of Day

As a living and learning community, where students reside, expression protected under this Policy, including demonstrations, is not permitted from 11:00 p.m. to 7:00 a.m.

6. Bills and Protest Signage

Expression through written means that is not affixed to anything (handheld signs, posters, leaflets, etc.) or otherwise in a prohibited format that would damage University or others’ property is welcome in the free expression zones without prior approval as long as the written material constitutes otherwise permitted speech and complies with the University’s posting policy managed by of the Office of Student Affairs. Expression through written means that is affixed to something (signs planted in the ground, posters taped to walls/stairs, chalking, etc.), and expression through written means that is not affixed to anything but which is displayed in locations outside the free expression zones, must be approved in advance by Student Affairs and will be subject to reasonable time, place, and manner restrictions. Use of signs that could be weaponized against others or used as blockades to access, including wooden signposts, are prohibited.

7. Prohibition of Encampments, Fencing, Wall Installations, Barricades, Exhibits, Digital Projections, and Other Similar Structures or Fixtures

Encampments, including tents, temporary shelters, fencing, barricades, wall installations, exhibits, digital projections, or any similar structures, are not permitted on campus at any time. Individuals or groups wishing to protest must do so without establishing encampments.

IDENTIFICATION REQUIREMENT

Because the free expression rights under the policy are afforded to enrolled students only, identification upon request may be reasonable and necessary to allow for full free expression under this policy. All people participating in protests and demonstrations are expected to provide a form of University issued or government issued identification upon request from a University official or campus security. This includes complying with directives of a university official, public safety officers, or law enforcement to provide proof of identification and/or to lower any item covering any portion of a face to allow for a match between the person and the identification.

ACCOUNTABILITY

Actions that take place in violation of this policy expose participants to possible disciplinary and/or law enforcement action and participants also will be charged with costs experienced by the University (e.g., cleaning graffiti off university property). If the violation persists or is repeated, or if the assembly poses an imminent danger to public safety, those assembled may be required to disperse immediately. Continued violation may result in arrest and subsequent legal action by the university. If the violation occurs at a scheduled event, the permission for the event may be summarily revoked, and future requests by those individuals or groups in violation may be canceled or denied.

RESOURCES AND RELATED UNIVERSITY POLICIES

U.S. Const. amend. I

Title VI of the Civil Rights Act of 1964, 42 U.S.C. section 2000d et seq.

Title IX of the Education Amendments of 1972, 29 U.S.C. section 1681 et seq.

Cal. Ed. Code section 94367 (Leonard Law)

Chemerinsky, Erwin, and Howard Gillman. Free Speech on Campus. New Haven, CT: Yale

University Press 2017.

University Mission, Vision, and Core Values Statements

Faculty Policies on Academic Freedom, Professional

Ethics, Standards, and Non-Discrimination (Faculty Handbook section B.)

University Policies Prohibiting Discrimination, Harassment, Sexual Misconduct, and Retaliation

University Posting Policy

Solicitation Guidelines

1. Any persons or organizations wishing to conduct solicitation on the Woodbury campus must request permission by using the Solicitation Request Application available from Student Affairs.
2. A location will be assigned pending approval.
3. Confirmations of approval for solicitation will be granted by Student Affairs within four working days.
4. A fee of \$100 per day with a two-day maximum per semester must be paid in advance to the Business Office and may be adjusted at the discretion of Student Affairs.
5. Solicitation sponsorship: When student organizations sponsor individuals or for-profit companies, it is suggested that 10% of gross sales be paid to the student organization. Student organizations, faculty, and staff members are cautioned against agreeing to any solicitation sponsorship without adequate research into the background and business track records of any companies or individuals seeking such sponsorship. Refer to event approval procedures for additional information.
6. Policy: All materials must be approved by Student Affairs before posting.
 - d. Post materials on vehicles parked on campus.

Limitations

1. No person or organization given approval to solicit on Woodbury University's Campus may:
 - a. Interrupt the day-to-day academic and operational functions of the University or commit intentional acts that obstruct, disrupt, or physically interfere with the use of university premises, buildings, or passages.
 - b. Engage in actions that intimidate, harass, threaten, or coerce any student, staff, or faculty member, vendor, or guest of the University.
 - c. Solicit in residence halls.

Addendum Special Considerations

Lactation Policy

Woodbury University recognizes the importance and benefits of breastfeeding for both mothers and infants. The University upholds the legal rights of breastfeeding mothers by accommodating students who wish to express breast milk during workday when separated from the newborn child.

Accommodation for Lactating Student Mothers

Any student who is breastfeeding will be provided a reasonable accommodation to express breast milk for their infant. The University has designated a lactation room located in the Atrium Business building, called Mothers' Room, for this purpose.

For more information or to obtain assistance setting up a reasonable lactation accommodation, please contact the Office of Disabilities and Accessibility Services at disabilities@woodbury.edu, or call 818.394.3345

COVID-19

Below are the current (as of August 1st, 2024) Woodbury University guidelines regarding COVID-19 and Influenza vaccinations. The following policies and procedures are subject to change based on LA county public health recommendations.

COVID-19 Vaccination

All faculty, staff, Students, and visitors will no longer be required to show proof of COVID-19 vaccination.

Influenza Vaccination

All faculty, staff, Students, and visitors will no longer be required to show proof of Influenza vaccination.

Testing Positive for COVID-19, Isolation Guidelines & Return to campus:

Students who experience symptoms of COVID-19 or test

positive will need to contact the Student Affairs Office at student.affairs@woodbury.edu.

A negative COVID-19 test result is not required in order to return to campus.

Additional public health resources are available through the TimelyCare app (p. 37).

Please be reminded that all faculty, staff, students, and visitors will continue to be signed in by security at the main gate.

Index

